TWEED
SHIRE COUNCIL

Tweed Development Control Plan



TWEED
SHIRE COUNCIL

Statement of acknowledgment of the Bundjalung Aboriginal Nation

We wish to recognise the generations of the local Aboriginal people of the Bundjalung Nation who have lived in and derived their physical and spiritual needs from the forests, rivers, lakes and streams of this beautiful valley over many thousands of years as the traditional custodians of these lands.

Graphic artwork produced by Bundjalung/Yugambeh Artist and Graphic Designer, Christine Slabb

Version Control

Version	Effective	Description
0.1	11/09/2025	Draft for Council Resolution
0.2	17/10/2025	Draft for Public Exhibition
0.3	04/03/2026	Post-exhibition draft for endorsement and publication
0.4	01/06/2026	Effective Commencement

Abbreviations

CPTED	Crime Prevention Through Environmental Design
DCP	Development Control Plan
DDS	Development Design Specification
DSH	Diameter at standard height
EP&A	Environmental Planning and Assessment Act 1979 (NSW)
LEP	Local Environmental Plan
LSPS	Local Strategic Planning Statement
NSW	New South Wales
SEPP	State Environmental Planning Policy
TPZ	Tree Protection Zone
WSUD	Water Sensitive Urban Design

Icons

	Further guidance on applying the relevant content
	Access to more information
	Links to other Sections of the DCP

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Part A

Preliminaries

Purpose of this document

The principal purpose of this Development Control Plan is to advance clause 3.42 of the Environmental Planning and Assessment Act 1979 (EP&A Act) by way of:

- giving effect to the aims of any environmental planning instrument that applies to the development
- facilitating development that is permissible under any such instrument
- achieving the objectives of land zones under any such instrument.

This Development Control Plan applies to all land in the Tweed Shire Council (Council) local government area unless otherwise stated in a higher order policy, plan or regulation. Section 4.15 of the EP&A Act 1979 requires the consent authority to take into consideration the provisions of a development control plan in determining a development application.

This Development Control Plan is to be read in conjunction with:

- Tweed Local Environmental Plan 2014 (Tweed LEP 2014), Tweed City Centre Local Environmental Plan 2012 (Tweed City Centre LEP 2012), or Tweed Local Environmental Plan 2000 (Tweed LEP 2000), whichever is applicable
- State Environmental Planning Policies, where applicable
- Tweed Development Design Specifications, where applicable.



Figure A1: The role of the DCP in the NSW planning framework

Aims

The Tweed Development Control Plan (DCP) aims to:

1. responsibly manage and enhance Tweed Shire's internationally significant environment and National Iconic Landscape which includes Tweed's urban areas.
2. achieve development that is consistent with the social, economic, cultural, scenic, and environmental values characteristic of the Tweed Shire.
3. promote the principles of ecologically sustainable development and increase opportunities for urban greenery.
4. ensure healthy, safe and equitable living and working environments that care for and protect the Tweed's natural environment.
5. provide clear and up-to-date performance criteria and design standards that respond to evolving Tweed Shire needs, and best practices for development, both on a shire-wide basis and for specific localities.

Application

The DCP forms part of a range of documents that guide sustainable future development for The Tweed. Council seeks to ensure consistency across all Parts, Sections, and Chapters of the DCP. Notwithstanding this intent, circumstances may arise where clarification is required regarding the relative priority of objectives and controls across different Sections. In such cases, applicants should review the aims of each relevant Section and prepare a proposal that demonstrates a balanced response to these objectives, having regard to the site's opportunities and constraints. Where potential conflicts between objectives and controls are identified, early engagement with Council is strongly recommended to facilitate resolution.

Compliance with the provisions of this plan does not necessarily imply that Council will grant consent to an application. There may also be circumstances where Council may consent to an application that departs from the provision of this DCP, where alternative solutions achieve the objectives of that provision. Any variations to controls should be justified against the intent of the control's objectives and regard to prevailing site conditions.

Where a control requires a reference to separate legislation, policy, guideline, design specification, Government strategy, plan or the like, the Applicants are required to address these, in order to achieve compliance with the DCP.

Alignment with Sustainable Development Goals

Council is committed to sustainable development. The DCP establishes development objectives and controls that are consistent with the following relevant United Nations Sustainable Development Goals:

Table A.1 Tweed Shire Council's alignment with UN Sustainable Development Goals

3. 	**Good health and well-being** Foster healthy places and social interactions by embedding smart growth principles into development. This approach supports the development of compact, walkable, green and interconnected communities that positively contribute to addressing public health concerns, such as high obesity rates and mental health issues.
7. 	**Affordable and clean energy** Encourage built forms that support the uptake of renewable energy and improve energy efficiency through smart density, mixed use development, and climate-responsive design.
8. 	**Decent work and economic growth** Shape a built environment that is mindful of increased growth, caring for the interaction between housing, employment lands, and the environment. This pathway aims to maintain sustainable and economically viable population growth.
9. 	**Industry, innovation and infrastructure** Innovatively adapt to a changing climate by progressively implementing a resilient built environment that is accessible to all. These efforts capture the sustainable industrialisation of the land that coexists with diverse livelihoods.
11. 	**Sustainable cities and communities** Implement human-scale built forms that encourage walkable, safe and affordable spaces, while integrating sustainable growth strategies into controls, such as mixed use developments and compact smart density.
13. 	**Climate action** Prioritise built forms that transform the Tweed into a community adapted to climate change, particularly in response to flood and bushfire events.
15. 	**Life on land** Support development that safeguards terrestrial biodiversity and the distinctive coastal and mountainous landscapes of the Tweed Shire by limiting impacts on natural habitats, applying green building principles, and maintaining ecological corridors through sensitive site planning.

How to use this document

Development proposals are required to meet the objectives and requirements of the relevant DCP controls that may be contained within more than one part of this Plan, unless alternative solutions are proposed that will provide a better response, in the opinion of Council, to meeting the objectives of this DCP.

This DCP operates in 5 Parts:

1. **Part A** – **Preliminaries** includes the purpose, aims and objectives of the DCP.
2. **Part B - Land and Environment** operates on a Shire wide basis and identifies land and environmental constraints that must be considered as part of a development proposal.
3. **Part C - Subdivision and Infrastructure** applies to subdivision of land, subdivision development and development involving infrastructure works.
4. **Part D - Built Form** includes objectives and controls to enhance the function, design and amenity of residential and employment related development. Part D also includes Character Statements for site-specific localities within The Tweed. Council is in the process of reviewing these site-specific provisions. Whilst the review is ongoing, certain development standards for specific sites as defined in the previous DCP 2008 will continue to apply which is outlined in Section D3.
5. **Part E - Community** applies to specific aspects of development.
6. **Part F – Site Specific Controls** includes site specific development control plans and locality plans which remain unchanged and will be the subject of a review and refinement into a series of Character Statements, commencing in 2026.

In considering a development, the following steps should be followed:

1. Check the appropriate zoning under the relevant Tweed LEP and any other relevant provisions to ensure the proposed development is permissible.
2. Determine the appropriate application pathway in accordance with the *EP&A Act 1979*.
3. Determined which sections of this DCP apply and any other Council policies that apply to the site.
4. Work through each relevant Section noting both the broad intentions (**Objectives**) of the Section and the detailed considerations (**Controls**).
5. Undertake site analysis with consideration for mapping available on Council's website, which is periodically updated.Prepare the development proposal in accordance with the principles, objectives and controls of this DCP.

Part B

Land and Environment

B1

Biodiversity and Habitat Management



For Section B1 Biodiversity and Habitat Management of the Tweed DCP refer to Section A19 Biodiversity and Habitat Management of the Tweed DCP 2008.

DCP Section A19 Biodiversity and Habitat Management forms part of the Tweed DCP.

B2

Preservation of Trees and Vegetation



1. Introduction

Trees in urban areas bring a multitude of benefits to the community, the environment, and the economy. Trees play a critical role in creating healthy environments though provision of shade and shelter, improvement of air quality, absorption of carbon and rainfall, cooling local environments, and supporting wildlife habitat and movement. The many benefits of trees in urban areas are recognised through Council's Cool Towns: Tweed Shire Urban Forest Program which aims to increase the average total canopy cover in urban areas to 35% by 2030 and then to 40% by 2040.

1.1 Purpose

The purpose of this Section is to protect the environmental, social, and cultural values of trees and vegetation in the interests of current and future generations.

DCP Section B2 aims to:

- preserve trees and vegetation that contribute to the environmental, amenity, heritage, and cultural values of the Tweed
- provide development controls for ecologically sustainable development in accordance with the LEP
- establish a process for the submission, assessment and determination of applications for vegetation clearing
- identify vegetation of particular significance through the Significant Vegetation Register.



For the purposes of this DCP, **clearing vegetation** means

(a) cut down, fell, uproot, kill, poison, ringbark, burn or otherwise destroy the vegetation, or

(b) lop or otherwise remove a substantial part of the vegetation.

Consideration should also be given to activities within the nominal root zone (NRZ) of trees located on site or adjacent to the site. The NRZ of a tree can be calculated based on the diameter of the trunk at standard height (DSH) multiplied by twelve (12). Filling, excavation, compaction, pavement surfaces, installation of services or infrastructure, building works, or changes to drainage can damage the roots, trunk and branches of a tree and may lead to decline or death of the tree. Council recommends you seek advice for any impacts to the NRZ of declared vegetation.

1.2 Application

DCP Section B2 applies to clearing of Declared Vegetation. Declared Vegetation as defined in **Table B2.1** and cannot be cleared without Council approval unless an exemption applies. Exemptions are outlined in **Schedule 1** of this section.

This Section does not apply to:

- clearing of declared vegetation not associated with development in zones RU1, RU2, W1, W2 or Deferred Matter Areas
- clearing associated with development that requires compliance with Part B1 Biodiversity and Habitat Management.



Permits for clearing not associated with development – By law, landowners are responsible for preserving certain trees and vegetation on their land.

Chapter 2 of the SEPP (Biodiversity and Conservation) 2021 authorises Council to issue a permit for clearing of vegetation in non-rural areas.

Applications for a permit to remove declared vegetation regulated through this DCP (previously Tree Preservation Order permits) can be submitted through Council's website. All relevant information relating to clearing of trees and vegetation not associated with development including the application form is located on Council's website:

https://www.tweed.nsw.gov.au/property-rates/property-residents/property-maintenance/trees-private-land



Refer to Section E1 HERITAGE in this DCP for land within Heritage Conservation Areas or containing a Heritage Item.

Table B2.1 Declared Vegetation

Declared Vegetation	Definition
Native plants	Locally indigenous plants[1] with a height equal to or greater than 4 metres or a diameter at standard height[2] (DSH) equal to or greater than 10cm. Also includes a plant of any size delivered under a compensatory action as conditioned by Council.
Native bushland	Locally indigenous vegetation of any size that is mapped as a vegetation type by Council's vegetation mapping[3] other than areas mapped as '*Substantially Cleared of Native Vegetation'*.
Large trees	Any tree, including all native and non-native species with a diameter at standard height[2] (DSH) equal to or greater than 40cm
Preferred koala food trees	Any of the following species: *Eucalyptus robusta* (Swamp Mahogany), *E. tereticornis* (Forest Red Gum), *E. microcorys* (Tallowwood), *E. propinqua* (Small-fruited Grey Gum), *E. patentinervis* (E. robusta x E. tereticornis).
Threatened species	Threatened plant species, populations, or communities scheduled under the Biodiversity Conservation Act 2016 (NSW) or the Environment Protection and Biodiversity Conservation Act 1999 (Cth).
Significant Vegetation	As listed in the *Significant Tree Register* in Appendix 2.

[1] Locally indigenous plants is defined as any plant listed in the *Tweed Shire Council Native Species Planting Guideline* listed at: https://www.tweed.nsw.gov.au/environment/native-plants-wildlife/native-plants

[2] Diameter at standard height (DSH) must be measured in accordance with the national standard methodology outlined in Appendix A of the *Australian Standard for Protection of Trees on Development Sites* (AS 4970-2025). Note circumference must be divided by Pi (3.14) to determine diameter, for example 40cm DSH is equivalent to a circumference of 125cm.

[3] Vegetation mapping is found on Council's online mapping and zoning (refer to environmental information) at: https://www.tweed.nsw.gov.au/development-business/land-use-planning-controls/mapping-zoning

1.3 Compliance

Incidents of alleged unauthorised vegetation clearing will be investigated by Council to determine whether there has been a breach of the DCP and consequently any breach of the NSW State Environmental Planning Policy (Biodiversity and Conservation) 2021.

In the event where a tree has been cleared and only the trunk of the tree remains at ground level, meaning that the trunk of the tree cannot be measured at 1.4m above ground level, the trunk diameter will be measured at ground level immediately above any buttressing and will generally be determined to be a 'large tree' if greater than 50 cm.

If it is determined that a breach has taken place, remedial and/or penalty actions may be pursued in accordance with Council's Compliance Policy. A person who contravenes this Section of the DCP may face punitive action through penalty infringement notices or proceedings in the Local Court or the Class 5 Criminal jurisdiction of the NSW Land and Environment Court.

Non-native species – including recognised weeds under the Biosecurity Act 2015 are not declared vegetation under DCP Section B2 and therefore their removal does not require approval from Council unless they meet the definition of **large trees.** Large non-native trees such as jacaranda, weeping fig, camphor laurel, poinciana and others contribute to amenity, shade, and urban ecology.

Broadscale clearing – of non-native trees including camphor laurel and slash pine may be defined as forestry and as such may be subject to development consent under the Environmental Planning and Assessment Act 1979. It is the responsibility of the landholder to ensure any clearing of non-native species complies with this DCP and other legislative approval requirements pertaining to forestry operations. Refer to Definitions in this DCP for definition of broadscale clearing.

2. Objectives and Controls

Objectives

O1 To recognise and protect the environmental, amenity, heritage and/or cultural values of trees and vegetation.

O2 To establish exemptions that apply under certain circumstances.

O3 To minimise the impacts of development on declared vegetation.

O4 To promote canopy cover through the delivery of compensatory planting for the loss of declared vegetation.

O5 To protect trees with particular biological, aesthetic, cultural or historical values through a Significant Tree Register.

Controls

C1 A person must not clear vegetation to which this DCP applies without a permit or approval issued by Council.

C2 Clearing of declared vegetation is exempt from a permit or approval where the conditions and standards of **Schedule 1** are met.

C3 Applications for clearing of declared vegetation not associated with development requiring consent under the Environmental Planning and Assessment Act 1979 shall include all required information as per the *Removal/pruning of trees or vegetation clearing on private land* application form.

C4 Applications associated with development under the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* shall include the information outlined in C3 and the following additional information:

a. species (common or botanical name), estimated height, diameter at standard height, and at least 2 photographs per tree

b. a site plan (scaled site plan or marked up aerial image) identifying:
    i. the location of the declared vegetation to be removed
    ii. location of any existing or proposed structures on site
    iii. distances between the vegetation, existing or proposed structures and lot boundaries

c. details of measures taken to avoid and minimise impacts to declared vegetation

d. details of measures proposed to protect retained vegetation

e. proposed compensatory planting in accordance with Council's *Compensatory Planting Policy*

f. compliance with Clause 5.10 of the Tweed LEP 2014 and Part E1 Heritage where clearing involves a heritage item or is located within a heritage conservation area; and/or Clause 5.10 of Tweed LEP 2014 and the *Tweed Aboriginal Cultural Heritage Management Plan* where clearing involves an Aboriginal Object or is located in an Aboriginal place of heritage significance.

C5 Development requiring consent under Part 4 of the Environmental Planning and Assessment Act 1979 shall manage declared vegetation based on the avoid, mitigate and offset hierarchy.

Development shall, in order:

a. demonstrate how all options to locate the development, including ancillary works, have been considered to avoid impacts to declared vegetation with reference to **Schedule 2** Vegetation Retention Value

b. document mitigation measures that reduce the intensity, duration and/or extent of impacts that cannot be reasonably avoided

c. offset residual impacts on declared vegetation as per C7.

C6 Development applications shall include:

a. an assessment of declared vegetation to determine vegetation retention value in accordance with **Schedule 2**

b. arborist Report/s meeting the minimum requirements of Appendix 1

c. a scaled site plan showing the following information for all declared vegetation in proximity to the development

   i. location, species, height, and diameter at standard height
   ii. Structural Root Zone (SRZ)
   iii. Nominal Root Zone (NRZ)
   iv. Tree Protection Zone (TPZ)
   v. Vegetation Priority as identified in C5(a).
   vi. development extent, including all associated activities such as earthworks, services, and ancillary structures
   vii. the proposed impact level - *remove, retain (with impacts), retain (no impact)*
   viii. location and details of any compensatory planting including estimated NRZ at maturity

d. a series of photographs of the site from all directions showing all relevant declared vegetation and (where possible) marked out extent of proposed development

e. a detailed Arboricultural Impact Assessment meeting the minimum requirements of Appendix 1 where a major encroachment of declared vegetation is identified

f. details of compliance with Clause 5.10 of the Tweed LEP 2014 and Part E1 Heritage where clearing involves a heritage item or is located within a heritage conservation area

g. details of compliance with Clause 5.10 of Tweed LEP 2014 and the *Tweed Aboriginal Cultural Heritage Management Plan* where clearing involves an Aboriginal Object, or is located in an Aboriginal place of heritage significance.

C7 The removal of declared vegetation shall be offset in accordance with Council's Compensatory Planting Policy.

C8 Retained vegetation is protected from the impacts of development in accordance with Australian Standard *AS 4970:2025 Protection of Trees on Development Sites.*

C9 A Significant Tree Register (**Schedule 3**) is to be maintained by Council to protect trees of significant biological, aesthetic, cultural or historical values:

a. Amendments to the Significant Tree Register require a resolution from Council.

b. Nominations for listing on the Significant Tree Register must include:

   i. an assessment against the listing criteria identified in **Schedule 3** of this Section

   ii. an Arborist Report by a minimum AQF Level 5 Arborist

   iii. landowner consent, where the tree is located on private land.

a. Applications to clear (including pruning) a tree listed on the Significant Tree Register must include:

   iv. an Arborist Report prepared by a minimum AQF Level 5 Arborist

   v. an impact statement including historical and cultural impact assessment

   vi. landowner consent.

C10 The Native Vegetation Panel is to consider the following matters when determining applications to clear native vegetation under Part 5A of the Local Land Services Act 2013:

a. The relevant aims, zone objectives and environmental and heritage clauses within the applicable Tweed LEP.

b. The Tweed Coast Comprehensive Koala Plan of Management, including the aims, precinct objectives, development controls, and offset requirements.

c. The objectives, applications and controls of the Tweed DCP 2025:

   i. Part B1 – Biodiversity and Habitat Management

   ii. Part B2 – Preservation of Trees and Vegetation

   iii. Part B5 – Heritage.

a. Any applicable site-specific controls of the Tweed DCP 2025.

b. Any other Locality Plan or similar strategic planning document adopted by Council including the Kingscliff Locality Plan, Tweed Aboriginal Cultural Heritage Management Plan, Tweed Community Strategic Plan and Local Strategic Planning Statement.

Vegetation Prioritisation – The Vegetation Retention Value (Schedule 2) is intended to be used as a guide to assist proponents in identifying trees and vegetation with the highest value for retention on site. Council expects proponents to demonstrate how the development has reasonably avoided impacts to trees and vegetation with the highest priority, then identify actions to mitigate impacts that cannot be avoided, before any residual impacts are offset through compensatory planting.

Assessment – Council will consider a range of factors in assessing applications for the clearing of declared vegetation including but not limited to: species, age, size, characteristics and location of the tree/vegetation, reason/s for clearing, land zone objectives, costs associated with alternative layouts or building practices, opportunities for mitigation/management, and provisions other Council policies and endorsed strategies including other sections of this DCP.

The following circumstances are generally not considered valid reasons for the removal of declared vegetation (particularly those of high biodiversity or amenity value): improving views, wildlife nuisance, leaf litter or general untidiness.

Council may refuse an application for clearing and will provide grounds for refusal. Applicants may need to reapply and provide an Arborist's Report or Structural Engineering assessment to have refused applications reassessed.

Schedule 1. Exemptions

There are certain circumstances in which DCP Section B2 does not apply – known as exemptions. Table B2.2 identifies general exemptions that apply to a permit or approval under this Part. To be exempt from assessment under Section B2, the relevant conditions and standards of the exemption must be met.

Table B2.2 General Exemptions

Exemption	Conditions and Standards
Routine garden maintenance	• Applies to vegetation with a trunk diameter less than or equal to 10cm (typically measured at 1.4m above the natural ground in accordance with Appendix A of the Australian Standard *AS 4970:2025 Protection of Trees on Development Sites* and where clearing is associated with a history of maintenance of planted vegetation. • Includes planted hedges, garden beds and small trees that meet the size requirements and are subject to ongoing maintenance. • Does not include: o large trees o hollow bearing trees o preferred koala food trees o threatened species o trees on the Significant Tree Register o compensatory planting o clearing exceeding the Biodiversity Offsets Scheme Thresholds.
Pruning	• Pruning is to be carried out in accordance with Australian Standard *AS 4373:2007 Pruning of amenity trees**. • Crown maintenance works shall not exceed a cumulative total of 20% of the canopy in any two-year period. • Must not include hard line reductions to fence lines or top lopping unless the vegetation has a history of being managed as a hedge or by topping. • Must not include pruning or damage to the structural root zone. • Does not include: o threatened species o trees on the Significant Tree Register o hollow bearing trees o clearing exceeding the Biodiversity Offsets Scheme Thresholds **Council recommends pruning be carried out by an Arborist with a minimum Australian Qualifications Framework (AQF) Level 3 in Arboriculture.*
Proximity to an existing lawful building	• Clearing within 5 metres* of: o an existing lawful dwelling, including a permanent attached: deck, patio, carport or garage. o an existing lawful industrial or commercial building. • Vegetation must be located on the same land on which the building is located.

Exemption	Conditions and Standards
	• Does not include: o Any vegetation within 5 metres of any detached ancillary development including but not limited to garages, carports, sheds, pergolas or retaining walls. o large trees o preferred koala food trees o hollow bearing trees o threatened species o trees on the Significant Tree Register o compensatory planting o clearing exceeding the Biodiversity Offsets Scheme Thresholds **Measured from the base of the tree/vegetation to the nearest external wall (or line between support posts where there is no wall such as a deck).*
Dead or dying vegetation	• Council must be satisfied that the declared vegetation is dead or dying and is not required for the habitat of native fauna (e.g. hollow bearing). • Council must be notified via telephone and/or in writing. A Council officer may request photographic evidence, a site inspection or advice from an expert (such as a Level 5 Arborist) to assist in its determination. • No clearing shall occur until Council has provided written confirmation the vegetation can be cleared without a permit.
Risk to life or property	• Council must be satisfied that the vegetation is a risk to human life or property. • Council must be notified of the risk via telephone and/or in writing. A Council officer may request photographic evidence, conduct a site inspection and/or request the applicant provide an Arborist Report (see Appendix 4) to assist in its determination. • No clearing shall occur until Council has provided written correspondence confirming the vegetation can be cleared without a permit.
Traditional Aboriginal cultural activities	• Must be for a traditional Aboriginal cultural activity (other than a commercial cultural activity).
Routine maintenance of Council-managed public land	• Must be associated with routine maintenance activities undertaken on public land by or on behalf of Council or the Crown. • Does not include: o trees on the Significant Tree Register o clearing exceeding the Biodiversity Offsets Scheme Thresholds
Public infrastructure	• Must be for public infrastructure undertaken by or on behalf of Council. • Must be works undertaken on Council owned or managed land. • Does not include: o trees on the Significant Tree Register.
Authorised by another Act	• Clearing authorised by another Act including: o Biosecurity Act 2015 o State Environmental Planning Policy (Exempt and Complying and Development Codes) 2008 o State Environmental Planning Policy (Transport and Infrastructure) 2021 o State Environmental Planning Policy (Biodiversity and Conservation) 2021

<table>
<tr><th>Exemption</th><th>Conditions and Standards</th></tr>
<tr><td></td><td>o Rural Fires Act 1997
o Electricity Supply Act 1995
o Roads Act 1993
o Surveying and Spatial Information Act 2002</td></tr>
<tr><td>Maintenance of beach safety surveillance from existing surf lifesaving clubs</td><td>• Vegetation clearing carried out on land directly seaward of a registered Surf Lifesaving Club to maintain a lifesaving surveillance capability from upper most floor of a club house.
• Restricted to lopping and pruning only and to the minimum extent practical.
• Vegetation clearing must be performed by or on behalf of Council.
• Must not exceed the Biodiversity Offsets Scheme Thresholds.</td></tr>
<tr><td>Vegetation clearing in accordance with a management plan</td><td>• Clearing vegetation is carried out in accordance with a management plan authorised by Council or other Government authority.</td></tr>
<tr><td>Weeds and undesirable species</td><td>• Applies to any of the following species with a diameter at standard height (DSH) of less than 100cm:
<table>
<tr><td>African olive</td><td>Olea europaea subsp. cuspidata</td></tr>
<tr><td>African tulip tree</td><td>Spathodea campanulata</td></tr>
<tr><td>Alexander Palm</td><td>Archontophoenix alexandrae</td></tr>
<tr><td>Athel pine</td><td>Tamarix aphylla</td></tr>
<tr><td>Black locust</td><td>Robinia pseudoacacia</td></tr>
<tr><td>Black willow*</td><td>Salix nigra</td></tr>
<tr><td>Brazilian cherry</td><td>Eugenia uniflora</td></tr>
<tr><td>Broad-leaf pepper tree*</td><td>Schinus terebinthifolia</td></tr>
<tr><td>Broad-leaved privet</td><td>Ligustrum lucidum</td></tr>
<tr><td>Camellia</td><td>Camellia sp.</td></tr>
<tr><td>Camphor laurel</td><td>Cinnamomum camphora</td></tr>
<tr><td>Cecropia*</td><td>Cecropia species</td></tr>
<tr><td>Cherry guava</td><td>Psidium cattleyanum</td></tr>
<tr><td>Chinese celtis*</td><td>Celtis sinensis</td></tr>
<tr><td>Chinese rain tree</td><td>Koelreuteria elegans subsp. formosana</td></tr>
<tr><td>Chinese tallow tree*</td><td>Triadica sebifera</td></tr>
<tr><td>Cockspur coral tree*</td><td>Erythrina crista-galli</td></tr>
<tr><td>Cocos palm</td><td>Syagrus romanzoffiana</td></tr>
<tr><td>Coffee tree</td><td>Coffea sp.</td></tr>
<tr><td>Coral tree</td><td>Erythrina x sykesii</td></tr>
<tr><td>Crepe myrtle</td><td>Lagerstroemia indica</td></tr>
<tr><td>Creeping bamboo</td><td>Arundinaria sp.</td></tr>
<tr><td>Curry leaf tree</td><td>Bergera koenigii</td></tr>
<tr><td>Date palm</td><td>Phoenix dactylifera</td></tr>
<tr><td>Devil's fig</td><td>Solanum torvum</td></tr>
<tr><td>European olive</td><td>Olea europaea subsp. europaea</td></tr>
<tr><td>Giant devil's fig</td><td>Solanum chrysotrichum</td></tr>
<tr><td>Golden shower tree</td><td>Cassia fistula</td></tr>
<tr><td>Golden trumpet tree</td><td>Handroanthus chrysotrichus</td></tr>
</table></td></tr>
</table>

Exemption	Conditions and Standards	
	Harungana	*Harungana madagascariensis*
	Himalayan cedar	*Acrocarpus fraxinifolius*
	Honey locust*	*Gleditsia triacanthos*
	Japanese walnut*	*Juglans ailantifolia*
	Leucaena*	*Leucaena leucocephala*
	Magnolia	*Magnolia grandiflora*
	Mexican fern tree	*Cibotium schiedei*
	Mexican cotton fan palm	*Washingtonia robusta*
	Paper mulberry*	*Broussonetia papyrifera*
	Peppercorn	*Schinus molle*
	Pongamia	*Millettia pinnata*
	Ponytail palm	*Beaucarnea recurvata*
	Port Wine Magnolia	*Michelia figo*
	Rhus tree	*Toxicodendron succedaneum*
	Running bamboo	*Bambusa sp.*
	Slash pine	*Pinus elliottii*
	Spanish cedar	*Cedrela odorata*
	Small-leaved privet	*Ligustrum sinense*
	Tobacco bush	*Solanum mauritianum*
	Tree of heaven	*Ailanthus altissima*
	Umbrella tree	*Schefflera actinophylla*
	Willow	*Salix sp.*
	**Regional Priority Weed*	

Additional exemptions for conservation zones

Table B2.3 identifies additional exemptions for the **C2 Environmental Conservation** and **C3 Environmental Management** zones. These exemptions are intended to reflect, as close as reasonably possible for vegetated areas, the allowable activities available to Category 2 rural landholders under Schedule 5A the NSW Local Land Services Act 2013 (LLS Act). To be exempt from assessment under Section B2, all relevant conditions and standards of Table B2.3 must be met.

Exemptions for clearing in conservation zones C2 and C3 may also apply under the State Environmental Planning Policy (Biodiversity and Conservation) 2021.

Table B2.3 Exemptions for C Zones

Exemption	Conditions and Standards	
	C2 Environmental Conservation	C3 Environmental Management
Maintenance of existing lawful rural infrastructure	• Must be carried out to the minimum extent necessary for that purpose and consistent with zone objectives. • Does not include: o large trees o preferred koala food trees o threatened species o trees on the Significant Tree Register	
Environmental protection works	• Must be worked associated with the rehabilitation of land towards its natural state or works to protect land from environmental degradation. Includes: o Re-vegetation or bush regeneration works; o Wetland protection works; o Erosion protection works; o Dune restoration works. • Does not include: o coastal protection works, within the meaning of the Coastal Management Act 2016 o trees on the Significant Tree Register	
Construction of rural infrastructure that is exempt under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.* *Note:* This exemption does not include clearing for construction of farm buildings as defined in Tweed LEP 2014. Farm buildings are prohibited in the C2 zone and require development consent in the C3 zone.	**Permit Required**	• Must be carried out to the minimum extent possible consistent with zone objectives. • Where reasonably required and ancillary to legitimate agricultural and/or environmental management activity. • Does not include: o large trees o hollow bearing trees o preferred koala food trees o threatened species o trees on the Significant Tree Register
Firewood collection	**Permit required**	• Must be used for firewood by the landholder on land they own and not for commercial purposes.

Exemption	Conditions and Standards	
	C2 Environmental Conservation	C3 Environmental Management
		• Does not include: o large trees o hollow bearing trees o preferred koala food trees o threatened species o trees on the Significant Tree Register • Clearing for the purpose of firewood collection is not authorised if there is already firewood available from any other lawful clearing. • Must not comprise: o a threatened species or part of a threatened ecological community; or the habitat of a threatened species under the Biodiversity Conservation Act 2016; or o the habitat of threatened species, populations, or ecological communities of fish under the Fisheries Management Act 1994. • Must be carried out by methods that minimise soil erosion and impacts on waterways and native species.
Construction timber	**Permit required**	• Must be for the purpose of, and used in, the construction, operation or maintenance of rural infrastructure on the same landholding from which the native vegetation was cleared • Does not include: o large trees o preferred koala food trees o threatened species o trees on the Significant Tree Register • Must be carried out by methods that minimise soil erosion and impacts on waterways and native species. • Must not comprise: o a threatened species or part of a threatened ecological community; or the habitat of a threatened species under the Biodiversity Conservation Act 2016; or o the habitat of threatened species, populations, or ecological communities of

Exemption	Conditions and Standards	
	C2 Environmental Conservation	C3 Environmental Management
		fish under the Fisheries Management Act 1994.
Sustainable grazing	**Development consent required** (see Part 3) unless exempt due to an existing or continuing agricultural use	• Must not result in the substantial long-term decline in the structure and composition of native vegetation.
Clearing of planted native vegetation	**Permit required**	• Must be vegetation planted by the current landholder • Does not include: o large trees o preferred koala food trees o threatened species and communities o trees on the Significant Tree Register • Does not include native vegetation planted with the assistance of public funds granted for any purpose other than forestry purposes. • Does not meet the LEP Standard Instrument definition of *forestry operations*. • Must be carried out by methods that minimise soil erosion and impacts on waterways and native species.

Schedule 2. Vegetation Retention Value

Table B2.4 Vegetation Retention Value

Priority	Criteria	Retention Value
3	Meets one or more of the following criteria: • Any tree with a crown size greater than 100m^2 **or** a diameter at standard height equal to or greater than 60cm • Visually prominent in the landscape, with excellent form and habit typical of the species, and makes a significant contribution to the amenity or visual character of the property or area by creating a sense of place or identity • Penetrates the built form skyline when viewed from public spaces greater than 500m away so is visually prominent and creates a recognisable landmark • Remnant vegetation in existence prior to the zoning of the site for urban development • A tree listed on Council's Significant Tree Register • Hollow bearing trees • Threatened species under the *Biodiversity Conservation Act 2016* • Vegetation part of an Threatened Ecological Community (TEC) under the *Biodiversity Conservation Act 2016* • Species, or species part of a Threatened Ecological Community (TEC), protected under the *EPBC Act 1999* • Within a mapped Littoral Rainforest or Coastal Wetland area under *State Environmental Planning Policy (Resilience and Hazards) 2021* • Within a mapped regional or subregional fauna corridor except on R1, R2, or R3 zoned land. • Vegetation identified as an Aboriginal object or is within an Aboriginal place of Heritage Significance (as defined under Tweed LEP 2014) and has been identified as holding specific Aboriginal cultural heritage value during assessment of Clause 5.10 of Tweed LEP 2014 • Vegetation on property listed as a heritage item under Schedule 5 of the Tweed LEP 2014 • Commemorative plantings relating to a historical event recorded on public record or in the Tweed Regional Museum as of regional, State or National significance • Is relied upon by threatened species for food, shelter or nesting • Locally endemic species representative of the original vegetation of the area and is uncommon in the locality, or in cultivation • Protected by development consent, restrictive covenant or another legal impediment • Within 10m of a watercourse • Within 20m of a flying fox camp or raptor nest	HIGH

Priority	Criteria	Retention Value
2	Meets one or more of the following criteria: • Any tree with a crown size between 40m^2 to 100m^2; **or** a diameter at standard height equal to or greater than 20cm • Clearly visible (more than 50%) from surrounding properties and contributes to the amenity or visual character of the area • Vegetation that has a historical association with a heritage item or landscape based on anecdotal evidence or local knowledge of similar sites, tree age, species etc • Provides habitat for native fauna (includes food resources or evidence of nests and hollows)	**MODERATE**
1	Meets one of more of the following criteria: • Any tree with a crown size less than 40m^2; **or** a diameter at standard height of less than 20cm • Visibly obscured (less than 50%) from surrounding properties • Limited habitat for native fauna (no evidence of nests or hollows)	**LOW**

Schedule 3. Significant Tree Register

Table B2.5 Tweed Significant Tree Register

ID	Name	Address	Lot Plan	Suburb
1	Fig Trees – Navigation Markers	Tierney Park, Wupawn Place	Lot 50 DP 258995	Banora Point
2	Fig Tree	Cnr Cane Road and Tweed Valley Way	Lot 101 DP 1058418	Condong
3	Fig Tree	Cnr Clothiers Creek Road and Tweed Valley Way	Lot 18 DP 255029	Condong
4	Norfolk Pines (16) Memorial Avenue	Collier Street	Road Reserve	Cudgen
5	Memorial Fig Trees	Crescent Street	Road Reserve	Cudgen
6	Skinner's Reserve	Dulguigan Road	Lot 480 DP 800941	Dulguigan
7	Canary Island Palms	Commercial Road	Lot 1 DP 523131	Murwillumbah
8	Lilly Pilly Tree	Numinbah Road	Lot 1 DP 735072	Numinbah
9	Plane Trees	Kyogle Road	Lot 20 DP 790517	Uki

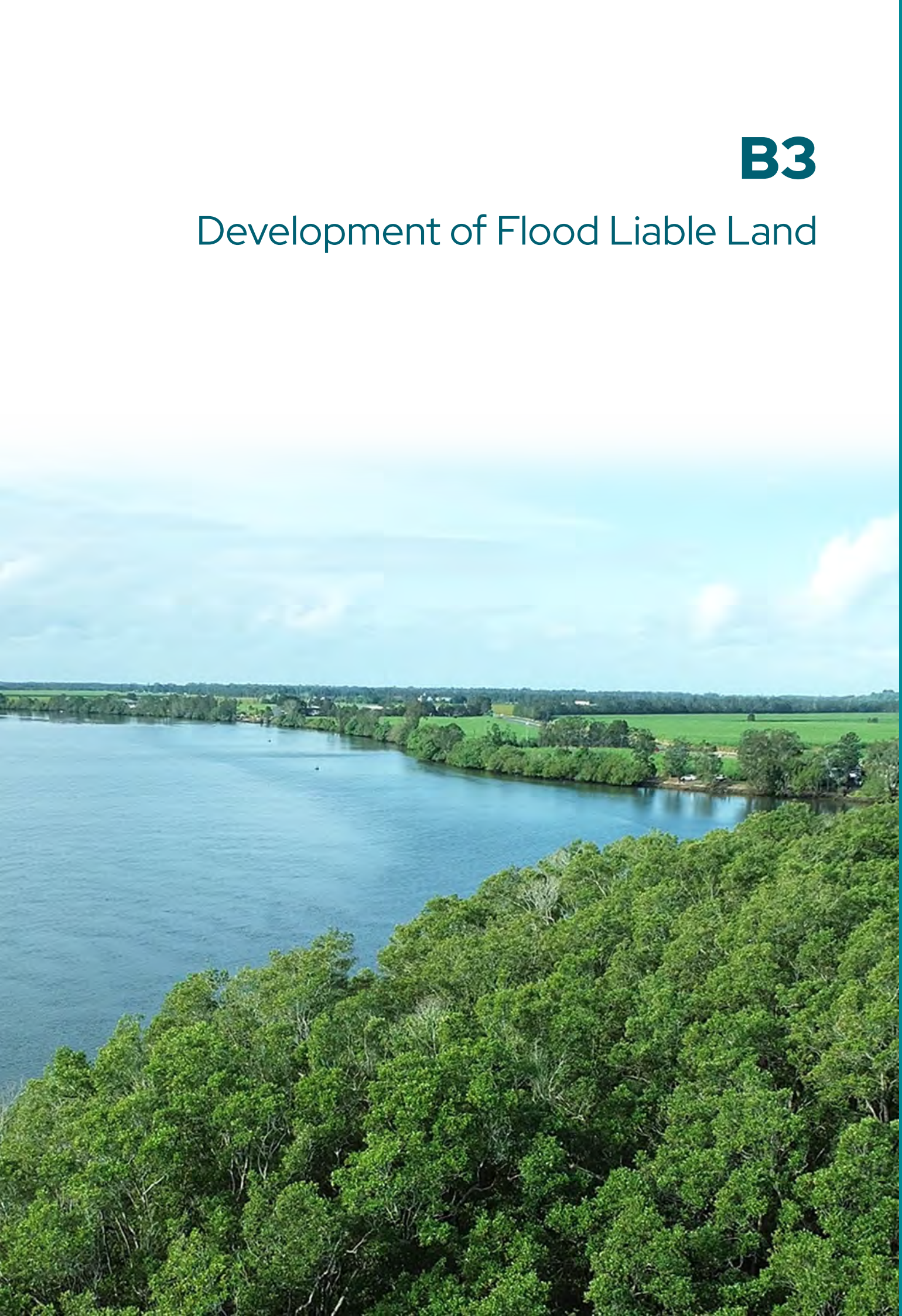
Table B2.6 Listing Criteria

Category	Criteria
Landscape	Outstanding aesthetic or amenity value, or acts as a local landmark
Size	Outstanding height, girth, or canopy spread
Age	In an ancient stage of its life or is an old relative to others of the same species
Form	Unique, unusual, or curious growth forms
Botanical	Rarely found in the wild or in cultivation or of horticultural or genetic value and could be an important source of propagation.
Habitat	Represents outstanding habitat for locally endemic flora or fauna
Historical	Specific historical or commemorative association to the Tweed community
Cultural	Of Aboriginal culture or heritage value or specific association with well known public figures and prominent community members

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B3

Development of Flood Liable Land



For Section B3 of the Tweed DCP refer to document titled Section A3 Development of Flood Liable Land.

DCP 2008 Section A3 Development of Flood Liable Land forms part of this DCP.

B4

Coastal Hazards



1. Introduction

1.1 Purpose

The purpose of this Section is to:

a. provide guidelines for the development of land at risk of coastal hazards

b. consider if the proposed development or activity is appropriate to be carried out

c. minimise the risk to life and property associated with development and building on land that is affected by coastal hazards

d. maintain access to public land within the coastal zone.

1.2 Application

This Section applies to all land identified as coastal hazard under the Tweed LEP 2014 Clause 7.5 Coastal Risk Planning and associated Coastal Risk Planning Map. DCP Coastal Hazard Lines Maps (Figures 1.1 to 1.26) combine with Figure B4.1 to define hazard precincts. Chapters 2.1, 2.2 and 2.3 provide objectives and controls for development within Immediate Hazard Precinct, Hazard Precinct 1 and Hazard Precinct 2, respectively.

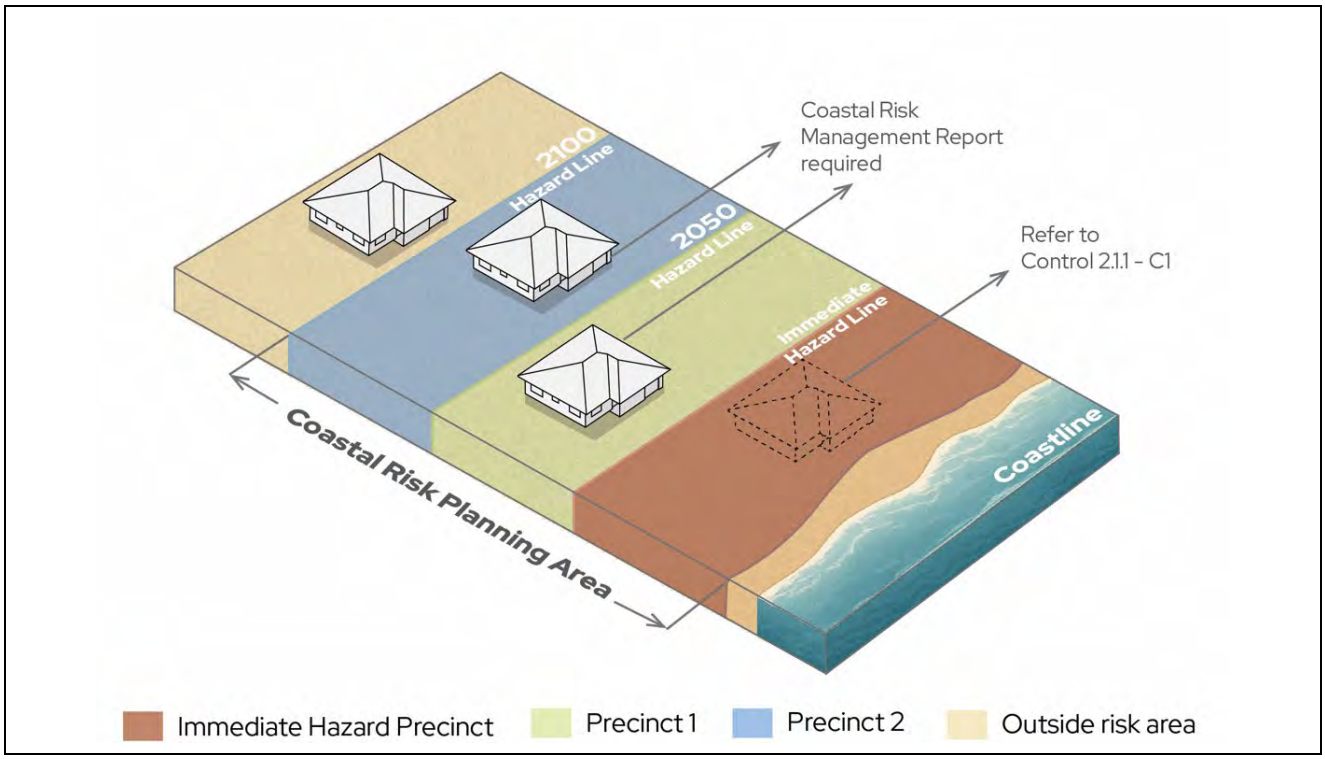


Figure B4.1: Hazard Precincts as identified within this Section

1.3 Definitions

Coastal hazards	Impacts of exacerbated coastal processes on the use, capability and amenity of the coastline. The NSW Coastal Management Act 2016 identifies 7 coastal hazards: • Beach erosion • Shoreline recession • Coastal lake or watercourse entrance instability • Coastal inundation • Coastal cliff or slope instability • Tidal inundation • Erosion and inundation of foreshores, caused by tidal waters and the action of waves, including the interaction of those waters with catchment floodwaters
Erosion Escarpment	The vertical or near vertical drop in the beach profile caused by tidal or storm erosion.
Maintenance	Does not include any increase in floor area or the movement of walls, replacement of one type of wall with another (such as replace a timber frame wall with brickwork), building decks, moving kitchens to other areas or changing the roof shape, pitch or height.
Professional engineer	Means a person (a) who is a registered professional engineer in the relevant discipline who has appropriate experience and competence in the relevant field; or (b) who is: i. A Corporate Member of the Institute of Engineers, Australia; or ii. Eligible to become a Corporate Member of the Institute of Engineers, Australia, and has appropriate experience and competence in the relevant field.
Suitably qualified person	Means any of the following: (a) Professional engineer as defined above, (b) Licensed Builder, (c) Level 1, 2 or 3 Accredited Certifier – (Building Surveyor), or (d) Registered Architect.

2. Objectives and Controls

2.1 Immediate Hazard Precinct

This part applies to any development on land within the Immediate Hazard Precinct. Council's online mapping website provides access to constraint mapping which is updated periodically.

Objectives

O1 To minimize vulnerability to coastal hazards by preventing new development and retreating existing development from the immediate hazard precinct.

O2 To enable minor alterations, renovations and maintenance to existing buildings where there is no increased risk of coastal hazards to the development site or adjacent land, and the ability to remove structures from the property is not inhibited.

O3 To enable use of land for temporary purposes which respond to the need to relocate in response to coastal hazards.

Controls

2.1.1 Residential, commercial, tourism and employment development

C1 Council will not permit new buildings to be constructed on land within the Immediate Hazard Precinct, unless a certified Coastal Management Program provides otherwise.

C2 Existing buildings will not be permitted to carry out renovations within the Immediate Hazard Precinct. Permitted renovations, alterations and maintenance are detailed below in 2.1.2. Planned retreat of those components of the building within the Immediate Hazard Precinct is recommended.

C3 A development that would require additional permanent built structures or extensions to existing built structures will not be permitted.

C4 Development will not be permissible if it will result in people permanently living or working within the Immediate Hazard Precinct unless that work is undertaken on a short- term or intermittent basis.

C5 Where a site has existing buildings or structures within the Immediate Hazard Precinct and the property is the subject of a development application, Council may seek to have those structures removed, as a part of the development or redevelopment of the site.

C6 Any permissible development will be subject to a Coastal Risk Management Report.

2.1.2 Renovations, alterations and maintenance

C7 Maintenance of buildings is permitted, provided that the maintenance work carried out does not change the nature of the structural element being maintained.

C8 Maintenance and alterations to existing buildings must be limited to minor works only and must be capable of swift removal or demolition if coastal hazards threaten the development.

C9 Renovations are not permitted within the Immediate Hazard Precinct. Renovations will be considered for that part of the building in Precinct 1 in accordance with Controls detailed within section 2.2.2.

2.1.3 Car parking

C10 Open car park areas and carports (i.e. at least 3 sides are open) will be considered at existing ground level.

C11 Basement (i.e. below natural ground level) and new enclosed garages will not be permitted.

2.1.4 Outbuildings and other ancillary structures

C12 Development that is temporary or can be relocated or sacrificed (such as decks, non-habitable, detached, light weight structures associated with outdoor living areas, storage or landscaping) may be considered within the Immediate Hazard Precinct where these do not prejudice relocation of other buildings on the site.

C13 Other uses may be considered that by their nature have to be within the Immediate Hazard Precinct (e.g. surf life saving and marine rescue observation structures, picnic tables, access structures or similar).

C14 Development that is of a community nature which relates to the use of the beachfront, may be considered, provided that any structures are easily removable or sacrificial and do not require a major extension to a service main.

C15 Development for the purposes of coastal access stairs, fences, cycleways, walking trails, picnic facilities or other facilities will be designed to be removable (or sacrificial).

2.1.5 General

C16 Development must be carried out in a manner that maintains the safety of the public and not damage public or private property.

C17 The development must not involve any physical works that will exacerbate any of the coastal hazards defined in the NSW Coastal Management Act 2016.

2.1.6 Redevelopment of existing caravan parks and other existing short term accommodation facilities

C18 Redevelopment of existing caravan parks and other existing short term accommodation facilities must not result in opportunities to increase the overall number of caravans and/or other moveable dwellings.

C19 Caravan park sites shall only be used as short term sites.

C20 No new permanent building shall be erected within the Immediate Hazard Precinct.

2.2 Hazard Precinct 1

This part applies to any development on land located within Hazard Precinct 1. Council's online mapping website provides access to constraint mapping which is updated periodically.

Objectives

O1 To improve resilience to coastal hazards through building design and location (relocatable, structurally appropriate, setback from erosion escarpment).

O2 To improve adaptive capacity to coastal hazards by planning for the need to retreat from the erosion escarpment.

O3 To enable alterations, renovations and maintenance to existing buildings where there is no increased risk of coastal hazards to the development site or adjacent land, and the ability to remove structures from the property is not inhibited.

O4 To enable use of land for temporary purposes which respond to the need to relocate in response to coastal hazards.

O5 To mitigate adverse impacts of development on the coastal environment and ensure development does exacerbate coastal processes or hazards.

Controls

2.2.1 Residential, commercial, tourism and employment development

C1 Development in this precinct is encouraged to be built as a modular, detachable, relocatable design. This will benefit future relocation or removal of development if under threat from coastal hazards.

C2 No building is to be located within 20 metres of the current erosion escarpment.

C3 Development within the Hazard Precinct 1 will be subject to the restriction to the effect that if the erosion escarpment comes within 20 metres (or other distance as determined by a professional engineer establishing the point at which the distance to the erosion escarpment makes the building unsafe to occupy) of any building approved under that consent, then the approved use will cease. Conditions of consent will require that prior to the issue of a Construction Certificate, a restriction on the use is placed on the title pursuant to the provisions of section 88E (Conveyancing Act, 1919) in this regard.

C4 If the permitted use or occupation of the building does cease then the owner of the land will be responsible for the removal of any or all buildings from the site, to a location on the site further than 20 metres from the erosion escarpment where possible, or off site. As part of the development application lodged with Council, the developer of the land must indicate

whether buildings are to be relocatable or demolished, should the use of the building cease. Conditions of consent will require that prior to the issue of a Construction Certificate, a restriction on the use is placed on the title pursuant to the provisions of section 88E (Conveyancing Act, 1919) in this regard.

C5 Where vacant urban sized lots exist that are more than 50% within this precinct preference will be given to lightweight, modular and demountable buildings.

C6 Where a site has existing buildings or structures within Hazard Precinct 1 and the property is the subject of a development application, Council may seek to have those structures removed, as a part of the development or redevelopment of the site.

C7 All structures constructed within Hazard Precinct 1 shall:

a. be compatible with the coastal hazard identified

b. be set back as far landward as practicable

c. not give rise to any increased hazard to other public or private property

d. be designed to structurally withstand the designated hazard at the risk level required

e. be designed with consideration given to the effects of larger events than the designated hazard

f. be constructed in a manner or to a level which caters for the coastal hazards of wave runup and overtopping and inundation from increased water levels.

C8 Foundations for new development are to be designed by a professional engineer.

C9 Any permissible development will be subject to a Coastal Risk Management Report.



Coastal Risk Management Report – is to be prepared by suitably qualified coastal engineer and structural engineer and must address the Coastal Risk Management Guidelines provided as an Appendix 2 to this DCP.

2.2.2 Additions, renovations, alterations and maintenance

C10 Additions or alterations to existing buildings will be considered on their merits. Consideration will be given to the location of the erosion escarpment, the type of building involved and access to the site. Additions or alterations will be considered where there will be no adverse effect on the ability of the building(s) to be removed in an emergency.

C11 A development application which proposes a 50% or greater increase in the gross floor area (GFA) compared with that of the existing building will not be approved unless that portion of the existing building within the Immediate Hazard Precinct is removed.

C12 Any addition, alteration, or renovation of a building in Hazard Precinct 1 shall be restricted to the following:

a. Where the GFA of the existing building is less than 100 m^2 – extensions that will make the GFA no greater than 100 m^2.

b. Where the GFA of the existing building is 100 m^2 or more - 15% of the GFA of the existing building at the date of commencement of this DCP.

C13 Addition or alteration of a building within 20m of the current escarpment is not permitted.

2.2.3 Car Parking

C14 Open car park areas and carports (i.e. at least 3 sides are open) will be considered at existing ground level.

C15 Basement car parking will not be permitted.

2.2.4 Other Development

C16 Development that is temporary or can be relocated or sacrificed (such as decks), non-habitable, detached, light weight structures associated with outdoor living areas, storage or landscaping may be considered within Hazard Precinct 1 where these do not prejudice relocation of other buildings on the site.

C17 Only uses that by their nature have to be within Hazard Precinct 1 e.g. surf lifesaving and marine rescue observation structures, picnic tables or similar are permitted.

C18 Development that is of a community nature

C19 Development that is of a community nature, which relates to the use of the beachfront, may be considered, provided that any building is easily removable (or sacrificial) and does not require a major extension to a service main.

C20 Development for the purposes of coastal access stairs, fences, cycleways, walking trails, picnic facilities or other facilities will be designed to be removable (or sacrificed).

2.2.5 General

C21 Any suitable sand excavated during the course of building and re-development work shall have all deleterious material removed and shall be placed on the adjacent beach at a location approved by the Council. It will need to be assessed as suitable by Council and placed at no charge to Council.

C22 Development must be carried out in a manner that maintains the safety of the public and not damage public or private property.

C23 The development must not involve any physical works that will exacerbate any of the coastal hazards defined in the NSW Coastal Management Act 2016.

C24 The precautionary principle should be applied to development which may pose serious or irreversible environmental damage to ensure that environmental degradation can be avoided,

remedied or mitigated. Development proposals shall include strategies to avoid or mitigate potential adverse environmental effects.

C25 Ensure that new buildings and foreshore infrastructure on the coast are positioned to avoid risk of damage from coastal processes and, where possible, avoid the need for physical structures to protect development from potential damage caused by coastal hazards.

2.2.6 Redevelopment of existing caravan parks and other existing short term accommodation facilities

C26 Redevelopment of existing caravan parks and other existing short term accommodation facilities must not result in opportunities to increase the overall number of caravans and/or other moveable dwellings.

C27 Redeveloped caravan parks sites shall only be used as short term (i.e. tourist accommodation) sites.

C28 No new permanent building shall be erected within Hazard Precinct 1.

2.3 Hazard Precinct 2

This part applies to any development on land located within Hazard Precinct 2. Council's online mapping website provides access to constraint mapping which is updated periodically.

Objectives

O1 To improve resilience to coastal hazards through building design (relocatable, structurally appropriate) which does not rely on coastal protection structures.

O2 To ensure there is no increased risk of coastal hazards to the development site or adjacent land.

O3 To enable use of land for temporary purposes which respond to the need to relocate in response to coastal hazards.

O4 To mitigate adverse impacts of development on the coastal environment and ensure development does not exacerbate coastal processes or hazards.

Controls

2.3.1 General

C1 The precautionary principle should be applied to development which may pose serious or irreversible environmental damage to ensure that environmental degradation can be avoided, remedied or mitigated. Development proposals shall include strategies to avoid or mitigate potential adverse environmental effects.

C2 Ensure that new buildings and foreshore infrastructure on the coast are positioned to avoid risk of damage from coastal processes and, where possible, avoid the need for physical structures to protect development from potential damage caused by coastal hazards.

C3 Any permissible development will be subject to a Coastal Risk Management Report.

C4 Development is permitted on private land subject to design by a professional engineer to accommodate future erosion and potential inundation from increased sea levels.

C5 Development in Hazard Precinct 2 must demonstrate that it has been designed to:

a. avoid or minimise exposure to immediate coastal hazards

b. provide for the safety of residents, workers or other onsite occupants from risks associated with coastal processes

c. not adversely affect the safety of the public off-site as a result of the development

d. not increase coastal risks to adjoining properties or properties in the vicinity of the site

e. ensure infrastructure, services and utilities on-site maintain their function and achieve their intended design performance

f. accommodate natural coastal processes including those associated with projected sea level rise

g. protect marine and terrestrial coastal ecosystems from development impacts

h. maintain or improve existing public beach, foreshore or waterfront access and amenity.

C6 Structural elements including foundations, footings and slabs for new buildings to be designed by a professional engineer.

C7 Basement car parking can be provided within Hazard Precinct 2 and must have all access, ventilation and any other potential water entry points at safe levels as determined by a professional engineer and a clearly signposted inundation free pedestrian evacuation route from the basement or bunded area separate to the vehicular access ramps.

2.3.2 Redevelopment of existing caravan parks and existing other short term accommodation facilities

C8 Redevelopment of existing caravan parks and other existing short term accommodation facilities must not result in an increase in the total number of sites.

C9 Redeveloped caravan parks sites shall only be used as short term (i.e. tourist accommodation) sites.

2.4 Beach protections works and vegetation management

This part applies to any development within a coastal hazard precinct proposing coastal protection works or benefitting from erosion protection offered by existing or proposed vegetation.

Objectives

O1 To ensure coastal protection structures are planned rather than reactive and considered in the context of the overarching coastline.

O2 To facilitate the retention and maintenance of foreshore vegetation.

Controls

C1 Coastal protection works may be permitted subject to the provisions of the Coastal Management Act, 2016.

C2 All vegetated dunes, whether existing or created as part of coastal protection measures shall be managed and maintained so as to protect the dune system from damage both during construction of the development and as a result of subsequent use during the life of the development. A vegetation management plan (VMP) is to accompany the application detailing how the dune vegetation will be managed during construction and maintained thereafter. The VMP is to be prepared by a suitably qualified person (i.e. ecologist).

C3 Wherever present, remnant vegetation shall be appropriately rehabilitated and maintained for the life of the development to stabilise the sand available as a buffer for future beach erosion. A vegetation management plan (VMP) is to accompany the application detailing how the vegetation will be managed during construction and maintained thereafter. The VMP is to be prepared by a suitably qualified person (i.e. ecologist).

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B5

Scenic Landscape Protection



1. Introduction

1.1 Purpose

This Section seeks to give effect to Tweed Scenic Landscape Protection Policy. Its purpose is to ensure that the Tweed's exceptional and unique scenic landscape qualities are recognised, and steps are taken to enable their identification, protection and enhancement, to the greatest extent practicable in the context of new policy, development or land use.

1.2 Application

This Section applies to all land in the Shire, unless specifically exempted under the Tweed Scenic Landscape Protection Policy.

2. Objectives and Controls

Objectives

O1 To ensure the Tweed's exceptional and unique scenic landscape qualities are recognised, and steps are taken to enable their identification, protection and enhancement

O2 To ensure public views and vistas of significant natural features or cultural landmarks are preserved or improved.

O3 To ensure development is situated and designed to complement and integrate with the surrounding landscape character.

O4 To maintain the scenic qualities through vegetation coverage.

Controls

C1 All development applications must address the Scenic Landscape Protection Policy unless specifically exempted under the Policy.

C2 Where required under the Policy, development applications must demonstrate consistency with the identified Landscape Character Unit narratives applicable to the subject site.

C3 Development consistent with the Landscape Character Unit narrative should demonstrate consistency in the Statement of Environmental Effects (SEE) prepared in accordance with Part 10 of the Policy.

C4 Development inconsistent with the Landscape Character Unit narrative must be accompanied by a Visual Impact Assessment (VIA) prepared in accordance with Part 11 of the Policy.

Landscape Character (as defined under the Tweed Scenic Landscape Protection Policy)

The distinct, recognisable and consistent pattern of physical elements within a landscape which, when combined, give a setting it's 'sense of place' and make one landscape character different from another.

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B6

Soil Management



1. Introduction

1.1 Purpose

The purpose of this Section is to provide development guidelines for the assessment of certain soil management matters, including contaminated land, acid sulfate soils and on-site sewage management.

1.2 Application

This Section applies to all land in The Tweed.

2. Objectives and Controls

2.1 Contaminated land

Objectives

O1 Protect public health and environmental values from contaminants occurring as a result of previous land uses.

O2 Remediate contaminated land to an acceptable level.

Controls

C1 Development sites must be assessed to determine the likelihood of contamination.

C2 If land is identified as being contaminated, or where information gaps exist for potential contamination, it must be demonstrated that it is suitable for development pursuant to *State Environmental Planning Policy (Resilience and Hazards) 2021* by meeting the following requirements:

a. Contaminated land investigations must be carried out by a suitably qualified person in accordance with the NSW Contaminated Land Guidelines, with a clear statement that the land is suitable without remediation or will be suitable after remediation.

b. Remedial Action Plans (RAP) must be carried out by a suitably qualified person in accordance with the NSW Contaminated Land Guidelines. RAPs must be provided before a determination can be issued.

c. All investigations must comply with Council's Contaminated Land Policy and include a Northern Rivers Contaminated Land Summary Table.

C3 Land excluded from development due to contamination is to be retained in the proponent's ownership.

Assessment of contaminated land – The *State Environmental Planning Policy (Resilience and Hazards) 2021* specifies the circumstances where an assessment of contaminated land is required and who can prepare this assessment.

2.2 Acid sulfate soils

Objectives

O1 Ensure that development and earthworks are informed by a thorough understanding and assessment of the site's soil classification for potential acid sulfates.

O2 Reduce the risk of environmental damage due to acidic runoff into drains and waterways as a result of development.

O3 Appropriately treat and manage exposed soil and soil stockpiles that result from earthworks.

Controls

C1 The development site shall be assessed for acid sulfate soils presence, and if present or potentially present, an appropriate management plan shall be prepared in accordance with the *Acid Sulfate Soils Management Guidelines* (ASSMAC, 1998).

C2 Development applications shall demonstrate compliance with s7.1 of Tweed LEP 2014.

2.3 On-site sewage management

Objectives

O1 Ensure that development (including subdivision) design adequately caters for best practice on-site sewage management (OSSM) systems.

O2 Minimise the possible impacts of OSSM system failure.

Controls

For subdivisions

C1 Applications must include a Site and Soil Evaluation Report that ensures that sufficient information is available to determine or confirm that individual lot or lot sizes and configurations are appropriate for the proposed OSSM. The report should be based on a minimum of four-bed dwelling capacity per lot.

C2 Subdivision layouts must show available effluent application areas identified for the proposal which are adequately sized to allow sustainable onsite wastewater management within the site and soil constraints of the lots and appropriate buffers to planned improvements and sensitive receptors.

C3 Where applicable, provide an OSSM layout plan/design that complies with *On-site Wastewater Management Guidelines* (April 2025, Office of Local Government) and Council's Onsite Wastewater Management Strategy.

C4 For subdivisions, ensure Minimum Lot Sizes are at least 4000m2 for advanced secondary treatment systems and 1 ha for primary treated effluent (e.g. Septic Tanks).

C5 Despite control C4 above, alternative lot sizes may be considered where robust, comprehensive, and independently verifiable evidence demonstrates full compliance with all performance outcomes and analysis of accumulative impacts of OSWMs proposed as part of the subdivision.

For development applications

C1 Development applications must include the following:

a. a site plan (to scale) showing proposed system location, land application area, trenching/drainage, buffer distances to buildings, boundaries, watercourses, environmentally sensitive areas

b. specifications of the proposed OSWM, including NSW Health certificate and design calculations

c. floor plans indicating number of bedrooms (including secondary dwellings, e.g., granny flats)

d. a wastewater site assessment/report, prepared by a qualified wastewater consultant, addressing site constraints and compliance with performance standards of the LG Regulation and the 2025 Guidelines.

C2 The OSWM design should comply with AS 1547 and AS/NZS 1546 (as applicable), the *Onsite Wastewater Management Guidelines* (April 2025, Office of Local Government) and Council's Onsite Wastewater Management Strategy.

C3 The minimum lot sizes are at least 4000m^2 for advanced secondary treatment systems and 1 ha for primary treated effluent (e.g. septic tanks).

C4 Despite Control C3 above, alternative lot sizes may be considered where robust, comprehensive, and independently verifiable evidence demonstrates full compliance with all performance outcomes.

2.4 Groundwater and dewatering

Objectives

O1 To ensure the development and earthworks are informed by a thorough understanding and assessment of the site's groundwater and potential requirement for dewatering.

O2 Reduce risk of environmental damage due to intercepting groundwater and proximity to natural waterway/sensitive areas such as wetlands and ground water dependant ecosystems.

O3 To appropriately assess the engineering and design requirements such as dewatering.

Controls

C1 Development that involves earthworks in areas with high groundwater vulnerability must include a groundwater investigation that clearly outlines if groundwater will be intercepted, an appropriate dewatering management plan must be prepared by a suitably qualified person where groundwater is likely to be intercepted.

C2 Where groundwater will be or is likely to be intercepted the investigations shall consider Council's *Dewatering in the Tweed Guideline*; and *Australian and New Zealand Guidelines for Fresh and Marine Water Quality* (ANZG 2018).

Compliance with Tweed LEP 2014 – Where applicable, development applications shall address Clause 7.2 Earthworks of the Tweed LEP 2014.

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B7

Rural Land



Placeholder for DRAFT B7 – Rural Land

Section B7 Rural Land
This chapter is in the drafting stage.

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Part C

Subdivision and Infrastructure

1. Introduction

1.1 Purpose

The purpose of this Part of the DCP is to facilitate subdivisions and infrastructure that:

1. is based on appropriate understanding of site opportunities and constraints
2. enables development that is sustainable and resilient to climate change
3. provides for a diversity of lot sizes that incorporate best practice passive design principles for the Tweed's sub-tropical climate
4. considers public safety and passive surveillance
5. delivers high-quality open space and public realm with an attractive, inclusive environment for the community to meet, engage and enjoy recreation
6. enhances the existing or desired future character of places
7. promotes physical health, mental wellbeing and social connection
8. protects and enhances the natural environment and areas of cultural heritage significance.

1.2 Application

This Part applies to all land with respect to the following development types:

1. subdivision of land
2. subdivision development
3. development applications involving infrastructure works.

> **Subdivision –** means the division of land into 2 or more parts and it includes registration of the plan of subdivision at the Land Titles Office. It includes the creation of lots in strata and community title subdivisions.

This Part of the DCP is to be read in conjunction with the Tweed LEP 2014, with particular reference to Part 4: Principal Development Standards. Provisions of the LEP prevail. Where a control requires a reference to a separate policy, design specification, Council plan and the like, the Applicants are required to address these in order to achieve compliance with the DCP.

2. Objectives and Controls

2.1 Site Analysis

Site analysis – This section considers site analysis as a best practice approach to good design, focused on understanding the character and attributes of the site, which in turn maximises good planning outcomes. Site analysis is to be done with reference to constraints mapping. When early site analysis identifies several constraints as highlighted by the mapping, a pre-DA Development Assessment Panel meeting is recommended.

Objectives

O1 To ensure subdivision design is informed by a thorough understanding of land opportunities and constraints, including environmental considerations, heritage, local climate and surrounding built environment context.

Controls

C1 A site analysis plan must be submitted as part of the Development Application.

C2 A site analysis plan must be made with reference to prevailing constraints affecting the development site, including but not limited to:

a. land of ecological significance inclusive of ecological setbacks
b. scenic amenity values, where applicable
c. waterways, water bodies, riparian areas and riparian vegetation
d. flood liable land
e. whether the site contains or adjoins a heritage item or heritage conservation area
f. bush fire prone land
g. contaminated land
h. acid sulfate soils
i. steep land.

Constraints mapping – Council's online portal provides access to development constraints mapping which is updated periodically.

Constraints mapping is useful for the early identification of development opportunities and challenges. Applicants are advised that not all development constraints are displayed through Council's online mapping service and that site values still need to be validated through appropriate site assessments and specialist reports where necessary.

C3 A site analysis plan is to consider Aboriginal Cultural Heritage Mapping, as available through Constraints Mapping. If the subject site is mapped as Predictive or Known Place of cultural significance, an Aboriginal Cultural Heritage Assessment Plan is to be undertaken as per Council's Aboriginal Cultural Heritage Management Plan.

C4 A site analysis plan is to demonstrate a thorough understanding and assessment of:

a. direction of solar paths in summer and winter
b. prevailing winds
c. weather patterns
d. urban heat risk
e. shading influences.

C5 Where relevant, a site analysis plan is to demonstrate a thorough understanding of the site's surrounding built environment context, including street network connectivity, pedestrian and cycling connections and opportunities for future development on adjoining allotments.

C6 Subdivision applications for boundary adjustments subject to Section 4.1C of the Tweed LEP 2014 are exempt from controls (1)-(5) above.

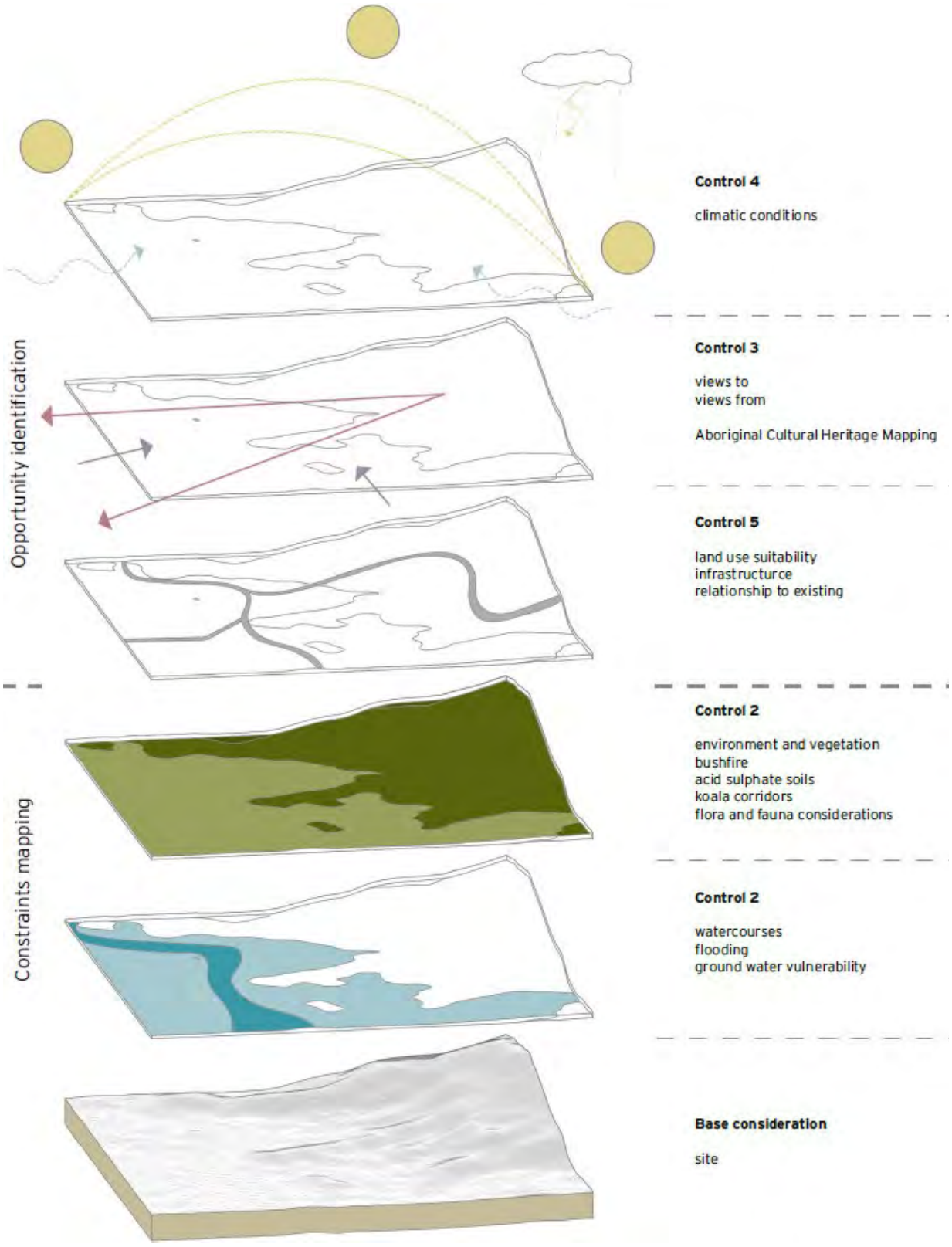


Figure C.1: Site analysis considerations when establishing development approach

2.2 Structure planning and regional context

Objectives

O1 Align large-scale subdivisions with strategic planning and urban design framework.

O2 Avoid fragmentation of land needed for long-term urban expansion or economic productivity.

O3 Address social and economic needs which require a regional focus, including provision for a variety of lot sizes enabling housing diversity.

O4 Demonstrate essential infrastructure connectivity, including the interface with surrounding built environment.

O5 Encourage more work, school and local trips to be made by active travel through the provision of safe, direct and connected movement corridors for pedestrians, cyclists and micro-mobility users.

Controls

C1 Subdivision of land in identified growth areas or where required by Council in accordance with the pre-lodgement advice is to be accompanied by a structure plan and regional context analysis.

Growth area – includes land identified as "investigation area" in the regional plan, or identified for future urban development under Council's growth management, housing and employment strategy.

C2 The structure plan is to illustrate and justify the following considerations:

a. consistency with the purpose of this Part (**refer to Chapter 1.1 of this Part**)

b. site analysis outcomes (**refer to Chapter 2.1: Site Analysis**)

c. indicative land use pattern

d. infrastructure, open space and interface with the surrounding built environment

e. site connectivity including active travel access to schools, shops and other key attractants, provided with consideration of inexperienced/ novice active travel users

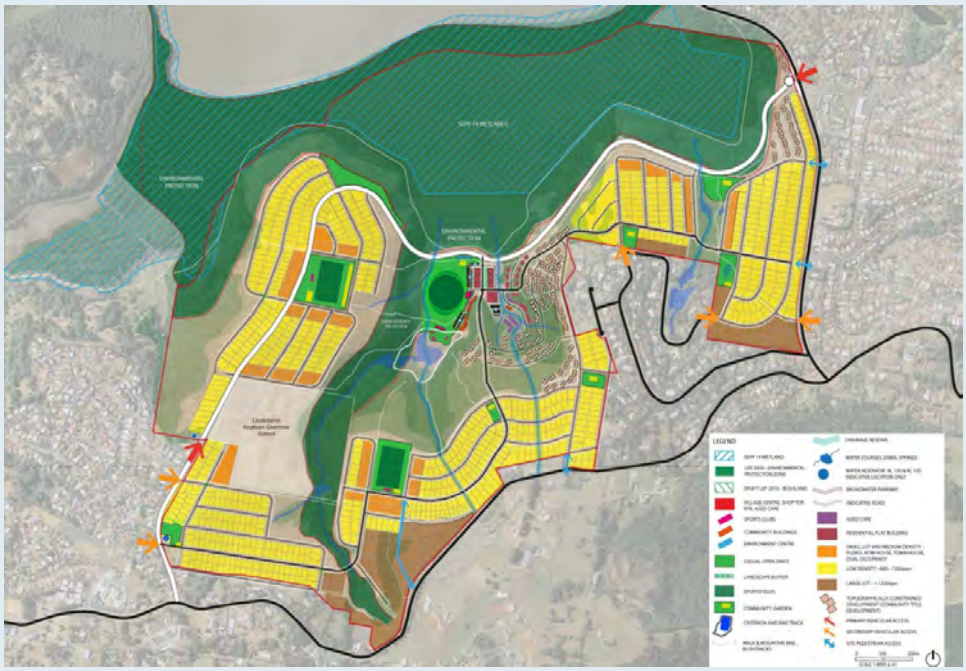
f. protection of land of ecological significance including application of ecological setbacks in accordance with **Section B1: *Biodiversity and Habitat Management***

g. land use conflicts including application of the NSW Government guidelines *Buffer Zones to Reduce Land Use Conflict with Agriculture – An Interim Guideline.*

C3 Regional context analysis is to demonstrate consistency of the subdivision application with the broader strategic planning framework applying to the local area, including:

a. Character Statements applicable to the area
b. applicable regional plan
c. *Tweed Local Strategic Planning Statement*
d. any applicable and endorsed growth management strategy.

Structure Plan – provides high-level guidance and direction for future development. The image below is provided as an example of a structure plan that appropriately defines development footprint and land uses, including different residential typologies, open space, areas for environmental conservation and movement network, including connectivity with adjacent areas. This image is provided as an example, and Council acknowledges that alternative approaches to structure planning can be provided.



2.3 Environmental considerations

2.3.1 Ecological significance

Objectives

O1 Deliver upon the framework to avoid, minimise and offset the impacts of proposed development and land use on biodiversity, consistent with the Biodiversity Conservation Act 2016 and Council policy framework.

O2 Integrate the environmental attributes and values of the site into planning and design.

Controls

C1 Land of ecological significance is to be protected and managed in accordance with **Section B1: *Biodiversity and Habitat Management*** including the application of appropriate buffers or ecological setbacks.

C2 Land recognised as core koala habitat within a Koala Management Area is to be identified, protected and managed in accordance with the approved Tweed Coast Comprehensive Koala Plan of Management.

C3 Where the subdivision is likely to cause a significant impact on threatened species, population or ecological communities or their habitats, subdivision design should be based on the avoid, mitigate and offset hierarchy.



Refer to Section B1 BIODIVERSITY AND HABITAT MANAGEMENT in this DCP for protection and management of land of ecological significance.



Land of ecological significance – means one or more of the following:

a) biodiversity elements (red flags) identified in DCP B1 and as shown in Schedule 1 of that Part; and

b) core koala habitat as defined in the Tweed Coast Comprehensive Koala Plan of Management; and

c) land on the NSW Biodiversity Values Map under Part 7 of the Biodiversity Conservation Act 2016.

2.3.2 Landscape and visual character

Objectives

O1 Ensure that the subdivision design, including lot configuration and pattern, acknowledges, protects and, where possible, enhances the visual elements and qualities of the Tweed's landscape character and scenic values.

Controls

C1 Subdivision design that involves subdivision works resulting in changes to ground level is to demonstrate consistency with Parts 4 and 7 of the *Tweed Scenic Landscape Protection Policy*.

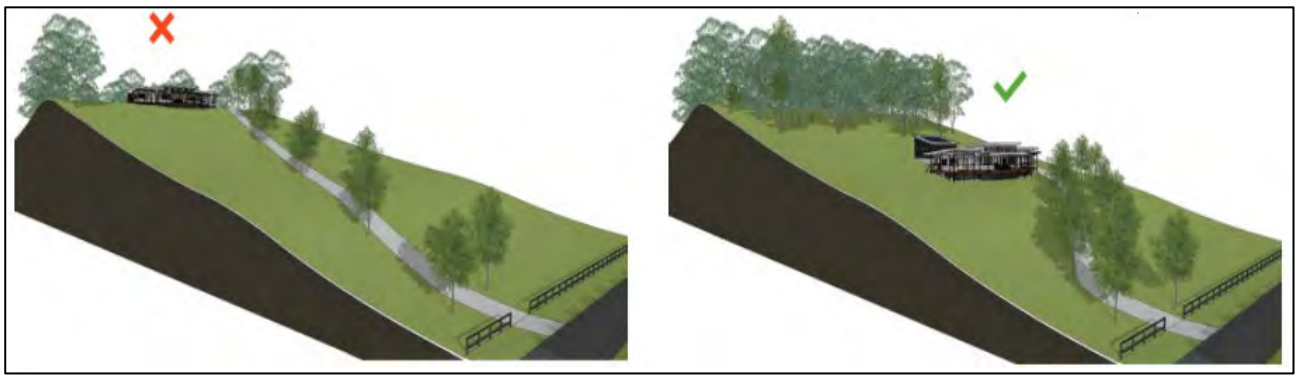


Figure C.2: Council's *Scenic Landscape Protection Policy* seeks to avoid siting of buildings or structures on ridgelines and other highly visible sites (**refer to control C1 above**).

2.3.3 Waterways

Objectives

O1 Minimise impacts of development on waterways, riparian areas and their buffers.

O2 Preserve fish and aquatic habitat without creation of barriers to fish passage.

O3 Provide publicly accessible foreshore reserves.

Controls

C1 Waterways, water bodies, riparian areas and riparian vegetation are to be identified, protected and managed within any subdivision proposal in accordance with **Section B1: *Biodiversity and Habitat Management***.

C2 Aquatic environments, natural watercourses, riparian buffer zones and foreshores within the development site must be dedicated to the public, where required by Council.

C3 All works required under management plans approved through the subdivision process must be completed, or alternate arrangements put in place, to the satisfaction of the General Manager or their delegate prior to dedication to Council.

C4 Where subdivision is proposed in the riparian buffer, applications are to address:

a. impacts on the ecological values of the riparian zone, waterway and aquatic habitat

b. impacts on the current and future connectivity of the riparian zone habitat

c. measures to minimise adverse impacts based on the "avoid, mitigate and offset" hierarchy.

C5 Riparian buffer zones shall be revegetated and measures put in place to minimise transverse crossing through the riparian buffer.



Figure C.3: Revegetated riparian zones on private land in Hundred Hills, Murwillumbah (**refer to control C4 above**).

2.3.4 Flood liable land

Objectives

O1 Protect people and property from existing and future flood risk in accordance with a risk management approach, considering the full range of flood events, up to and including the probable maximum flood (PMF).

O2 Create flood resilient communities, with appropriate long-term floodplain management measures in place.

O3 Maximise the use of flood-free land (above PMF level) for residential and other high value land uses in preference to filling of the floodplain.

Controls

C1 Development sites must be assessed to determine if they are flood liable, based on the relevant flood study mapping and provisions of **Section B3: *Development of Flood Liable Land***.

C2 Land that is, and will remain, flood liable must be excluded from uses that are incompatible with inundation and/or isolation due to flooding. This assessment must consider all floods up to the probable maximum flood (PMF). Residential subdivision is considered incompatible with inundation unless adequate provision for self-sufficient emergency response, such as evacuation by high level evacuation routes, is provided in accordance with **Section B3: *Development of Flood Liable Land***.

C3 Filling land to provide flood immunity and/or high level evacuation route(s) must demonstrate consistency with **Section B3: *Development of Flood Liable Land***.

C4 Design of fill must take into account prevailing site levels within the development site and adjoining land. Perimeter drainage systems are required to be provided within the development site to ensure that filling does not result in significant adverse flood or drainage impacts on adjoining land.

C5 Subdivision for residential purposes on land zoned RU1 Primary Production or RU2 Rural Landscape must substantiate that a nominated residential building platform on each lot has flood immunity at least Defined Flood Event level specified in **Section B3: *Development of Flood Liable Land*.**



Refer to Section B3 Development of Flood Liable Land in this DCP for further information on management of flood liable land.



Adverse impacts – In context of flood liable land, "adverse impacts" could relate to the redirection of flow, increased flood levels, increased flood velocities, increased duration of inundation, increased flood hazard or a combination of these factors. These impacts may vary for floods of different intensity and duration.

2.3.5 Local climate

Objectives

O1 Create lot layouts that allow future housing to minimise non-renewable energy use and be appropriate for the climatic conditions.

O2 Achieve development that harnesses and enjoys the sub-tropical climate by maximising access to sunlight and prevailing breezes, and provides shade and weather protection, resulting in minimal reliance on artificial or mechanical systems.

O3 Enhance amenity, comfort and wellbeing by designing private and public spaces to be responsive to the local sub-tropical climate.

Controls

C1 Lot layout and dimensions must maximise opportunities for reducing overheating in the summer through the following measures:

a. The built form is to achieve north-facing living spaces (internal or external), and to minimise south-western aspect living spaces.

b. Where possible, streets and the long axes of lots shall be aligned north-south and east-west, within the range N20°W to N30°E, or E20°N to E30°S.

c. The 'long' street of a block shall be aligned north-south, in the absence of other site influences.

d. North-facing slopes improve opportunities for solar access; small lots are therefore best suited to north-facing slopes with gradients of less than 15%.

e. Larger lots are best suited to south-facing slopes or areas where solar access is poor.

f. East-west orientated lots shall be designed to prevent undue shadow effects on the lot to the south and maximise opportunities for north-facing private open space.

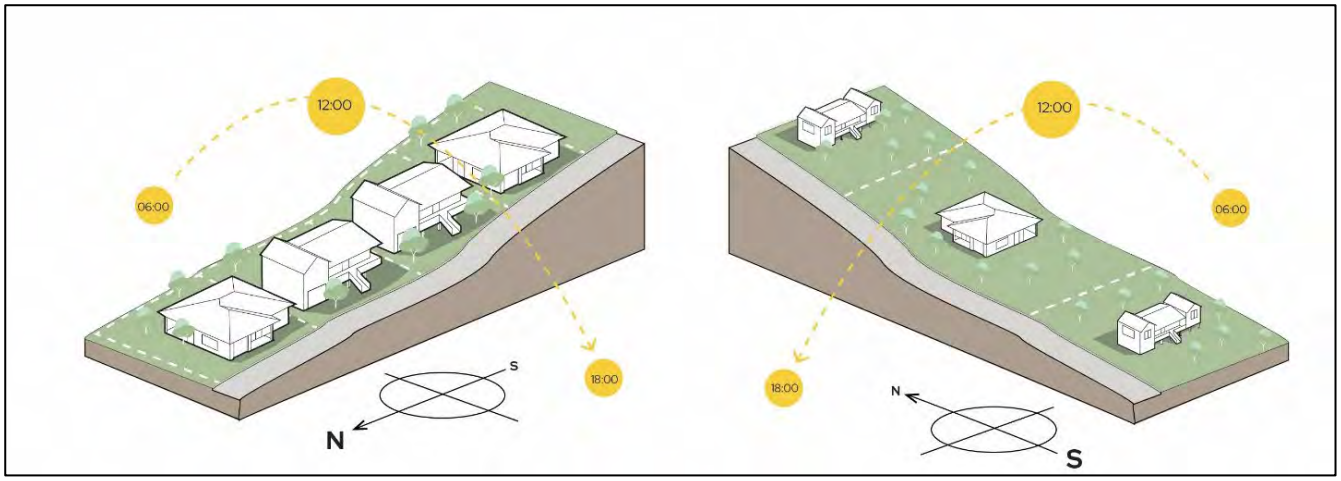


Figure C.4: Solar access considerations (**refer to controls C4 and C5 above**)

2.3.6 Heritage

Objectives

O1 Conserve the cultural heritage of Tweed Shire and ensure that development does not impact the significance of place of heritage significance, heritage items and conservation areas.

O2 Avoid or minimise and mitigate the impacts of subdivision development on cultural heritage through subdivision design.

O3 Implement Council's *Aboriginal Cultural Heritage Management* Plan (ACHMP).

Controls

C1 Where the land subject to the subdivision affects a heritage item or heritage conservation area, provisions of Section E1: Heritage shall be applied.

C2 Where relevant, an application is to demonstrate compliance with the management of heritage places, sites and items in accordance with the requirements of the Tweed LEP 2014, *Aboriginal Cultural Heritage Management* Plan and/or due diligence requirements.

Subdivision affecting land with identified heritage values – Council highly recommends a Development Assessment Panel (DAP) meeting where proposed subdivision affects cultural heritage sites including heritage items, heritage conservation areas and predicted or known Aboriginal Cultural Heritage sites. Refer to Tweed LEP 2014 Heritage Map and Council's online mapping.

2.3.7 Earthworks

Objectives

O1 Produce a landform suitable for the proposed development while minimising large-scale earthworks and changes to the natural landform, unless required by other controls.

O2 Design subdivisions and associated infrastructure to respond to and take advantage of natural topography and drainage systems, rather than modify the topography to suit the development.

O3 Ensure the long-term geotechnical stability of land, structures and infrastructure.

O4 Minimise the impacts on the environment, infrastructure and amenity from material haulage.

O5 Ensure there is no risk from subsidence or landslip either on the site or from land off the site, and either from an existing risk or a risk that will result from the proposed subdivision works.

Controls

C1 Any alterations to natural landform must not create adverse impacts on other land, persons or public infrastructure.

C2 Development proposals for sites that are at risk from landslip or subsidence must:

a. exclude the land at risk from the land suitable for development

b. demonstrate that, regardless of the risk, the land is suitable for intended use or

c. demonstrate that remediation works will eliminate the risk.

C3 Alterations to the natural landform must minimise the overall scale of earthworks and preserve levels at site boundaries (**refer to Figure C.5 below**).

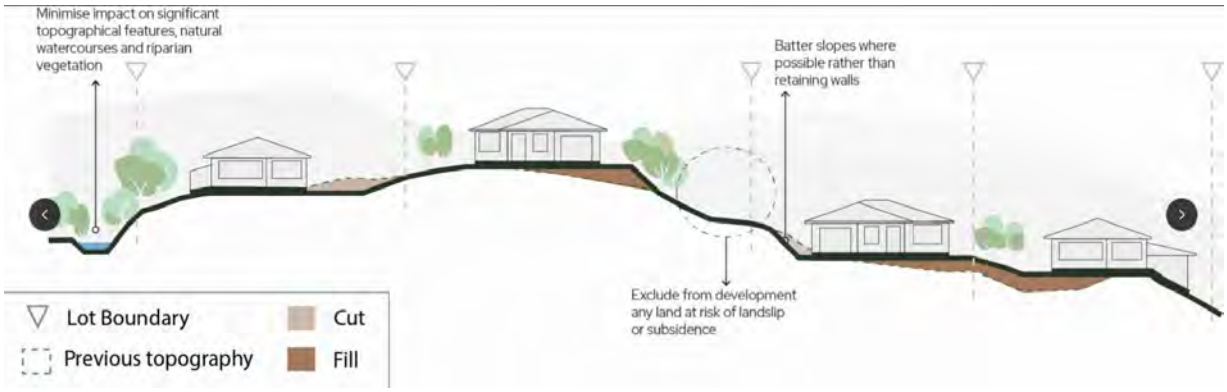


Figure C.5: Alterations to natural landform minimising the overall scale of earthworks

C4 Alterations to natural landform must minimise impacts on significant topographical features, natural watercourses and riparian vegetation.

C5 Wherever possible, alterations to natural landform should implement batter slopes rather than retaining walls.

C6 Proposal to alter natural landform must preserve cross boundary drainage conditions and ensure runoff from upstream or upslope land is not impeded.

C7 Proposal to alter natural landform must classify any material to be excavated as cut, and its intended destination as fill (on or off site).

C8 Proposal to alter natural landform shall identify the quantity and classification of fill to be imported to the site and its source (on or off site).

C9 Proposal shall achieve compliance with Development Design Specification D6 – Site Regrading.

C10 All development applications for subdivision involving earthworks must include an Erosion and Sediment Control Plan prepared in accordance with Development Design Specification D7 – Stormwater Quality and its Annexure A.

C11 For sites that are flood liable, landforming design must comply with the requirements of **Section B3*: Development of Flood Liable Land***. In cases of inconsistency, Section B3 takes precedence.

C12 Consistently with Development Design Specification D6, D6.05, Clause 3, applications involving significant landforming, that is where more than 10%, or more than 1ha, of the gross site area is to have surface levels changed by more than 5m for residential, or where earthworks exceed an average of 10,000m^3 per ha, must demonstrate consistency with the objectives and controls of this Section and also must:

a. assess the impacts and benefits of the proposal to all impacted persons and the general public
b. provide measures to compensate for and minimise any net adverse impacts.

C13 For cut and fill on employment-related land uses, refer to **Section D4: *Employment*,** Chapter 2.2.3.

2.3.8 Bush fire prone land

In addition to the following, further reference is to be made to Development Design Specification D10 – Bushfire Protection.

Objectives

O1 Manage and mitigate bushfire risk in subdivision design.

O2 Minimise long term maintenance for bushfire protection assets and set clear responsibilities for their ongoing management.

O3 Minimise the impacts of ongoing bushfire management on areas of high environmental value.

Controls

C1 Where assessment against the bushfire risk is required, applications must be accompanied by a Bush Fire Assessment Report prepared consistently with the in-force version of *Planning for Bushfire Protection* guidelines.

C2 The Bush Fire Assessment Report must consider impacts on land of ecological significance including any ecological setbacks, and address these in accordance with Part B1 Biodiversity and Habitat Management and the Tweed Coast Comprehensive Koala Plan of Management (where applicable).

C3 Fire protection measures, including APZs, fire trails and perimeter roads, must be provided wholly on private land and be capable of being maintained by owners and users.

C4 Council will not accept ownership or maintenance responsibility for APZs particularly within public open space, except where the APZ consists of a standard road reserve in accordance with Development Design Specification D1 – Road Design.

C5 Where applicable, Section 88B restrictions are to be consistent with the general terms of approval (GTA), issued by the NSW RFS.

Integrated development – Subdivision of land for residential or rural residential use in bush fire prone land is "integrated development" and requires authorisation under s100B of the Rural Fires Act 1997 in respect of bush fire safety.

Suitably qualified person – Councils have the primary role in assessing most development applications on bushfire prone land. Council will rely on a suitably qualified person to undertake the assessment of the bush fire risk.

Council considers a Bushfire Planning and Design Certified Practitioner (BPAD) who has been accredited by the Fire Protection Association Australia (FPA) as a suitably qualified person.

2.3.9 Stormwater management

In addition to the following, further reference is to be made to Development Design Specification D5 – Stormwater drainage (v1.4).

Objectives

O1 Ensure that subdivision development does not have adverse effects on the quality or quantity of flows of water onto adjacent land or into waterways, wetlands or environmental areas during construction and post-completion.

O2 Maximise natural designs of major drainage systems to promote infiltration, vegetation, provision of linear open space and delay flow passage.

O3 Minimise long term maintenance requirements for stormwater drainage infrastructure.

O4 Preserve and utilise existing drainage patterns and integrate natural and man-made water cycles and catchment systems.

O5 Encourage stormwater recycling for non-potable use.

O6 Ensure that streets operate adequately during major storm events and provide for public safety.

O7 Identify opportunities to co-locate stormwater drainage facilities adjacent to open space.

O8 Minimise damage to properties and inconvenience to residents from stormwater.

Controls

C1 A Stormwater Management Plan shall be submitted with all development applications for subdivision, addressing the requirements of this section.

C2 Subdivision design is to incorporate the principles of Water Sensitive Urban Design (WSUD**)** as specified in Development Design Specification D7 - Stormwater Quality.

C3 Where relevant, subdivision design shall provide major storm drainage systems with capacity to convey the 1% AEP flows in the public domain in a manner that is safe for persons, vehicles and properties, as per Development Design Specification D5 – Stormwater Drainage Design.

C4 Where relevant, subdivision design shall provide minor storm drainage systems with adequate capacity to convey the design storm under normal conditions without blockage or undesirable ponding for prolonged periods, in accordance with Development Design Specification D5.

C5 Subdivision drainage systems should minimise runoff, delay its passage and where possible accommodate it within the landscape of the subdivision by utilising techniques such as reuse, detention, retention and infiltration.

C6 Drainage and detention systems must be designed to ensure peak flow rates do not cause adverse impact on downstream aquatic environments, watercourses, wetlands and properties.

C7 'Natural' channel designs should be adopted for significant, non-tidal, off-street open drains with attributes such as a meandering path, pool and riffle zones, use of natural materials and riparian or floodplain vegetation.

C8 Natural watercourses and their alignment should be retained, including riparian vegetation. Proposals to adjust water course alignment and/or to convert natural watercourses into artificial drains will only be considered if such proposals are part of a site management plan that demonstrates how the proposal will result in a net enhanced environmental outcome and will improve the urban structure, to the satisfaction of Council and all applicable State agencies.

C9 Permanent stormwater quality treatment must be in accordance with the Tweed Urban Stormwater Quality Management Plan and Development Design Specification D7 – Stormwater Quality.

C10 The area used for stormwater quality facilities in public open space areas will not be credited towards open space commitments unless where compliant with the development standards for open space in **Chapter 2.8: *Open Space Network*.**

C11 Development applications where stormwater management facilities are located within ecologically significant areas or associated buffers are to be consistent with **Section B1: *Biodiversity & Habitat Management***.

C12 All development applications for subdivision involving earthworks must include an Erosion and Sediment Control Plan prepared in accordance with Development Design Specification D7 and its Annexure A.

C13 Stormwater drains and management facilities in the public realm shall be designed to minimise risks to public safety, without the need for safety barriers.

C14 Stormwater infrastructure shall not be located on land of ecological significance nor be located within associated ecological setbacks.

C15 Where a subdivision site contains watercourses and/or drains that are sourced externally, provision must be made for conveyance of stormwater (including the 1% AEP event) that does not adversely impact on upstream or downstream watercourses or property.

C16 The subdivider of land receiving external stormwater runoff is not required to treat and remove externally derived pollutants and nutrients.

C17 Stormwater runoff and drainage must only be discharged from a subdivision at a 'lawful point of discharge'. This must be on, or immediately adjacent to, the development site and may be:

a. a natural watercourse or waterway to which the site naturally drains, or

b. a 'lawful point of discharge' agreed to by Council.

C18 Where no acceptable point of discharge exists, the subdivider must either construct the necessary connecting drainage or acquire and dedicate to Council connecting reserves or easements to provide a legal continuity to an offsite lawful point of discharge.

C19 In the case of an inconsistency arising between this part and **Section B3*: Development of Flood Liable Land***, the latter takes precedence.

2.3.10 Acoustic design

Objectives

O1 Ensure that subdivision design adequately caters for noise management, without undue reliance on structural acoustic barriers or restrictive building designs.

Controls

C1 Where applicable, subdivision applications shall have regard to *Noise Guide for Local Government 2023 and* be *accompanied by* an acoustic report prepared by a suitably qualified and experienced acoustic consultant that includes noise associated with the proposed subdivision and acceptable performance criteria for any future proposed sensitive developments (such as setting acceptable noise levels for inside residential dwellings). The report shall also outline measures to minimise and mitigate potential noise impacts on surrounding occupiers of land by subdivision works. The report should include an attached plan of management showing a noise complaint management procedure. Examples of where an acoustic report will be required (but not limited to) include where the subdivision will be impacted by:

a. busy roads - arterial, designated or classified roads identified in sections 2.119 & 2.120 of the State Environmental Planning Policy (Transport and Infrastructure) 2021

b. aircraft Noise - ANEF contour identified in Clause 7.9 Tweed LEP 2014. (ANEF contours, available on Council's website)

c. industrial and commercial uses.

C2 Subdivision layouts abutting external noise sources should provide lots capable of accommodating non-residential uses, which provide a shield to residential uses behind.

C3 Lots abutting major roads and other noise sources should make use (in order of preference) of natural topography to prevent line of sight to noise sources, acoustic fences or barriers, to reduce noise to acceptable levels, without compromising neighbourhood amenity.

C4 Acoustic fences are to be located on lot boundaries and retained in private ownership.

C5 Acoustic fences or barriers must be designed to take into account the passage of local stormwater and floodwater and significant vegetation so as not to create unacceptable impacts.

C6 Lots created with acoustic design requirements during development stages shall have appropriate notations under s88B of the Conveyancing Act placed on land titles.

2.3.11 Lighting design

Objectives

O1 To ensure safe and efficient public lighting.

O2 To mitigate the effects of artificial light on wildlife and ecosystems.

Controls

C1 Lighting of roads and other public spaces shall be designed appropriately to the locality and in accordance with Australian Standard *AS/NZS 1158:2020 Lighting for Roads and Public Spaces* and any relevant street lighting service agreements between council and the service provider.

C2 Lighting for playing / sports fields shall be designed in accordance with Australian Standard *AS 2560:2018 Sports Lighting Part 1: General Principles*

C3 All public lighting shall be designed with consideration for the *National Light Pollution Guidelines for Wildlife Appendix A: Best practice lighting design*. Specifically, development shall:

a. only use artificial lighting for specific and defined purposes, and only in the required location to light the intended object or area

b. use adaptive controls to manage light timing, intensity and colour

c. use the minimum amount of light needed for the activity

d. use non-reflective, dark-coloured surfaces

e. use lights with reduced or filtered-out blue, violet and ultraviolet wavelengths.

C4 Where public land adjoins an Environmental Zone as defined in the Tweed LEP 2014, light sources with blue-rich spectral power distributions shall be avoided. Light sources with a correlated colour temperature of 3000K or less shall be used unless where Council is satisfied that a higher colour temperate is required for safety reasons. For all lighting, including on sports fields, while taking account of this policy, public safety takes priority.

C5 Development that is likely to result in significant risk to threatened species for which artificial light has been demonstrated to affect behaviour, survivorship or reproduction, as determined by Council, must include a site-specific risk assessment and management plan consistent with the *National Light Pollution Guidelines for Wildlife*.

Sports fields – Sporting facilities have high levels of human activity and require appropriate lighting for play and broadcast. Sources of up to 5700K (daylight) can satisfy end user preferences and when combined with the principles obstructive light mitigation, adverse effects can be substantially mitigated.

2.3.12 Biting midge and mosquito controls

Objective

O1 Provide controls guiding residential and tourist development proposed in proximity to identified biting midge and mosquito breeding areas.

Controls

C1 Application for subdivision for residential or tourist development affecting land adjacent to, or in proximity to, mapped biting midge or mosquito breeding areas (refer to Council's web-based mapping) shall include:

a. Biting Midge and Mosquito Impact Assessment and Management Plan, prepared by a suitably qualified and practicing environmental consultant that considers information on breeding areas and potential vectors of disease

a. opportunity for an open space buffer between insect breeding areas and habitable structures

b. filling of land to provide flood immunity that considers measures to minimise impact of surrounding drainage systems

c. roadway embankment construction that is designed to eliminate any standing water impoundment or redirection of water flows into potential mosquito breeding areas

d. landscape layout and vegetation species that are selected to minimise insect harbourage and corridors

e. stormwater drainage that is designed to avoid silt accumulation and be free draining

f. stormwater discharge from drains into waterways that is designed to avoid habitat changes if organically enriched drainage is directed into mangrove or wetland areas

g. siting and design of private outdoor areas that considers the dominant prevailing winds that may distribute the insects.

Suitably qualified person – A suitably qualified person in this Section is considered to be a practicing Hydrogeologist/ Environmental and/or Engineering Consultant with experience in Groundwater Investigation and Dewatering Management.

2.4 Site design: lot layout

Objectives

O1 To ensure lots are provided with sufficient area and dimensions to enable efficient siting and construction of future development, landscaping, canopy cover, vehicle access to public road, parking and utility servicing.

O2 To ensure density, location and arrangement of lots respond to community and economic needs.

Controls

C1 The size of any lot resulting from a subdivision must not be less than prescribed under the Tweed LEP 2014.

C2 Lots should be orientated to front streets and roads in order to provide good streetscape amenity and surveillance, and to facilitate work from home opportunities.

C3 All allotments created by the subdivision must have frontage to a public road reserve.

C4 Each lot shall have feasible driveway access from a public road, in accordance with Council's Driveway Access to Property – Design Specification policy.

C5 Minimum layout requirements for lots suitable for residential development are provided in Section D1, Section D2 and Clause 4.1D of the Tweed LEP 2014.

C6 Lots fronting ecologically significant areas and their buffer zones are to be avoided and subdivision design should provide road frontages to these areas wherever possible.

C7 Truncations of minimum 3mx3m should be provided on corner lots.

C8 Residential lot widths should be suited to provision of car parking, including opportunity for on-street parking and driveway access. Rear lane may be required to cater for small lots.

C9 On residential streets with vehicle volumes greater than 3,000 vpd, lot layout must ensure that vehicle egress will not involve reversing into the street.

C10 Residential lots are not to have primary frontage or driveway accesses to arterial roads with vehicle volumes greater than 10,000 vpd.

C11 Where access is on a right of way over another property, the maximum number of allotments that may share in this arrangement is 5 and the following standards shall apply (**refer to Table C.1 below**):

Table C.1

Benefited properties	Standard of access	Width of right of way
1	3m minimum pavement plus controlled drainage	Minimum 4.0m., pavement width and width required for earthworks, batters, retaining walls, longitudinal drainage and services
2 (or reciprocal)	As above plus provision for passing bays	As above
3 to 5	4.5m minimum pavement	As above

C12 Battle-axe lots:

a. must only be used where they can achieve adequate amenity for residents and neighbours

b. must not be used for multi dwelling housing, except for strata or community title subdivision

c. must not be further subdivided to create new lots

d. shall comply with Development Design Specification D1- Road Design for the aggregate access leg

e. must not include the area of handle (e.g. driveway length) when determining minimum lot sizes

C13 Subdivision of land in E3 and E4 zones shall be designed to provide for a sensitive transition without creating land use conflicts where abutting or across streets from residential lots.

C14 Lots intended for commercial premises should be provided with vehicular access from a rear lane or secondary frontage. Access from the primary frontage is not encouraged unless it can be integrated safely with the pedestrian network.

C15 A minimum kerb length of 6.0m is to be provided between driveways (including to neighbours' driveways) to accommodate at least one on street parked vehicle.

2.5 Site design: movement network

Objectives

O1 Provide an integrated road and pathway network for the safe, enjoyable, equal and efficient movement of pedestrians, cyclists and drivers.

O2 Ensure future development advances the uptake of walking, cycling, e-mobility and public transport.

O3 Optimise the use of arterial routes by ensuring they will operate effectively at peak times.

O4 Enable passive surveillance of streets and footpaths by residents.

O5 Design streets and intersections to control traffic speeds to appropriate limits.

O6 Ensure connectivity external to the site and to the region, including provisions for future development expansion.

O7 Provide a street layout that is sympathetic to the natural landform and does not require broad scale landform changes in order to meet engineering specifications.

O8 Provide a street layout that is sympathetic to environmental values, does not have significant adverse impact during construction, and minimises ongoing impacts such as fauna strike.

Controls for public streets and roads

C1 Subdivision design is to incorporate a public road hierarchy as identified in Development Design Specification D1 - Road Design.

C2 Streets shall be provided in a grid type network, which curves with the site topography.

C3 Adequate high level flood evacuation routes shall be incorporated into the street and pedestrian networks in accordance with **Section B3: *Development of Flood Liable Land***, where applicable.

C4 The street layout shall be responsive to the site analysis by avoiding, where possible, loss of vegetation and considering practical, low maintenance options for fauna sensitive road design.

C5 Street layout is to enable active development frontages. Rear laneways, where required, are to ensure adequate natural surveillance.

C6 The design of each street should convey to the user its primary function, character and identity, and encourage appropriate driver behaviour.

C7 Public streets and roads shall incorporate fauna sensitive road design measures where necessary in accordance with **Section B1: *Biodiversity and Habitat Management*.**

C8 Local streets are to be designed to:

a. be pedestrian friendly with legible walkability

b. support short trips for local traffic moving within and between neighbourhoods

c. discourage through-traffic

d. be consistent with **Section E4: *Access and Parking*** and Driveway Access to Property – Design Specification

e. take into account the needs of cyclists through the design of any slow points including road narrowings

f. include landscaping for shading, to enhance the local character and reduce urban heat in accordance with Chapter 2.3 of this Section.

C9 Subdivision perimeters should be designed to provide a relatively continuous street frontage.

C10 Individual driveway accesses are generally not supported along arterial roads. Service roads with frontage development should be provided along arterial routes wherever possible.

C11 Subdivision designs that create allotments with a frontage solely to a laneway need to demonstrate adequate visitor parking, postal and garbage servicing and landscaping.

C12 Street landscaping must demonstrate compliance with **Chapter 2.6: *Landscaping***, within this Section.

C13 Connected street networks are preferred, with cul-de-sacs considered only when topographical, environmental, or other site-specific constraints prevent through connection.

C14 Despite control C13 above, cul-de-sacs can be supported on land zoned R1 General Residential and R2 Low Density Residential (refer to Development Design Specification D1 - Road Design, 1.09 Clause 5) if they:

a. are part of a connected grid-like street layout

b. are necessary due to constrained land

c. can be seen as a no through road from the street junction

d. include linking access for pedestrians and cyclists

e. demonstrate compliance with the turning path requirements for service vehicles

f. (when affected by bushfire hazard) are not more than 200m in length, incorporate a minimum 12m outer radius turning circle, and are sign posted as a dead end.

Controls for pathways, cycling and micromobility

C15 Pathways shall be designed and constructed in accordance with Development Design Specifications D1 and D9.

C16 Greenfield development is to include natural shading of all active transport routes.

C17 Pathways shall be designed and located taking into account pedestrian amenity, sun and shade, postal deliveries and likely use patterns.

C18 Pedestrian crossings of roads should be provided at-grade wherever practical. Grade separated road crossings (overpasses / underpasses) should only be used where topography can be used to advantage and adjacent development gives good surveillance.

C19 Cycleway infrastructure shall be designed to cater for a variety of users and speeds, including inexperienced/novice users and emerging forms of micromobility.

C20 Cycleway infrastructure must be compatible with the route network in S94 Developer Contribution Plan No.22 – Cycleways.

C21 Cycleways should be designed with sufficient width and minimal horizontal deflections to cater for expected growth in ridership and emerging forms of micromobility.

C22 In residential areas where projected traffic volume is less than 2,000 vehicles per day cycling should generally be on-road, shared with cars. The local street network should provide a permeable network of low volume, low speed routes for cyclists to promote cycling and micromobility. Where practical, provide a continuous local street system for cyclists and micromobility parallel to arterial streets.

C23 Shared use paths shall be designed in accordance with Development Design Specification D9.

C24 Shared zones shall be designed to enable pedestrians and vehicles to share the same pavement safely, such that pedestrian takes precedence over ease of vehicle movement.

C25 Where public lighting is likely to affect a threatened species for which artificial light has been demonstrated to affect behaviour, survivorship or reproduction, as determined by Council, a site-specific risk assessment and management plan consistent with the *National Wildlife Light Pollution Guidelines* must be included.

C26 Landscaping of pathways is to be provided in accordance with Design Specification D14.

2.6 Site design: landscaping

Objectives

O1 To improve the visual appearance of the streets and surrounding development.

O2 To ensure sufficient shade is provided for passive cooling and urban heat mitigation.

O3 To encourage walking and cycling as a form of recreation and active transport.

O4 To deliver environmental outcomes that cater for native species and ecosystems through the provision of essential habitat and food resources.

O5 To ensure landscaping does not compromise road safety.

O6 To ensure, to the extent possible through development and design, that landscaping outcomes are functional, enjoyable and promote positive physical and emotional experiences for future users.

Controls

C1 Landscaping of public spaces shall comply with Development Design Specification D14 – Landscaping Public Space unless where varied by a control in this Part.

C2 A landscape plan is required in accordance with **Table C.2: Landscape Plan Requirements** provided below.

Table C.2: Landscape Plan Requirements

Number of Lots	Plan requirements	Minimum standards
Less than 20	Site Analysis Plan	In accordance with Chapter 2.1 of this Part
	Concept Landscape Plan	An indicate layout plan shall be provided that includes: • Location of existing trees for retention • Site contours • Location of easements, fences, footpaths, drainage, utility services (underground and overhead), • Planting palette • Indicative planting areas • Preliminary canopy cover calculations
	Planting schedule	Shall include species, number and sizes of plant containers.
20 or more	Site Analysis Plan	In accordance with Chapter 2.1 of this Part
	Concept Landscape Plan	An indicate layout plan shall be provided that includes: • Location of existing trees for retention • Site contours • Easements, fences, footpaths, drainage, utility services (underground and overhead),

Number of Lots	Plan requirements	Minimum standards
		• Planting palette • Indicative planting areas • Preliminary canopy cover calculations
	Detailed Landscape Plan	Following endorsement of the concept plan, a detailed landscape plan shall be provided that demonstrate how the landscaping complements and integrates with the amenity of the urban zoned land, the streetscape and any topographical features of the site. The Detailed Landscape Plan shall include: • Existing trees or site elements for retention and integration • Final locations and species of canopy trees; • Site contours • Final canopy cover calculations to comply with Control C4. • Detailed planting layout plan including species by scientific and common name. • Planting schedule including species, number and sizes of plant containers. • Details of topsoil, turf/grass cover, mulch, fertilisers • Details of root guard/barrier or other engineering structures for planting. • Setbacks from easements, fences, footpaths, utilities services (underground and overhead).
	Landscape Management Plan	Details of landscape maintenance for the specified maintenance period. The plan shall include: • Details of mulching, watering, and fertilisers during both establishment and maintenance periods • Performance indicators for establishment of public landscaping • Actions for replacement of failed public landscaping

C3 The following general requirements apply to landscaping in this Part:

a. On lots adjoining native bushland, only locally occurring Australia native species plant species from the *Tweed Shire Council Native Species Planting Guide* shall be planted within 10m from any lot boundaries adjoining bushland.

b. Landscaping is to be designed with consideration for underground and overhead infrastructure and to accommodate future canopy/root expansion as well as environmental conditions of the site.

c. Plantings must be consistent with the *Planning for Bush Fire Protection guide 2019*.

C4 Street trees shall be planted in accordance with Tweed Shire Council Standard Drawing S.D.701. Tree & Shrub Planting Details, supplied under Design Specification D14 - Landscaping Public Space. Street trees shall be located as not to obstruct pedestrian or vehicular traffic, create a traffic hazard, or cause damage to existing trees.

C5 The following minimum landscape standards apply to public spaces:

Table C.3: Minimum Landscape Standards

Setting	Proposed Canopy Cover	Details
Sports fields		
Playing surfaces = 10% to 20% of site	30% of remaining site (non -playing surfaces)	Excludes car parking areas and access roads
Playing surfaces = >20% to 30% of site	40% of remaining area (non -playing surfaces)	
Playing surfaces = >30% of site	45% of remaining area (non-playing surfaces)	
Parks		
Local Park	40% of site	
Neighbourhood park	40% of site	
District park	30% of site	
Roads		
Residential streets (with overhead power)	30% of verge	Excludes arterial roads and rear laneways
Residential streets (with underground power)	45% of verge	
Industrial streets (with overhead power)	30% of verge	
Industrial streets (with underground power)	40% of verge	
Roundabout	1 canopy tree where diameter exceeds 10m	

Setting	Proposed Canopy Cover	Details
Median strips and channelisations	Minimum spacing 20m, median strip width should be >60% of canopy width	
Car parks	1 canopy tree per 6 car parking spaces	

C6 Landscaping shall be subject to a minimum 12-week establishment and 12-month maintenance period as agreed by Council.

C7 Plant species shall be as per Appendix C – Trees Species Selection Tables of Development Design Specification D14 – Landscaping Public Space.

C8 Landscaping must be provided within the road reserve on unpaved areas including: verges, roundabouts (unless fully paved), and along pathway/cycleway links, noise buffers and mounds, subdivision entry treatments and the like.

2.7 Additional considerations for subdivision on land zoned RU1 Primary Production, RU2 Rural Landscape and R5 Large Lot Residential

Objectives

O1 Provide for additional considerations ensuring orderly, safe and sustainable residential development on rural land.

Controls

C1 Lots for residential purposes on land zoned RU1 Primary Production, RU2 Rural Landscape or R5 Large Lot Residential must demonstrate:

a. access to a public road that is readily upgraded to all weather two-wheel drive standard

b. an identified building platform that has adequate solar access

c. development will not impact on rural activities on nearby land, noting a Land Use Conflict Risk Assessment may be required

d. appropriate area and dimensions for the siting and construction of a dwelling and any ancillary detached studios and/or outbuildings

e. natural or cultural features, including scenic topographical features, will be protected from adverse impacts of that development.

C2 Subdivision shall consider the location and ongoing management of watercourses and waterbodies occurring on rural land.

C3 Each lot shall have a sealed driveway, constructed from the road to 3m inside the property boundary, with a gate installed for the driveway in the boundary fence.

C4 Development applications must demonstrate that an environmentally sensitive, two-wheel drive standard access can be located between the driveway and the nominated building platform on each lot.

C5 The rural road network must:

a. facilitate and complement rural subdivision structure and lot layout

b. minimise earthworks and impacts on topography and watercourses

c. respond to environmental constraints

d. demonstrate compliance with access and turning path requirements for service vehicles

e. demonstrate compliance with rural road design criteria provided under Development Design Specification D1 – Road Design (v1.4).

C6 Rural subdivision roads are to preserve and enhance links with existing constructed roads, unconstructed roads, crown road reserves and any public land.

C7 Pathways and cycleways are to be provided in rural subdivisions to:

a. complement the road network by providing connectivity links that minimise non-vehicular travel distances between neighbours, particularly in subdivisions with cul-de-sac roads

b. provide connectivity to unconstructed roads and road reserves in the area.

C8 Rural subdivisions and associated works must seek to preserve natural drainage systems by:

a. retaining the location and cross section of natural flow paths

b. ensuring works do not impede natural flow paths and flow rates

c. providing roads with adequate numbers of transverse drains that allow unimpeded flow of the natural drainage system

d. minimising roadway longitudinal drains and barriers that impede natural overland flow.

C9 The following buffers are recommended:

Table C.4: Recommended buffers

Activity	Primary buffer (metres)	Secondary buffer (metres)
Large piggeries	500	1,000
Small piggeries (under 500)	300	600
Large cattle feedlots	500	1,000
Small cattle feedlots (under 500)	300	600
Dairies	300	600
Poultry Farms	300	400
Abattoirs	800	1,000
Livestock operations	300	600
Grazing	30	-
Large quarries over 10,000m^3 pa	500	800
Medium quarries 5-10,000 m^3 pa	400	600

2.8 Open space network

Objectives

O1 Ensure the application of Council's open space provision standards to ensure residents have access to an adequate quantity of usable passive and active open space, and Local and Regional Open Space.

O2 Provide high quality public open space located, designed and embellished in a way that enhances the amenity and liveability of an area and isn't constrained by topography, environmental values, cultural heritage features or essential infrastructure.

O3 Provide a well-connected, equitably distributed, diverse, accessible, inclusive and safe network of open space and facilities that meets the current and future community needs.

O4 Provide a fully integrated open space network, transport network and movement network that enables safe and convenient access to open space.

O5 Ensure the network of open space applies sustainability principles from construction to ongoing maintenance and is in accordance with relevant standards, guidelines, and regulations.

O6 Provide high quality, safe, diverse, and inclusive play spaces that facilitate interesting and stimulating play experiences for children, youth and their families.

O7 Facilitate the dedication of rehabilitated environmental land when in the public interest, for low impact nature-based recreation, while protecting and enhancing the natural environment.

Controls

2.8.1 Open space - general

C1 Subdivision design subject to this part is required to include an open space and landscape plan which is to address:

a. the required quantity and quality of public open space and the provision of each type of open space as per the relevant controls and tables

b. site analysis (**refer to Chapter 2.1 of this Part**)

c. the distribution of proposed open space across the development and the surrounding locality and its size, type, hierarchy, and function(s)

d. proposed landscaping and streetscaping within open space

e. connectivity to residential areas, commercial centres or community facilities

f. the transport and movement network (**refer to Chapter 2.5 of this Part**)

g. the location of service infrastructure, buffers and other infrastructure that will impact the functionality and amenity of open space

h. consistency with all other plans and reports that accompany the application.

C2 Non-standard decorative features, entry statements or signage in public domain areas, including open spaces, foreshores and road reserves will not be accepted.

C3 Public open space must not contain unsuitable or an excessive amount of embellishment that results in an unsustainable financial burden on the community.

C4 Landscaping of land to be dedicated to the public shall be provided in accordance with Development Design Specifications D14 – Landscaping Public Space (v1.4).

C5 Lighting of public open space shall be designed in accordance with the *National Light Pollution Guidelines for Wildlife Appendix A: Best practice lighting design.* Where Council considers artificial light caused by a development is likely to affect behaviour, survivorship or reproduction of threatened species, the Application must include a site-specific risk assessment and management plan consistent with the *National Light Pollution Guidelines for Wildlife*.

2.8.2 Quantity of public open space

C6 Public open space is to be embellished and dedicated to Council at no cost to Council and is to be established and maintained by the developer for a minimum of 12 months after lot registration or facility opening where agreed by Council.

C7 Local, usable public open space is to be provided at the following minimum rates:

C8 Passive open space = 1.13 hectares per 1,000 persons; and

C9 Active open space = 1.7 hectares per 1,000 persons.

C10 Subdivisions subject to control above will include a Local or Neighbourhood Park, provided within 400m (walking distance) of all dwellings, without having to cross a major road or other barrier.

C11 Developments likely to accommodate over 3,500 residents are to include one off-leash dog area, a District Park within 3km from all dwellings in this development and a District Sports Field within 5km from all dwellings in this development.

C12 In activity centre or for subdivisions of land zoned for Industrial or Business, a local park will be provided in a central location for residents, workers and visitors.

C13 Major developments not exceeding 3,500 people are to provide a Local Sports Field within 5km of all dwellings.

C14 The public open space provision of the development is to be considered in the context of any existing or future development in the locality to ensure the area features adequate usable open space of an acceptable quality to provide for the recreational needs of future population.

C15 Regional open space and facilities will be delivered in accordance with Section 7.11 *Developer Contribution Plan No 26 - Shirewide / Regional Open Space* (CP26). To be provided in addition to Local Open Space at the following minimum rates:

a. Passive regional open space = 1.13 hectares per 1,000 persons.

b. Active regional open space = 1.7 hectares per 1,000 persons.

C16 Regional Open Space is provided within the development site, this shall occur as part of the subdivision works.

C17 Large subdivisions are to provide open space that caters for population estimates for future infill development or development lots within the area.

C18 The timing of the delivery of public open space is to reflect the timing of the subdivision and generation of community demand.

2.8.3 Quality of public open space

C19 Land dedicated as public open space is required to be usable and suitable for its intended use, appropriate location and of a sufficient size, shape and slope. A site and context analysis should inform the appropriate dedication of land as open space.

C20 Land dedicated as public open space is required to be diverse, sustainable, equitably distributed, connected and inclusive.

C21 The application must demonstrate how the proposal is capable of meeting relevant Development Design Specifications, Australian Standards and safety codes.

C22 Open space shall feature a road frontage of greater than 50% to provide for surveillance, security and visibility.

C23 Open space is to be located centrally to maximise its catchment and encourage physical linkages and active transport.

C24 Open space shall be consistent with Universal Design and Social Inclusion principles across all aspects of open space planning and development to create maximum inclusion.

C25 Play spaces shall be designed in accordance with the NSW Government's *Everyone Can Play* Guidelines.

C26 Any land that is culturally significant must be identified within the development application. Any culturally significant site proposed for dedication as public land is required to have a Cultural Heritage Management Plan submitted as part of the development application which outlines ongoing protection and management in accordance with relevant legislation. If the ongoing protections impact embellishment or ongoing recreational use of the area, the land cannot be included in open space area calculations.

C27 If passive and environmental open space are co-located, both recreation and biodiversity values are not to be compromised with any impacts mitigated.

C28 Drainage reserve land can only be credited towards open space commitments if it complies with the development standards for passive open space and contributes to amenity and recreational opportunities.

C29 All channels, lakes, wetlands, drainage corridors between banks exceeding 600mm height, infiltration or detention basins that are inundated in less than a 3-month ARI storm, and any areas behind safety barriers or fences will not be accepted as credited public open space.

C30 A minimum of 30m wide buffer must be provided from infrastructure, hazards including roads, waterways, steep slopes and overhead electricity cables or other features that impact the amenity or recreational use of the site.

C31 Natural or built shade is to be provided over play equipment. Passive open space is to feature a 25% natural canopy cover.

C32 All public open space is to be designed, constructed, and maintained to maximise safety implementing Crime Prevention Through Environmental Design (CPTED) principles including street frontage, natural surveillance, clear sightlines, well-defined entrances and boundaries, and minimise conflict between different user groups.

C33 The open space must be accordance with relevant legislation, guidelines, Australian Standards, and safety codes.

C34 The principles of Water Sensitive Urban Design (WSUD) as specified in Development Design Specification D7 - Stormwater Quality are to be incorporated into the design of the open space network.

C35 Council is not obligated to accept dedication of land as public open space if is it is considered unsuitable. Land for public open space is not considered usable and cannot contribute to open space calculations if it:

a. is not a functional size, shape, slope or is isolated
b. contains infrastructure (or associated buffers) that impacts the functionality or amenity of open space including, but not limited to electrical sub-stations, sewer pump stations, overhead power lines, telecommunications infrastructure or stormwater management
c. contains access roads or road reserve
d. is required primarily to ensure provision or protection of riparian zones, environmental setbacks or Asset Protection Zones (APZs), or any other use which restricts usability of public open space for recreation
e. contains items of cultural heritage significance or environmental values that restrict the embellishment, functionality and usability of open space for recreation
f. contains encumbered land, contaminated land or land use buffers
g. is linear shaped land predominantly occupied by connecting pedestrian/cycle paths and forms part of the movement network, or

h. will be affected by natural environmental processes or hazards or does not comply with flood resilience requirements.

2.8.4 Passive open space - parks

Passive open space – is defined as: Land set aside for passive recreation activities including unstructured physical activity, socialising, and play, and which supports the casual enjoyment of the community. These areas do not include environmental lands, encumbered lands, open trunk drains and lakes. Cycleways, walking or bike trails will not, by themselves, be included as passive open space, however, may be provided ancillary to the provision of parks.

C36 Formed car parks are to be provided for district parks, in accordance with DCP E4, and Australian Standards and Universal Design Principles. 50% of the car park area can form part of the land calculated as dedicated open space. The number of spaces is to be determined by a demand analysis and must not dominate the landscape.

C37 Car parks shall be landscaped to feature sufficient shade to reduce urban heat and glare.

C38 Passive open space is to include natural shade with a minimum 25% tree canopy coverage.

C39 Passive open space design shall apply Universal Design Principles, environmental sustainability principles, and hazard management and reduction.

C40 No irrigation is permitted beyond the establishment and maintenance period.

C41 Passive open space is to be designed with safe and easy connection with movement networks, including active transport.

C42 For drainage infrastructure to be considered dual use, the land must have at least Q100 flood immunity. Drainage infrastructure will not be credited as passive open space.

C43 Passive Open Space must be filled to at least 1% AEP -1m, otherwise land is to be above 1% AEP to form part of the land credited as public open space.

C44 A minimum of 30m wide buffer must be provided from infrastructure, hazards including roads, waterways, steep slopes and overhead electricity cables or other features that impact the amenity or recreational use of the site.

C45 All approved passive open space is to be designed, embellished and maintained in accordance with the tables below and Development Design Specification D14 - Landscaping Public Spaces.

Table C.5: Passive Open Space: Local Parks – Development Standards

Design element	Development Standards *(See also Development Design Specification D14 - Landscaping and Open Space)*
Area and shape	Single allotment with a minimum area of 0.25 hectares of usable public open space. Minimum dimension of 40m. The length/width ratio shall not exceed 3:1. The park area is to be uninterrupted and unbroken. Generally contains a central activity zone of 400m^2 for play area and equipment (with a 20m offset to residential boundaries). The balance of area to be for passive and informal use. >80% of area to have slopes <8%, well drained with surfaces grassed, landscaped, paved or soft fall.
Access	Vehicular access from local roads (preferably more than one, configured to discourage through traffic) in locations that are permeable to the catchment with adequate access for garbage collection and maintenance. Requires formed and nominated on-street parking.
Amenity	Seating with shade, 50% with back and arm rests, sheltered picnic table(s), drinking fountain, landscaping, internal pathways connecting park facilities and movement network. Children's play equipment for ages 2-12 years including natural and inclusive play elements for all abilities with a built shade structure. No play equipment is to be provided where located within 500m from another quality, embellished playspace. Lighting in the shelter(s) only. Bollard lighting will not be accepted. May include dog off-leash facilities (minimum area 3000m2) area with a 20m residential offset. No barbeques, rubbish bins or public toilets.

Table C.6: Passive Open Space: Neighbourhood Parks – Development Standards

Design element	Development Standards *(See also Development Design Specification D14 - Landscaping and Open Space)*
Area and shape	Single allotment with a minimum area of 0.5 hectares of usable public open space. Minimum dimension of 60m. The length/width ratio shall not exceed 4:1. The park area is to be uninterrupted and unbroken - A multiple series of smaller connected shapes or compliant areas is not acceptable. Generally contains a central activity zone of 400m2 for play areas and equipment (with a 20m offset to residential boundaries). The balance of area to be for passive and informal use. >80% of area to have slopes <8%, well drained with surfaces grassed, landscaped, paved or soft fall.
Access	Vehicular access from local roads (preferably more than 1, configured to discourage through traffic) in locations that are permeable to the catchment with adequate access for garbage collection and maintenance. Requires formed and nominated on-street parking with one accessible car space.
Amenity	Seating with shade, 50% with back and arm rests, sheltered picnic table(s), drinking fountain, bike parking facilities, landscaping, internal pathways connecting park facilities and movement network. Children's all-abilities play equipment for ages 2-12 years including natural play and inclusive play elements with a built shade structure. May provide for youth recreation e.g. multi-court, small-scale skate elements. Lighting in the shelter(s) only. Bollard lighting will not be accepted. May include dog off-leash facilities (minimum 3000m2) area with a 20m residential offset. No barbeques, rubbish bins or public toilets unless the park forms part of a rest area or is located on a foreshore or waterway or is adjacent to other key attractions.

Table C.7: Passive Open Space: District Parks – Development Standards

Design element	Development Standards *(See also Development Design Specification D14 - Landscaping and Open Space)*
Area and shape	Single allotment with a minimum area of 2 hectares of usable public open space. Minimum dimension of 110m. The length/width ratio shall not exceed 4:1. The park area is to be uninterrupted and unbroken - A multiple series of smaller connected shapes or compliant areas is not acceptable. >80% of area to have slopes <15%, well drained with surfaces grassed, landscaped, paved or soft fall.
Access	Ideally located in close proximity to activity centres, community facilities, schools or other attractions. Vehicular access from local roads or collector as it is likely residents will travel by car to the park. Car parking to comprise a minimum of 20 sealed off-street parking spaces, including accessible spaces. Adequate access for garbage collection and maintenance.
Amenity	Seating with shade, 50% with back and arm rests, barbeque facilities, sheltered picnic tables, drinking fountains, rubbish bins, bike parking facilities and landscaping. Internal pathways connecting park facilities and movement network in addition to a circular shared-user path for fitness, bikes and scooters. All amenity buildings are to be on land filled to at least 1% AEP. Any activity areas, facilities and equipment must be offset 50m to residential boundaries. Children's all-abilities play equipment for ages 2-12 years including natural play and inclusive play elements with a built shade structure. Provides youth recreation facilities e.g. multi-court, bicycle facilities, skate elements or dog off-leash area. Toilet block is to be provided if catchment >1,000 persons equipped with 1M, 1F, 1 accessible and additional toilets at rate of 1 per 500 over 1,000 persons in catchment. Lighting in the shelters. Additional lighting will be considered where the park is intended to be used for night time recreation, pathway connections and for public safety. Bollard lighting will not be accepted. May include public art.

2.8.5 Active open space - sports fields / courts

Active open space – is defined as: land set aside for sports fields or sporting activities for the purpose of active recreation which includes cricket, football, hockey, netball etc. These areas do not include environmental lands, encumbered lands, open trunk drains and lakes. Cycleways, exercise equipment, walking or bike trails will not, by themselves, be included as active open space, however, may be provided ancillary to the provision of sports fields.

C46 Formed car parks are to be provided for district parks, in accordance with **Section E4: *Access & Parking*** and Australian Standards and Universal Design Principles. 50% of the car park area can form part of the land calculated as dedicated open space. The number of spaces is to be determined by a demand analysis and must not dominate the landscape.

C47 Active open space is to be designed, embellished, and maintained in accordance with Table below and Council's Open Space Classification for Active Open Space (Local, District and Regional), Development Design Specification D14 – Landscaping Public Space and applicable Australian Standards.

C48 The area, dimensions and specifications for active open space must accommodate flat playing surfaces, buffer zones, viewing areas and infrastructure requirements for sporting activities. This includes but is not limited to car parking, player, club and spectator amenities and accessible paths connecting the key elements of the open space.

C49 Priority is given to the provision of district level sport facilities to apply best practice principles of joint use, multi-purpose and to encourage the co-location of sport and recreation activities as a cost-effective measure.

C50 Deviation from the provision of active open space as flat land for the purpose of structured sport, will only be considered where:

a. the proposed use and facility is consistent with Council's Sporting and Active Recreation Strategy and Open Space Strategy and where the land use outcomes (economic, social and/or environmental) are sustainable

b. the application is to include a detailed needs analysis and feasibility study with the future infrastructure maintenance and renewal expenditure clearly articulated

c. the land use does not dominate the landscape nor create unacceptable amenity impacts

d. the community's recreational needs are met.

C51 Car parks must be provided in local, district and regional active open space, in accordance with **Section E4: *Access & Parking*** and Australian Standards and Universal Design Principles. 50% of the car park area can form part of the land calculated as dedicated open space. The

number of spaces is to be determined by a demand analysis and must not dominate the landscape. Car parks should:

a. function efficiently and safely

b. have sufficient shade to reduce urban heat and glare

c. not dominate the landscape and create unacceptable amenity impacts

d. be designed in accordance with Universal Design principles.

C52 Must comply with standards provided in Table C.8 below.

Table C.8 Active Open Space: Local and District - Development Standards Areas of local structured, active open space for formal outdoor sporting activities.

Design element	Development Standards (See also Development Design Specification D14 - Landscaping and Open Space)
Area, shape and function	Single allotment with a minimum area of 4 hectares of usable public open space for a local active open space and a minimum 6.5 hectares for a district active open space. Dimensions to provide for generally 2 sports for the local catchment, provided for structured social sport and training and competition. Provide for both winter and summer sports. Fields are north or south orientation. There needs to be sufficient area to allow for playing fields, ancillary buildings, parking, movement areas and safe play margins/buffers
Landform and constraints	Slopes are to be appropriate for sports fields and compliant with appropriate Australian/International standards. However, slope is to be sufficient for natural drainage. Generally slopes >1:100 and <1:70 with no catchments longer than 100m between drains. In floodplain areas, land must be filled to at least, 1% AEP -1m, otherwise land is to be above 1% AEP. All amenity or clubhouse facility buildings are to be on land filled to at least 1% AEP. For drainage infrastructure to be considered dual use, the land must have at least Q1 flood immunity. Sportsfield boundaries are to be offset 40m from residential property boundaries with activity areas (amenity buildings, embellishments, car parks etc) offset 20m. A minimum of 30m wide buffer must be provided from infrastructure, hazards including roads, waterways, steep slopes and overhead electricity cables or other feature that impacts the amenity or recreational use of the site.

Design element	Development Standards (See also Development Design Specification D14 - Landscaping and Open Space)
Access	Ideally located in proximity to activity centres, community facilities, schools or other attractions. Vehicular access from collector roads as it is likely residents will travel by car to the facility. Adequate car parking including accessible car spaces which involves a minimum 30 formed and sealed, off-street parking spaces per sportsfield with total amount determined by a parking demand analysis. Adequate access for garbage collection and maintenance. Safe and easy connection with bicycle/pedestrian networks
Road frontage	>50% of perimeter for surveillance, security and visibility.
Embellishments	Clubhouse facilities provide for sports clubs and community uses such as meetings and events. Amenities, facilities or clubhouse buildings to relevant sporting code facility standards and consistent with Council's Sport and Active Recreation Strategy. Clubhouses to include as minimum: 2 change rooms (including unisex shower and toilet facilities - 3 each per room), public toilets (3 male, 3 female and 2 accessible); first aid, referees' room (including toilet, shower and change facilities for district level),, storage and office facilities, multi-use space, canteen/kitchen, veranda/spectator viewing. Formed car parking, irrigation, lighting (shelter and field/court), drinking fountains, seating, turf surfacing or court surfaces, benching/mounds for informal seating and landscaping. Can feature embellishments around the periphery for informal recreation such as fitness loops or walking tracks or be located with/adjacent to passive open space contribution. The design is to apply Universal Design, environmental sustainability principles and hazard management. Maximise natural shade where possible and appropriate.
Services	Access for garbage collection, regular maintenance, water, sewerage, electricity and irrigation.

2.8.6 Open space - environmental and foreshores

C53 Any open space for the purposes of environmental land or foreshores to be dedicated as public land is to be accompanied by an Environmental Management Plan or similar document identifying maintenance commitments.

C54 Dedication of open space for the purposes of environmental land shall occur in addition to passive and active open space requirements. However, where consistent with Development Design Specification D14 – Landscaping and Public Open Space, Council may determine that the environmental open space is suitable for low impact, nature-based recreation and may be considered for a credit towards passive open space dedication.

C55 Foreshore reserves for the purposes of open space must have a minimum 10m width, must accommodate a 2.5m wide shared user path, plus widening at 200m intervals to accommodate seating, connection to transport, pedestrian and cycleway networks. Additional land may be required for surf lifesaving or emergency service access.

C56 Entry points and access routes through and along foreshore reserves are to be clearly defined to protect dunes, coastal/riparian vegetation, headlands and banks.

C57 Public car parking must be provided adjacent to foreshore reserves, but not detract from the amenity of the local area. Number of spaces to be determined by a parking demand analysis.

C58 Provide edge roads between all urban areas, foreshore reserves and position streets to achieve direct pedestrian access to the foreshore and distant views and vistas.

2.9 Management of protected habitat

Objectives

O1 To identify land for conservation purposes.

O2 Ensure ongoing management of land identified for conservation purposes.

O3 To provide appropriate protection and enhancement of land identified for conservation purposes.

O4 To minimise costs to Council and the community in the management of land identified for conservation purposes.

Controls

C1 The following areas that are within the same lot (or lots) to which the development application applies are to be managed under an approved Habitat Management Plan as an Environmental Management Area for the duration specified in C10 of Section B1 (DCP 2008 Section A19).

C2 The Habitat Management Plan required under C1 shall be prepared and implemented in accordance with Section B1 Biodiversity and Habitat Management.

C3 Council may consider accepting the dedication of lands requiring a Habitat Management Plan under C1 providing adequate arrangements are made to resource the required management actions.

C4 Areas of protected habitat shall be protected through appropriate fencing or exclusion barriers where public access is likely to result in impacts to ecological values.

C5 Lighting of public open spaces and roads adjacent to areas of protected habitat shall be designed in accordance with the National Light Pollution Guidelines for Wildlife *Best practice lighting design*. Where Council considers artificial light caused by a development is likely to affect behaviour, survivorship or reproduction of threatened species, the Application must include a site-specific risk assessment and management plan consistent with the National Pollution Light Guidelines for Wildlife.

C6 Land to be dedicated to Council shall be at no cost to Council and is to be established and maintained by the developer in accordance with the Habitat Management Plan.

C7 Dedication of land for conservation purposes should be staged in an orderly and sequential manner to deliver the requisite benefits and level of protection necessary.

C8 Any land that is culturally significant must be identified within the development application. Any culturally significant site proposed for dedication as public land is required to have a Cultural Heritage Management Plan submitted as part of the development application which outlines ongoing protection and management in accordance with relevant legislation.

C9 If protected habitat and passive open space are co-located, both recreation and biodiversity values are not to be compromised with any impacts mitigated.

C10 The open space must be accordance with relevant legislation, guidelines, Australian Standards, and safety codes.

C11 The principles of Water Sensitive Urban Design (WSUD) as specified in Development Design Specification D7 - Stormwater Quality are to be incorporated into the design of the open space network.

C12 Council is not obligated to accept dedication of land for environmental conservation purposes if it is considered unsuitable. This includes land:

a. not meeting the required criteria of the Habitat Management Plan

b. containing infrastructure (or associated buffers) that impacts the integrity of the Environmental Management Area, including but not limited to, electrical sub-stations,

sewer pump stations, overhead power lines, telecommunications infrastructure or stormwater management

c. that cannot be accessed by a public road, or

d. that is for another primary purpose including passive open space.

2.10 Community facilities and social infrastructure

Meaning of "community facility" and "social infrastructure" – For the purpose of this DCP, "community facility" has the same meaning as in the Tweed LEP 2014. "Social infrastructure" refers to State and Federal Government operated and/or funded infrastructure and services including education, centre-based childcare, health and emergency services.

Objectives

O1 Provide safe, accessible, and affordable community facilities that demonstrate best practice sustainable and inclusive planning, design, and functionality to support social connection, health and wellbeing for people of all ages, abilities and cultural backgrounds.

O2 Provide facilities in a timely manner, commensurate with community demand and population growth areas, maximising the use of existing facilities in locations identified through Council's strategic planning framework.

O3 Provide flexible, multifunctional community facilities in well-connected locations, adaptable to local and regional community future growth needs, with options for co-location or co-use, including cross-sector partnerships.

O4 Deliver community facilities that respond to local character, regional conditions and are consistent with Council's Community Facilities Plan, strategic frameworks and in accordance with Government plans and guidelines.

Controls

C1 Where required under DCP E3, subdivision applications will submit a Social Impact Comment (SIC) or a Social Impact Assessment (SIA).

C2 Community facilities and land for these facilities provided through a subdivision shall be:

a. regular in shape, with length-to-width not greater than 4:1

b. not more than 1m of 5% fall (whichever is greater) across the lot

c. in a visible and readily walkable location that contributes and relates to public domain and a sense of place

d. accessible to public and active transport networks, and links with spaces and facilities that complement Council's network.

C3 Any land identified for community uses shall be outlined in the subdivision layout and show:

a. the type of community facility provisioned as per the relevant controls in this section

b. siting and configuration appropriate for the landscape, topography, proposed uses, accessibility, and connectivity to open space, playing fields, residential areas, and commercial centres

c. appropriate integration with the transport and movement network with effective connections to active and public transport.

C4 Community facilities will be delivered in accordance with Council's *Section 7.11 Plan No. 15 - Developer Contributions for Community Facilities*.

C5 Land dedicated for the provision of community facilities is required to be unconstrained, usable and suitable for its intended purpose, situated in an appropriate location and of a sufficient size, shape and slope. A site and context analysis should inform the appropriate dedication of land.

C6 Where an identified need has been established for social infrastructure, agreements must be reached with the relevant government agency or non-government service provider including education (Government, Independent or Catholic), centre-based childcare, health, and emergency services.

C7 The local street network around community facilities and other social infrastructure shall:

a. provide a network of safe and efficient pedestrian and bike access

b. accommodate bus routes

c. have capacity to cater for peak traffic periods

d. provide safe conditions for set down / pick up facilities with on-site parking.

C8 Planning for community facilities or social infrastructure shall apply universal, sustainability, urban design and Crime Prevention Through Environmental Design (CPTED) principles, guidelines and policies, commensurate with a public building.

C9 The site location, design and built form shall enable the community facility to perform efficiently, minimising maintenance requirements, and be adaptable for a mix of uses and diversity of user groups.

C10 The timing of the delivery of community facilities and social infrastructure is to reflect the timing of the subdivision and generation of community demand.

C11 Any proposal for the provision of community facilities through the expansion of existing facilities will only be considered where their proposed use and expansion:

a. is consistent with Council's Community Facilities Plan

b. meets the objectives of this section

c. will meet population demand and growth needs

d. is in accordance with other applicable controls in this section.

Table C.9: Standards for provision of community facilities

Service hierarchy	Facility or service	Population standards	Site area
Local	Community hall/general use community meeting space	1:6,000	Min. 1,500m^2
District	Multi-purpose community centre/hub/civic centre	1:15,000	Min. 10,000m^2
District Regional	Branch Library Mobile library or regional library specialist services	As per Library Council of NSW Standards and Guidelines for NSW Public Libraries. Living Learning Libraries - a population approach. Design public library spaces around community demographics and functionalities.	
Regional	Museum or Gallery	1:30,000 up to 150,000*	15,000m^2
Regional	Auditoria/ Performing Arts/ Convention Centre	1:50,000 up to 200,000*	Investigate local, district & regional needs & options.

2.11 Infrastructure

Objectives

O1 Service our modern, healthy, and well-connected communities.

O2 Design infrastructure and utility networks to minimise long term maintenance, running and access costs, while maintaining appropriate standards, levels of service and tenure.

O3 Provide efficient infrastructure and utility networks, by consolidating services in existing alignments and service corridors where practical, with upgrading and optimising existing infrastructure preferred over installing new services.

Controls

C1 The Development Application shall demonstrate that the subdivision development can meet the infrastructure service standards required by legislation, Council specifications, including D13 – Engineering Plans (Subdivisions) and community expectations.

C2 The Development Application shall demonstrate that, so far as reasonably practical, all structures have been designed to be safe when used throughout their lifecycle. This includes during their construction, their use in the subdivision, their maintenance, cleaning and repair, and their eventual demolition (S.22 Work Health and Safety Act 2011).

C3 The design and installation of infrastructure networks should take into account the site analysis, to avoid fragmentation and disturbance of areas of ecological or cultural heritage significance.

C4 All lots created in urban areas for private occupation must be fully and individually serviced with sealed road (equipped with kerb and gutter both sides of the road) frontage, water supply, sewerage, underground electricity and telecommunications.

C5 Subdivisions are to be provided with services as per the table below:

Table C.10: Requirements for subdivision services

Infrastructure type	Required Compliance with Development Design Specification (DDS) and additional controls
Roads	Achieve compliance with DDS D1 - Road Design.
	Increased road verge widths above the minimum standards in DDS D1 may be needed to allow space for additional utilities, indented parking, future road widening, acoustic barriers, retaining walls, shared user paths, swale drains or additional street trees.
	Austroads *Guide to Road Design* is to be used for guidance. Intersections must be designed on the basis of ultimate rather than current traffic volumes, and must include signage, line marking and lighting in accordance with relevant standards.
	Roads connecting to or extending the existing sealed road network must be bitumen sealed to the last driveway of the subdivision, including provision for a turn around area.

Infrastructure type	Required Compliance with Development Design Specification (DDS) and additional controls
	New subdivision roads connecting to the existing unsealed road network may be gravel surfaced if servicing 11 or less lots. If the subdivision road services 12 or more allotments, the development must extend the bitumen seal from the existing road network to the last driveway of the subdivision, including provision for a turn around area for service vehicles.
	Planning for Bushfire Protection (PBP) may require minimum road standards (in terms of width, grade, surface type, passing facilities) to adequately service all lots.
Driveways	Achieve Compliance with DDS D1 - Road Design, and Driveway Access to Property – Design Specification.
	Construction of driveway cross overs is optional for subdivision development, however each lot must be able to demonstrate a compliant driveway location is available, based on acceptable gradients from the roadway to the nominated building platform, sight distances, and setbacks from other infrastructure.
	Where fronting a sealed road, each driveway must be sealed to the property boundary as a minimum. Development applications must demonstrate that an environmentally sensitive, two-wheel drive standard access can be located between the driveway and the nominated building platform on each lot.
Water Supply (includes subdivisions with private water supply systems under WICA).	Development Design Specification D11 - Water Supply
	All allotments must be provided with adequate access to water supply for firefighting purposes. In urban areas, all approved and intended building pads shall be within 60m of a hydrant. Direct connection of properties to trunk mains is not permitted.
	Residential development in Rural or R5 Large Lot Residential zones, where access to the potable water network is not available, must not be reliant on groundwater, creek or river sources to satisfy domestic or non-domestic

Infrastructure type	Required Compliance with Development Design Specification (DDS) and additional controls
	water needs. Instead, rainwater harvesting and storage is encouraged, in line with sustainable building practices. The rainwater storage tanks must have a minimum storage of 20,000L and be located in a position that is accessible to fire fighting vehicles and equipment, and must be equipped with an outlet or access hatch that is compatible with NSW Rural Fire Service equipment.
	All allotments shall require registration of a restriction under Section 88B of the Conveyancing Act 1919 notifying new owners that they have limited supply in rural water supply areas.
Sewerage (Includes all subdivisions with private waste water systems under WICA).	See Development Design Specification D12 - Sewerage System
	All allotments to be connected to gravity sewer unless otherwise approved (due to topographic constraints, downstream capacity etc). Public pump stations are to be located within a separate lot, dedicated to Council. Subject to Council approval, where a gravity sewer connection is not directly available to service a development, Council may approve a private sewer pumping station, which will discharge to the existing sewerage system via a private rising main. It is the Applicant's responsibility to ensure that the Private Sewerage Pumping Station complies with relevant standards and legislative requirements.
	400m buffer between any current or proposed primary and secondary process units of any Sewerage Treatment Plan and the nearest boundary of any allotment created for tourism, rural housing, urban housing (including caravan parks) and community facilities (e.g, halls, schools etc). No development is permitted within 200m from any current or proposed primary and secondary process units of any sewerage treatment plant, except for uses of an open air nature (e.g, car parking, storage) or those uses not requiring permanent or prolonged work station occupation. Between 200 and 400m from any current or proposed primary and secondary process units of any sewerage treatment plant, buildings associated with industrial, commerce or trade must be designed with ventilation emanating from the side facing away from the sewerage

Infrastructure type	Required Compliance with Development Design Specification (DDS) and additional controls
	treatment plan, and any office/retail components of the industrial building are to be air conditioned.
Stormwater Drainage	See Development Design Specifications D5 - Stormwater Drainage Design and D7 - Stormwater Quality.
Electricity	Must be underground and provided in accordance with Energy Authority requirements and Australian Standards. Verge service location is to comply with Development Design Specification D1 – Road Design
	Pad mounted sub-stations are to be located within a separate lot, or within private land with an easement. Not to be located within public road, drainage or open space reserves.
	Onsite renewable energy generation may be used as the sole electricity supply for new lots.
Telecom.	Must be underground (unless rural) and provided in accordance with Telecommunications Authority requirements and Australian Standards. Verge service location is to comply with Development Design Specification D1
	Service must be such that "fibre-ready" standard connection is available at the front boundary of all allotments to local/national/overseas networks

2.12 Subdivisions under the Community Land Development Act 2021 or the Strata Schemes Development Act 2015

Objectives

O1 To ensure community title subdivisions and strata subdivisions are set up to meet the needs of end users, owners and the broader community.

Controls

C1 All strata subdivisions require the issue of a subdivision certificate.

C2 Community title subdivisions require development consent and an issue of a subdivision certificate.

C3 Community title subdivisions require a construction certificate for subdivision works, including internal community owned infrastructure and external works and/or connections.

C4 The design guidelines and development standards for community title infrastructure are the same as those for conventional Torrens Title subdivisions, except that Council may consider proposals that justify departure from standards for internal roads, verge widths and internal material types, but only where the roads and internal infrastructure (including stormwater and treatment facilities) are to remain in the ownership and responsibility of the Community Management in perpetuity and not be dedicated to Council. Standards for street and lot layout are the same as for conventional subdivisions.

C5 Where the development and strata subdivision are staged, development application for a strata subdivision need to include a draft strata development contract.

C6 Assessment of strata subdivision on buildings older than 5 years need to consider whether upgrades to the building (BCA and fire) need to be undertaken.

2.13 Subdivisions with staged or management lots

Objectives

O1 To providing controls guiding staged subdivisions or subdivisions involving creation of a management lot.

Controls

C1 When subdivision is proposed to be carried out in stages, it is necessary to articulate the details of staging within the Development Application to enable the Development Consent to

be structured so that relevant conditions and developer contributions are applied at the appropriate time.

C2 For staged subdivisions the engineering plans and attachments must demonstrate that the road network, landforming, drainage systems, water supply systems and sewerage systems for each stage (as the stages progress), will be viable in their own right in the event that future stages are not constructed.

C3 Any management lots must:

a. be provided with roads, drainage (including downstream stormwater drainage to a lawful point of discharge) and service connections that are sized for the ultimate subdivision yield and land use of the management lot

b. incorporate necessary easements, service connections and drainage facilities necessary for the ultimate development of the surrounding land.

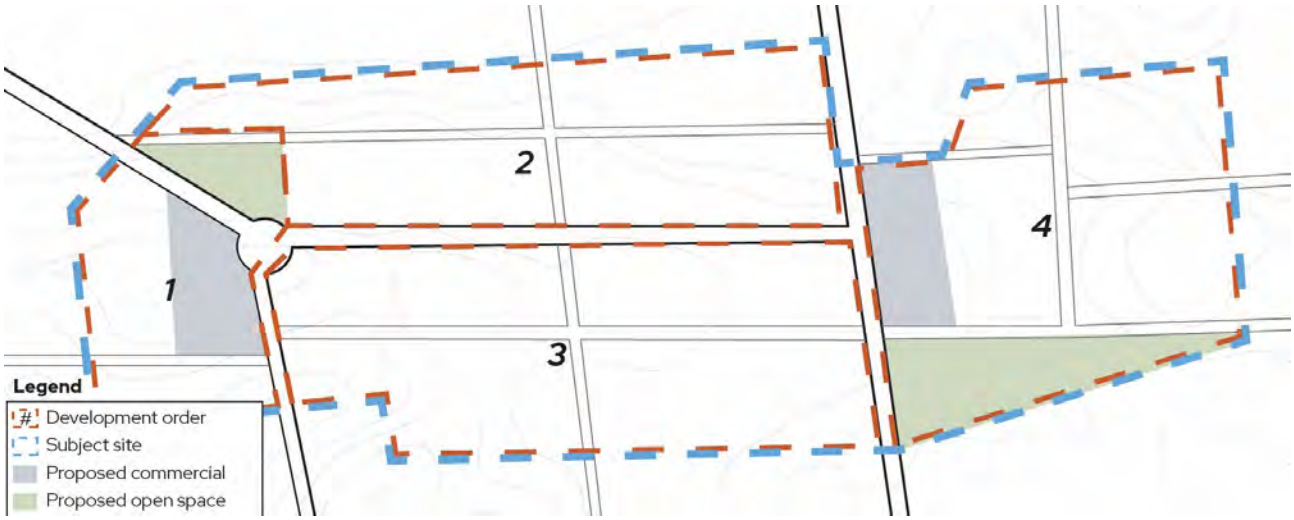


Figure C.7: Example of a staging plan for a subdivision application (**refer to controls C1, C2 above**)

C4 Subdivisions subject to this clause are to demonstrate compliance with Development Design Specification D13 - Engineering Plans (Subdivisions), with particular reference to section D13.03.

C5 Staging of subdivisions should provide for the earliest practical provision of a bus route and associated facilities.

C6 Dedication of land for conservation purposes should be staged in an orderly and sequential manner to deliver the requisite benefits and level of protection necessary.

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Part D

Built Form

D1

Dwelling Houses, Secondary Dwellings, Dual Occupancies, Ancillary Development and Alterations



1. Introduction

1.1 Purpose

The purpose of Section D1 is to guide the planning and design of dwelling houses; secondary dwellings; dual occupancy development; and related alterations, additions and development ancillary to these forms of housing within Tweed Shire, in order to:

1. achieve housing that is adaptable, resilient, safe and family friendly
2. ensure housing is designed to respond to a diversity of needs and preferences
3. ensure housing adopts best practice passive design principles
4. ensure housing is site-responsive
5. respect neighbours' amenity, whilst also addressing the street and surrounding public realm
6. increase the availability, diversity and affordability of housing.

1.2 Application

Section D1 applies to dwelling houses, dual occupancies, secondary dwellings, rural workers' dwellings, outbuildings, detached studios, and alterations and additions to these forms of development within the Tweed Shire. Section D1 applies to these forms of development in the General Residential (R1), Low Density Residential (R2), Medium Density Residential (R3), Large Lot Residential (R5), Village (RU5), Primary Production (RU1) and Rural Landscape (RU2) zones.

Section D1 supports the Tweed LEP by providing additional objectives and controls to enhance the function, design and amenity of residential development. Section D1 applies except to the extent of inconsistency with a site-specific provision contained in the Tweed LEP or an applicable Character Statement. Until these are prepared, the DCP 2008 Section B and A1 Part D Chapters will continue to be in force.

1.3 References

All development is to be designed in accordance with Council's Development Design and Specifications. Of relevance to Section D1 are Specifications D1 (Road Design), D2 (Pavement Design), D3 (Structures, Bridge Design), D4 (Subsurface Drainage Design), D5 (Stormwater Drainage Design), D6 (Site Regrading), D7 (Stormwater Quality), D9 (Cycleway and Pathway Design), D10 (Bushfire Protection), D11 (Water Supply), D12 (Sewerage System), D13 (Engineering

Plans - Subdivisions), D14 (Landscaping Public Space), D15 (Work in Proximity), and Driveway Access to Property – Design Specification.

2. Objectives and Controls

2.1 Site analysis

Objective

O1 To ensure site and building design has been informed by comprehensive consideration of the opportunities, constraints and temperate sub-tropical climate of the site and its context.

Controls

C1 A site analysis plan must be provided for all development applications (except alterations and additions) to document:

Constraints

a. any environmental attributes such as koala habitat, fauna corridors, bushfire hazards, fire source features, flooding, wetlands, ecological communities, threatened species or the like

b. any large trees or native vegetation

c. any heritage item or conservation area

d. sources of noise nuisance such as flight paths, road noise or other noise pollution sources

e. any key natural features of the site and its surrounds such as rock outcrops, cliffs, embankments, foreshores or the like

f. geotechnical characteristics such as slope, soil type, conditions and stability and any acid sulfate soils, landfill or contamination impacts

Climatic conditions

g. the orientation of the site and its summer and winter solar path (with a particular emphasis on early morning southeast and late afternoon southwest sun in summer)

h. direction of prevailing winds and weather patterns

i. identified significant shading influences (topography, fences, houses, trees)

j. water drainage and overland water flow paths

Site conditions

k. allotment: shape, size, orientation, and easements

l. street frontage: poles, service pits, street trees and kerb crossovers

m. topography: subject site levels and any differences with adjacent and opposite buildings in plan and sections

n. existing buildings: location of existing buildings on the site

o. landscape: species, location, height and canopy dimensions of any existing vegetation on, or within 8 metres of the site, and identified as to be removed or retained having regard for Part B2 Protection of Trees and Vegetation

p. views to and from the site

q. front, side and rear setback overlay

r. boundary walls & fences: location, height and materials when built to site boundary (and where these do not match, the title boundary)

s. details of neighbouring buildings, such as: location, height, boundary setbacks, use, built form, scale, location of windows, doors, internal and external living spaces, pools, solar panels, retaining walls and the like, architectural and garden character (roof and fencing styles) of surrounding dwellings within 80m on either side of the street.

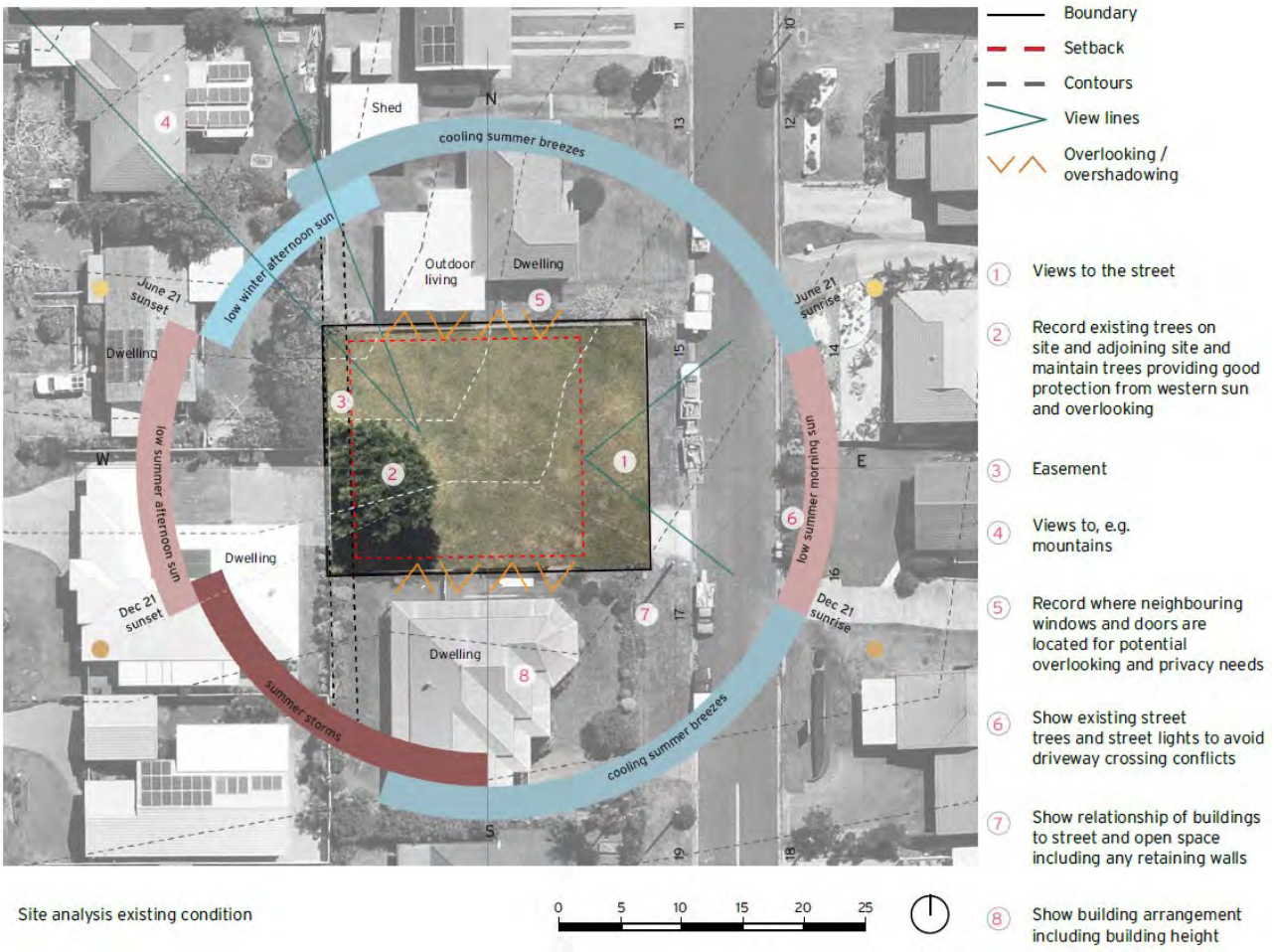


Figure D1.1: Example site analysis plan

Site analysis – A site analysis template is available on Council's website to assist in preparing the site analysis documentation. The degree of detail required will vary according to the nature, type and scale of the proposed development, its surroundings and potential amenity impacts.

C2 A design response plan must be provided for all development applications (except alterations and additions) and clearly illustrate how the proposal responds to the site analysis, including but not limited to:

a. the indicative footprint of the proposal over base site analysis information

b. how the dwelling has been designed to maximise solar access during winter, and shade during summer (both internally and externally)

c. how primary living areas and private open spaces maximise northern, north-eastern or north-western orientations

d. how building and window openings are positioned to optimise access to prevailing breezes and enable cross-ventilation through habitable and non-habitable rooms

e. if any on-site and off-site overshadowing and/or overlooking impacts are created because of the proposal, what treatments are proposed to ameliorate such impacts

f. nomination of the best location for landscaping, deep soil zones and outdoor living spaces

g. identification of areas where the site analysis indicates a suitable alternative solution to the controls.

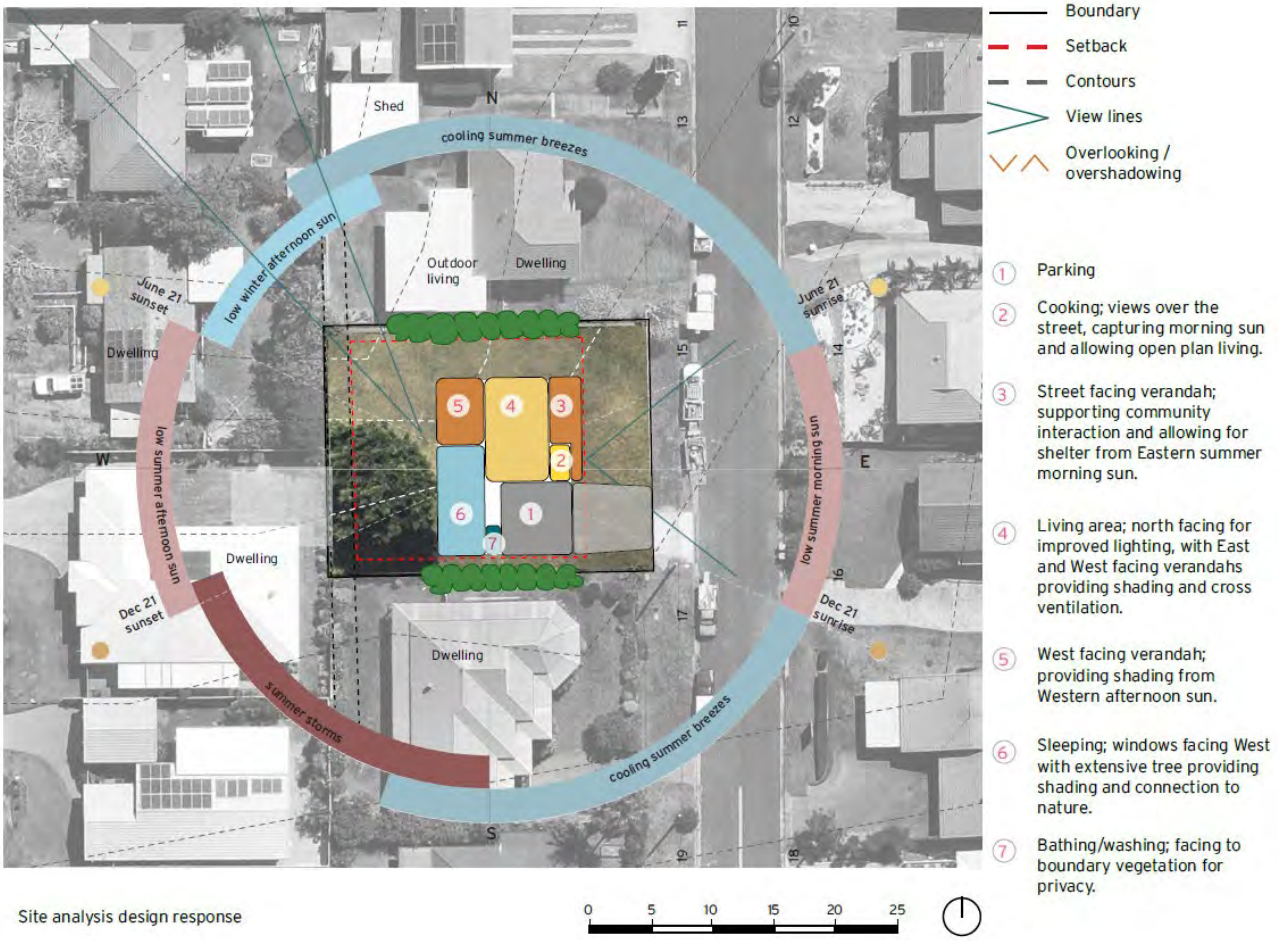
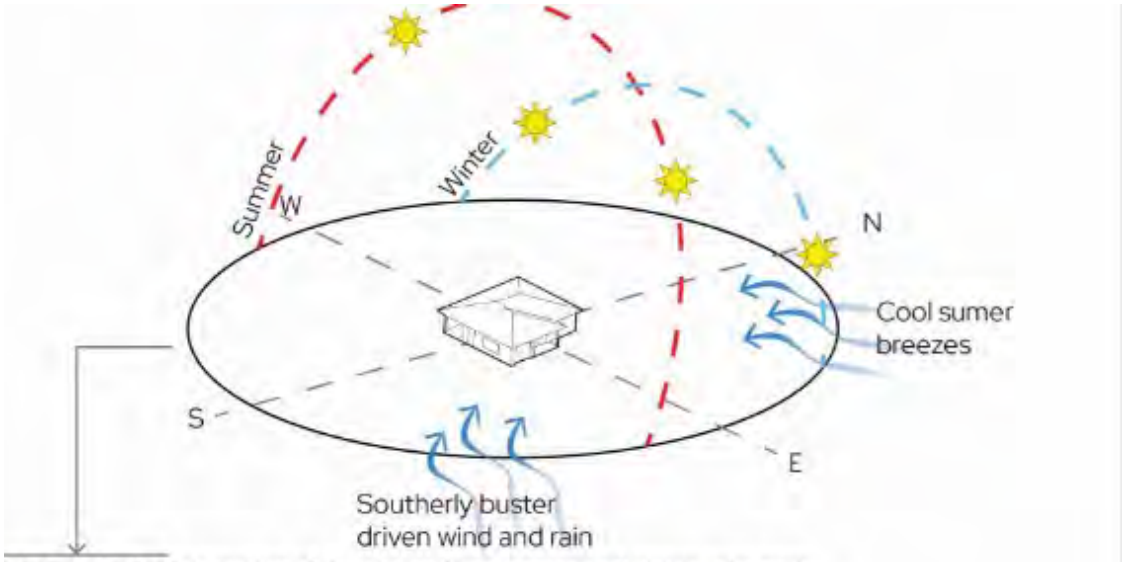
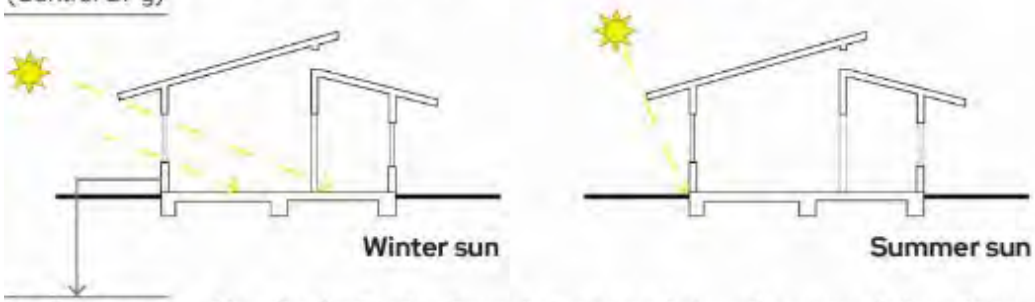


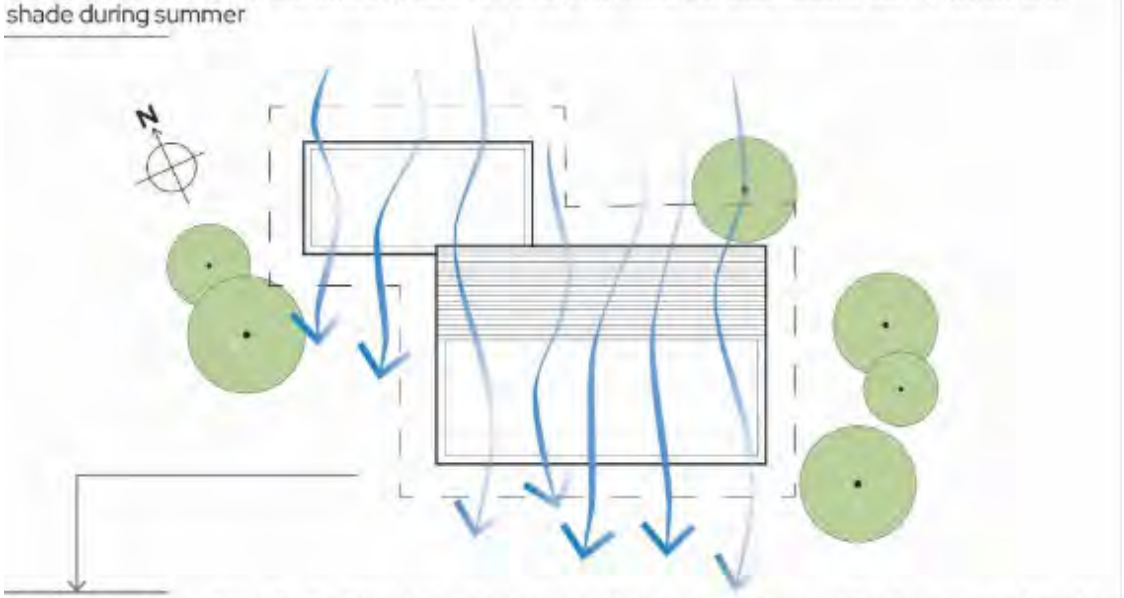
Figure D1.2: Example design response plan



Site analysis: Orientation of the site and its summer and winter solar path (Control C1-g)



Design response: How the dwelling has been design to maximise solar access during winter, and shade during summer



Design response: How the building is positioned to optimise access to prevailing breezes and enable cross-ventilation.

Figure D1.3: Principles of passive design to be addressed by the site analysis and design response plan

2.2 Site design

2.2.1 Site coverage

Objectives

O1 To ensure a balance between built form and landscaped area.

O2 To ensure on-site stormwater infiltration through pervious surfaces.

Controls

C1 The site coverage on a lot must be a maximum of:

Table D1.1

Lot size	Maximum site coverage
<300m²	65%
>300-600m²	55%
>600-900m²	50%
>900-1500m²	40%
>1500m²	30%

Site coverage calculation – The calculation of site coverage generally does not include access ramps, awnings, eaves, unenclosed balconies, decks, pergolas, terraces, verandahs, driveways, paths, swimming pools and spas. Secondary dwellings are considered as part of the main dwelling house for the purpose of site coverage calculations. Refer to site coverage definition within the LEP.

2.2.2 Street frontage setback

Objectives

O1 To create physical and visual links between residential development and the street to achieve active engagement and passive surveillance.

O2 To support a balance between landscaping and residential buildings.

Controls

C1 In established areas and on infill sites, building walls must be set back in line with the average primary road setback of neighbouring dwellings within 40 metres of the site, unless a variation is supported by a streetscape analysis. This calculation will exclude carports/garages, visitor car space, shading features and any other building element between the front wall and front boundary. For battle-axe and corner lots, see C5 and C6.

C2 In areas where there is no existing building on either side of the abutting allotments facing the same street, the walls of buildings must be set back according to **Table D1.2.** This calculation will exclude carports/garages, visitor car space, shading features and any other building element proposed between the building wall and the frontage boundary. See Chapter 2.6.3 for attached garage/carport setbacks, and Chapter 2.6 for assorted ancillary development setbacks.

Table D1.2

Lot size	Primary frontage setback	Secondary frontage setback
<300m²	3.5m	2m
>300-600m²	4.5m	2m
>600-900m²	6m	3m
>900-1500m²	6m	3m
>1500m²	8m	5m

C3 All residential development must address and offer passive surveillance over the street by ensuring important elements such as front doors, building entry areas and windows are prominent in the building façade, with the entrance clearly identifiable from the street. Entry features such as a portico, porch, pergola, verandah (but not a balcony, rooftop terrace/external living area above existing ground level) may intrude into the primary frontage setback to a maximum of 1.5m and not exceeding 50% of the frontage width. The same opportunity applies to secondary frontage setbacks to a maximum of 1m and not exceeding 50% of the frontage width. See C5 for requirements for identifying the secondary frontage. This allowance must not reduce the landscaped area below the required percentage or be located on any proposed deep soil zone.

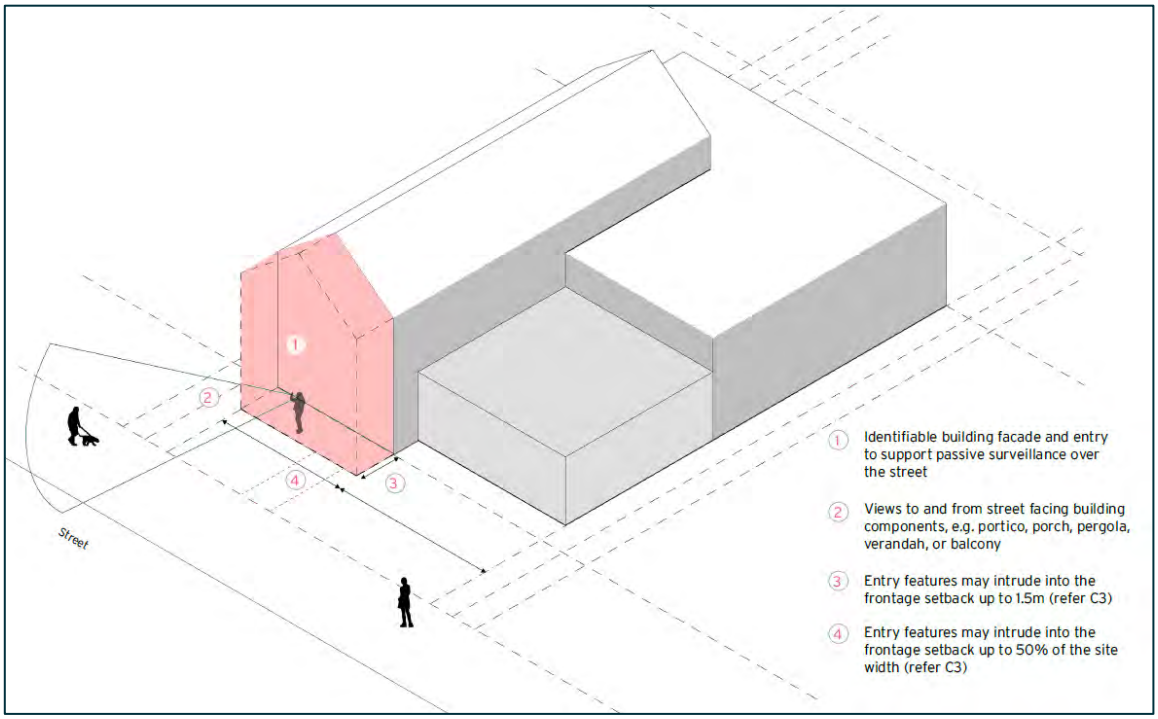


Figure D1. 4: Street frontage setback controls

C1 For small lot housing, a portico, porch, pergola, verandah or balcony must be provided to the front of the building to maximise interaction with the street. This may encroach into the required setbacks subject to the following conditions:

a. It is open on at least 2 sides.

b. It has a width that does not exceed 80% of the frontage width or 4m, whichever is the greater.

c. It projects out at least 0.8m and no more than 1.5m forward of the front wall (inclusive of any eave).

d. It does not reduce the landscaped area below the required percentage or is not located on any proposed deep soil zone.

C2 For corner lots, a site analysis must identify the primary frontage, secondary frontage and 2 side boundaries. Typically, the smaller frontage is the primary frontage.

C3 For battle-axe lots, a site analysis must identify 3 side boundaries and one rear boundary, where the rear boundary is the one opposite the front of the house. For the purposes of calculating landscape (including deep soil zones) and site coverage, this does not include the area of the access handle.

Street setback frontage calculation – The front setback is measured from the front boundary of the allotment to the outermost edge of the wall of the building elevation.

2.2.3 Side/rear setbacks

Objectives

O1 To ensure building envelopes limit the impact on the amenity of existing dwellings.

O2 To provide appropriate separation between dwellings to allow sunlight access, ventilation, visual and acoustic privacy and landscaping whilst facilitating access to the rear of the allotment.

Controls

C1 The following minimum setbacks apply to a dwelling wall from side boundaries:

Table D1.3

Dwelling wall height	Setback – dwelling wall	Setback – guttering, eaves, hoods, etc
<4.5m	0.9m	0.45m
>4.5m	1.5m	0.9m

The opening doors of internal principal living spaces must be set back a minimum of 4m from boundaries. A variation may be accepted where the site analysis/design response plan demonstrates that a reduced setback does not create any external amenity impacts such as overlooking and privacy.

C2 External living areas adjoining side boundaries must be set back a minimum of 0.9m from the side boundary.

C3 The following minimum setbacks apply to a dwelling wall from rear boundaries:

Table D1.4

Lot size	Height <4.5m	Height >4.5m
<300m²	3m	4.5m
>300-600m²	4.5m	6m
>600-900m²	4.5m	8m
>900-1500m²	5m	12m
>1500m²	10m	15m

C5 Roofed external living areas 1m or less above (existing) ground level must be set back a minimum of 3m from the rear boundary. External living areas above this height must be set back a minimum of 4m from the rear boundary.

C6 Where a lot is accessed from, or has a frontage to, a rear lane, secondary frontage setbacks apply subject to achieving compliance with sunlight access, ventilation, visual and acoustic privacy, and landscaping controls. Specific setback controls for garages/carports, secondary dwellings and detached studios take precedence over secondary frontage setback controls.

C7 Regardless of **C1** and **C4** above, the minimum setback of dwelling houses, secondary dwellings, rural workers' dwellings, dual occupancy development or farm buildings from side and rear boundaries on land in Zone RU1 or RU2 is 10m.

Side/rear setback calculation – Rear setbacks are measured from the rear boundary to the outside edge of the building wall. Setbacks are measured at 90 degrees to the allotment boundary and include any articulation to the building elevation but do not include external living. Side setbacks are measured from the allotment's side boundary to the outside edge of a building wall.

2.2.4 Canal setbacks

Objective

O1 To maintain views and vistas along canal foreshores.

Controls

C1 For canal frontages, the following setbacks apply:

a. 5.5m where the boundary is on the canal side of a revetment wall

b. 3.4m from the revetment wall where the wall is on the boundary.

C2 No structures are to be built within the canal frontage setback area other than:

a. fences to 1.2m high which are at least 50% open to allow for the movement of flood water and maintaining of open amenity

b. boat ramps, swimming pools, retaining walls or suspended decks that do not exceed 300mm above the allotment at the top of the batter.

C3 For those allotments with canal frontages and facing Gollan Drive and Jacaranda Avenue, Tweed Heads West, a setback of 2.5m for buildings and structures listed in Control 2 of 2.5m to the canal frontage must be maintained.

C4 The underside of any suspended deck fronting a canal must be suitably screened, except in cases where giving effect to this control would result in adverse impact to flood waters.

2.2.5 Landscaping

Objectives

O1 To enhance the appearance and amenity of development, integrate with the character of the locality and the streetscape, soften the visual impact of urban development and provide privacy between dwellings.

O2 To improve the quality and quantity of the urban forest.

O3 To create an interconnected urban tree canopy that assists in climate change adaptation and mitigation.

O4 To enable natural infiltration of rainwater and reduction of stormwater runoff and promote water sensitive urban design.

O5 To retain and enhance flora and fauna habitat throughout suburban areas and contribute to flora and fauna corridors.

O6 To limit heat transfer impacts from hard surface areas, improve micro climatic conditions of sites and the solar performance of dwellings.

O7 To maximise solar access during winter and shade during summer to the dwelling and external living spaces through a variety of heights and species of trees and shrubs.

O8 To consider how landscaping can extend to and integrate with the road reserve in line with Council's 'Guidelines for Road Reserve Vegetation in Urban Areas'.

Controls

C1 An application for a development under this part shall include a landscape plan in accordance with **Table D1.5** to demonstrate compliance with the minimum landscape controls and other relevant provisions of this Section.

Table D1.5

Development type	Requirements
Dwelling house	Landscape concept plan shall include: a) existing landscape elements of the site b) locations and calculations of landscaped area c) locations and dimensions of deep soil zones d) location/s of canopy trees.
Secondary dwelling	
Dual occupancy	Landscape plan shall include/demonstrate: a) existing landscape elements of the site b) the location and calculations of the landscaped area, deep soil zones and site coverage c) plant species to be used and their locations d) how the landscaping complements and integrates with the amenity of the dwelling, the streetscape and any topographical features e) how each dwelling achieves integration of the dwelling, landscaped areas, private open space and external living areas f) suitable privacy and solar access for each dwelling and its outdoor and landscaped spaces.
Ancillary development and alterations	Site plan confirming minimum landscape area of Table D1.6 is met. A landscape plan may be required to verify compliance. Alternatively, a site plan may be adapted to provide landscape details in order to demonstrate compliance.

C2 Existing landscape elements on sites such as natural rock outcrops, watercourses, dune vegetation, indigenous vegetation and mature trees should be retained and integrated with the design of the buildings where possible.

C3 The following general requirements apply to all landscaping under this Section unless varied by another Control:

a. Plant species must comprise a minimum 80% locally occurring Australian native species from the *Tweed Shire Council Native Species Planting Guide*. Species must not include weeds with a General Biosecurity Duty, Priority Weeds or the like.

b. Only plant species from the *Tweed Shire Council Native Species Planting Guide* shall be planted within 10m from any lot boundaries adjoining native bushland.

c. Landscaping is to be designed with consideration for any asset protection zones, underground and overhead infrastructure, future canopy/root expansion as well as environmental conditions of the site.

d. Planting on the site portion mapped as bushfire prone must be consistent with the Planning for Bush Fire Protection document prepared by RFS.

C4 Two deep soil zones per lot shall be provided and shall meet the minimum deep soil zone dimension of **Table D1.6**

C5 Landscaping area shall be provided in accordance with **Table D1.6.**

Table D1.6

Lot size	Minimum landscape area (% of site)	Deep Soil Zone standards	Tree standards
At least 200m^2 but less than 450m^2	20%	Two deep soil zones measuring at least 2.4m x 2.4m each	One small tree per deep soil zone
At least 450m^2 but less than 600m^2	30%	Two deep soil zones measuring at least 3m x 3m each	One small tree per deep soil zone
At least 600m^2 but less than 900m^2	35%	Two deep soil zones measuring at least 4m x 4m each	One medium tree per deep soil zone
At least 900m^2 but less than 1500m^2	40%	Two deep soil zones measuring at least 5m x 5m	One large tree per deep soil zone

Indicative canopy tree size at maturity:

Tree Size	Minimum canopy spread	Minimum canopy area	Approximate height range
Small	6m	28m^2	6-9m
Medium	8m	50m^2	9-15m
Large	12m	113m^2	15+

* The following substitutions may be made to the planting rate outlined in this table where endorsed by Council:

- One medium tree may be substituted for 2 small trees
- One large tree may be substituted for 2 medium trees

C6 Development on lots greater than 1500m^2 are required to provide a landscape plan demonstrating canopy cover of at least 40% of the site area subject to the requirements of the Planning for Bush Fire Protection document prepared by RFS.

C7 The landscape area (inclusive of the deep soil zones) shall contain natural and permeable surfaces.

C8 At least 50% of the landscape area required in **Table D1.6** shall be located behind the building line of the primary road frontage.

C9 For landscape areas to count towards the minimum area required in **Table D1.6**, the minimum dimension of an area must be 1.5m.

C10 The front of the lot shall contain at least one deep soil zone.

C11 For dual occupancies, at least one deep soil zone meeting the requirements of **Table D1.6** shall be provided for each dwelling.

C12 Each deep soil zone shall:

a. be located to optimise solar orientation providing shade in summer and solar access in winter

b. be free of impervious surfaces

c. not be located on structures including planter boxes

d. include understorey plantings of diverse ground covers and shrubs

e. be located outside existing and proposed service easements within lots and comply with all relevant provisions within Development Design Specification D15 - Work in Proximity.

C13 The location of canopy trees shall be positioned to minimise the over-shadowing of solar collectors and disruption of primary views.

C14 Dual occupancy development shall ensure:

a. landscaping complements and integrates with the amenity of each dwelling, the streetscape and any topographical features

b. suitable privacy and solar access for each dwelling and its outdoor and landscaped spaces.

C15 Secondary dwellings and ancillary development must not reduce the landscape area below that indicated in **Table D1.6**. Where a secondary dwelling or ancillary development is located on an existing approved deep soil zone associated with the dwelling house or dual occupancy, a suitable alternative location for a new deep soil zone shall be nominated.

C16 An existing tree of the size stipulated in **Table D1.6** may be considered towards the landscaping requirement under this control.

C17 Where compensatory tree requirements apply to the site under Part B2 of this DCP, these may be counted towards the minimum landscape requirements of **Table D1.6**.

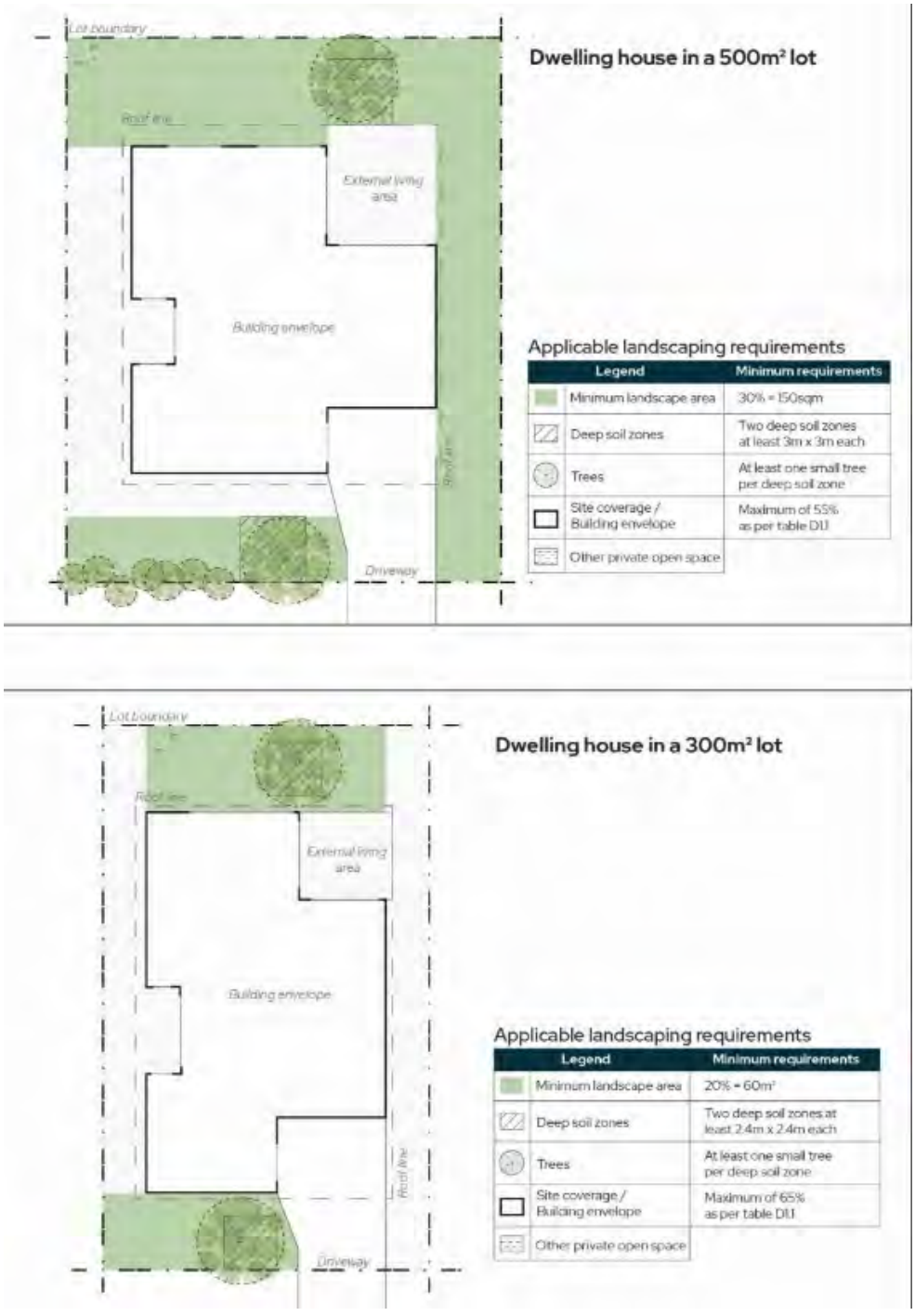


Figure D1.5: Example of dwelling house integration with landscaping and deep soil zones

Landscape Plan – Whilst a formal landscape plan is not required for most single dwelling development applications, a simplified landscape concept plan (refer C1) that reflects general landscaping size and location rather than individual species placement will help determine the best positioning of landscape areas in terms relationship to internal rooms, external living areas and for providing shade, privacy and outdoor open space areas.

A formal landscape plan may be required for dual occupancy development, as well as dwelling houses where significant earthworks are proposed within the front yard or where a potential streetscape impact has been identified by the assessing officer.

Plant selection should be based on environmental considerations including soil type, drainage, aspect, local climatic conditions, available root and canopy space, existing species in the area and proximity to water bodies.

Tweed Native Species Planting Guide (NSPG) - is an online interactive resource produced to assist home owners, land holders and professionals to prepare locally occurring native species planting lists for projects including landscape plans, restoration plans, and backyard garden planting.

https://info.tweed.nsw.gov.au/native-species-planting-guide/tweed

2.2.6 Earthworks

Objectives

O1 To ensure buildings are sited, designed and constructed to relate to the existing topography through minimal excavation or fill, in addition to the height of foundations and retaining walls being kept to a minimum.

O2 To mitigate the issues of overlooking, overshadowing and drainage arising from level changes, particularly at lot boundary interface.

O3 To maintain the integrity of the topographic and scenic landscapes of the Tweed.

O4 To moderate the effects of a building's height, bulk and mass on sloping land.

Controls

C1 Development must minimise the amount of cut and fill required within the building envelope. The maximum acceptable amount includes:

a. cut up to 1m for slopes less than 6° (10%) and greater than 18° (32.5%)

b. cut up to 2m for slopes between 6-12° (10-21.5%)

c. cut up to 3m for slopes between 12-18° (21.5-32.5%)

d. fill up to 1m for all slope types.

Justification and alternate setback retaining wall design may require detail from a structural engineer.

Building envelope – Defined as the outer edge of the roof, including fascia and gutter.

C2 Excavations and fill in excess of 1m may be permitted for compliant driveways and basement garages, providing the excavations are adequately retained and drained in accordance with engineering requirements. Variations may also be permitted to allow improvements to the heating and cooling loads of dwellings for the purpose of creating energy efficient housing where drop edge beam construction is not visible from the street.

C3 Support for earthworks more than 0.6m in height above or below ground level (existing) must take the form of a retaining wall or other structural support. Earthworks greater than 1m need to be designed and constructed to the specification of a certified Structural Engineer.

C4 Cut and fill to 1m is permitted outside the building footprint for up to 10% of the site or a maximum of 100m² for the purpose of creating useable private open space (if desired). For steeply sloping sites (12° and over) greater cut and fill thresholds may be considered, subject to:

a. streetscape impacts and compatibility with existing streetscape character

b. amenity impacts including overlooking, overshadowing, drainage and structural issues

c. limiting multiple retaining walls to 1m to encourage terracing, rather than one large wall

d. landscaping to mitigate visual impacts of retaining walls and batters

e. suitable stormwater and drainage management (**refer to Chapter 2.3: *Stormwater management***).

C5 Where steeply sloping allotments are not be able to achieve the rate of +/-1.0m over 10% of the site to a maximum of 100m², outdoor amenity areas (if desired) may need to be supplemented by decks and other forms of constructed outdoor living space.

C6 No cut or fill is permitted within easements or Council/public infrastructure in accordance with Council's design specifications.

C7 Where changes to landform from cut and fill practices are proposed, stabilisation measures may be requested, including:

a. a 1m wide landscaping strip to be negotiated based on extent of landform change. No landscaping is permitted in drainage easements as per D15 (Work in Proximity)

b. suitable drainage systems where a dual occupancy is proposing significant earthworks.

C8 Cut and fill within the building envelope must be obscured from view by way of cladding, screening and/or landscaping. Batters and retaining walls outside the envelope must be landscaped to mitigate visual impacts.

C9 Cut and fill batters must not:

a. be steeper than 1:2 (vertical: horizontal) unless geotechnical reports result in Council being satisfied with the site stability. All batters are to be stabilised to prevent erosion

b. be closer than 0.9m (cut) or 1.5m (fill) to property boundaries when the slope height exceeds 0.5m

c. reduce neighbour privacy

d. extend onto Council's road reserve.

C10 Retaining walls (including the outer edge) must not be closer than 0.9m (cut) or 1.5m (fill) to property boundaries when the slope height exceeds 0.5m. Variations may be possible where retaining walls avoid overshadowing impacts, respect the scale of surrounding dwellings and are sympathetic to the neighbourhood character. Where proposed directly on a property boundary, neighbour's consent must be provided.

C11 Retaining walls, unless constructed for the sole purpose of landscaping, must be constructed of a material such as concrete, masonry, rock or other permanent-type material. Timber retaining walls are not acceptable for walls that support side boundaries or structures.

C12 Where multiple retaining walls are required, their minimum separation distance must be equal to the height of the wall to provide a landscaped terrace between level changes which softens the visual impacts of the retaining walls.

C13 On side sloping allotments where there are existing inter allotment retaining walls, further retaining walls within the side setback must be limited to 0.6m in height.



Calculating slope - For the purposes of calculating slope, the following method is recommended:

1. Divide the difference between the elevations of 2 points by the distance between them, then multiply the quotient by 100.
2. The difference in elevation between points is called the rise. The distance between the points is called the run. Thus, percent slope equals (rise / run) x 100.

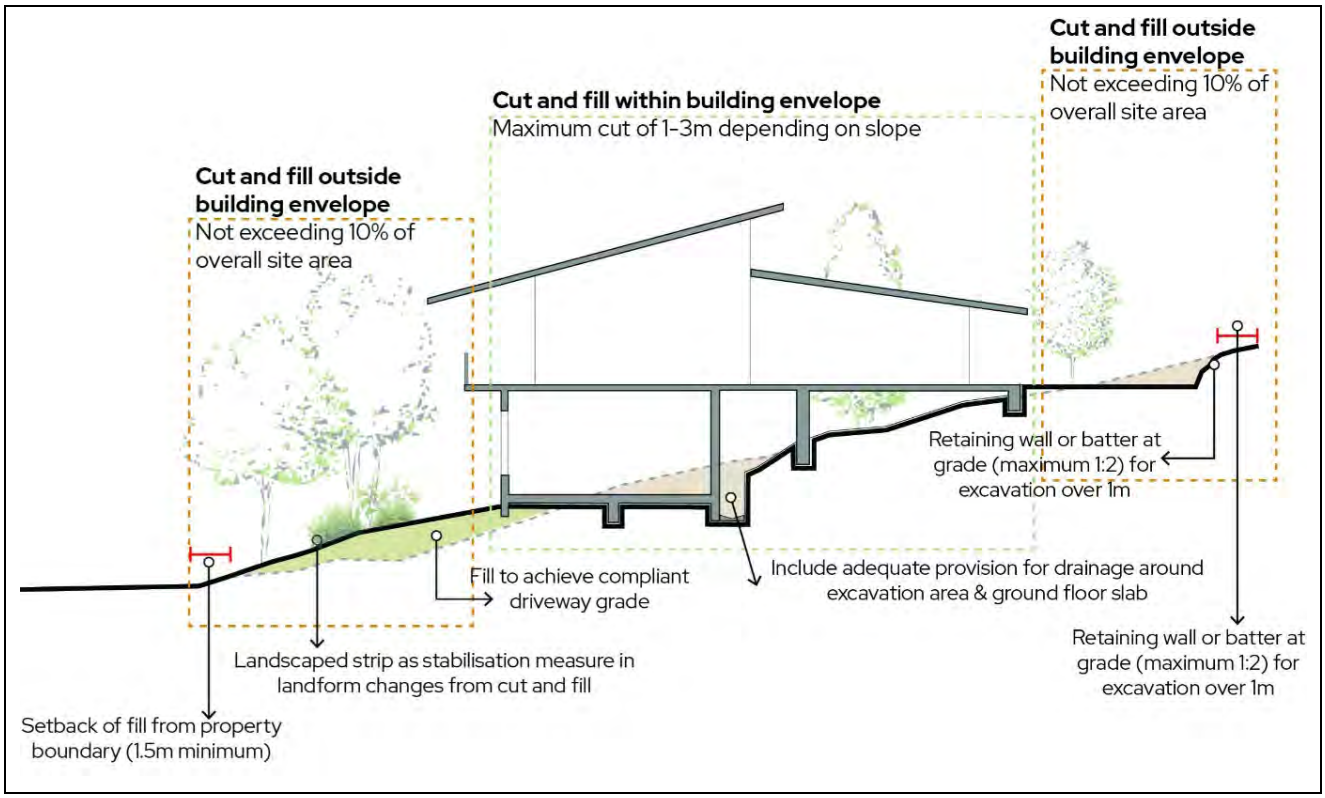


Figure D1.6: The key elements required to establish slope-responsive design



Figure D1.7: This house in Fingal Head has been designed to respect the slope of the land, enabling undercroft spaces to improve natural ventilation and minimise site excavation (Source: Chevaune Hindley / Architect: Symbiosphere)

2.3 Stormwater management

Objectives

O1 Ensure that development applications do not have significant adverse effects on the quality or quantity of flows of water onto adjacent land or into waterways, wetlands or environmental areas during construction and post-completion.

O2 Maximise natural designs of major drainage systems to promote infiltration, vegetation, provision of linear open space and delay flow passage.

O3 Minimise long term maintenance requirements for stormwater drainage infrastructure.

O4 Preserve and utilise existing drainage patterns and integrate natural and man-made water cycles and catchment systems.

O5 Encourage stormwater recycling for non-potable use.

O6 Ensure that streets operate adequately during major storm events and provide for public safety.

O7 Identify opportunities to co-locate stormwater drainage facilities adjacent to open space.

O8 Minimise damage to properties and inconvenience to residents from stormwater.

Controls

C1 A Stormwater Management Plan shall be submitted with all development applications, addressing the requirements of this Section.

C2 Design is to incorporate the principles of Water Sensitive Urban Design (WSUD**)** as specified in Development Design Specification D7 - Stormwater Quality.

C3 Where relevant, design shall provide major storm drainage systems with capacity to convey the 1% AEP flows in the public domain in a manner that is safe for persons, vehicles and properties, as per Development Design Specification D5 - Stormwater Drainage Design (v1.4).

C4 Where relevant, design shall provide minor storm drainage systems with adequate capacity to convey the design storm under normal conditions without blockage or undesirable ponding for prolonged periods, in accordance with Development Design Specification D5.

C5 Drainage systems should minimise runoff, delay its passage and where possible accommodate it within the landscape of the subdivision by utilising techniques such as reuse, detention, retention and infiltration.

C6 Drainage and detention systems must be designed to ensure peak flow rates do not cause adverse impact on downstream aquatic environments, watercourses and property.

C7 'Natural' channel designs should be adopted for significant, non-tidal, off-street open drains with attributes such as a meandering path, pool and riffle zones, use of natural materials and riparian or floodplain vegetation.

C8 Natural watercourses and their alignment should be retained, including riparian vegetation. Proposals to adjust water course alignment and/or to convert natural watercourses into artificial drains will only be considered if such proposals are part of a site management plan that demonstrates how the proposal will result in a net enhanced environmental outcome and will improve the urban structure, to the satisfaction of Council and all applicable State agencies.

C9 Permanent stormwater quality treatment must be in accordance with the Tweed Urban Stormwater Quality Management Plan and Development Design Specification D7 - Stormwater Quality.

C10 The area used for stormwater quality facilities in public open space areas will not be credited towards open space commitments unless where compliant with the development standards for open space in **Part C, Chapter 2.8: *Open Space Network***.

C11 Development applications where stormwater management facilities are located within ecologically significant areas or associated buffers are to be consistent with **Section B1: *Biodiversity & Habitat Management***.

C12 All development applications involving earthworks must include an Erosion and Sediment Control Plan prepared in accordance with Development Design Specification D7 and its Annexure A.

C13 Stormwater drains and management facilities in the public realm shall be designed to minimise risks to public safety, without the need for safety barriers.

C14 Where a site contains watercourses and/or drains that are sourced externally, provision must be made for conveyance of stormwater (including the 1% AEP event) that does not adversely impact on upstream or downstream watercourses or property.

C15 Land receiving external stormwater runoff is not required to treat and remove externally derived pollutants and nutrients.

C16 Stormwater runoff and drainage must only be discharged from a subdivision at a 'lawful point of discharge'. This must be on or immediately adjacent to the development site and may be:

a. a natural watercourse or waterway to which the site naturally drains, or

b. a 'lawful point of discharge' agreed to by Council.

C18 Where no acceptable point of discharge exists, development must either provide the necessary connecting drainage or acquire and dedicate to Council connecting reserves or easements to provide a legal continuity to an offsite lawful point of discharge.

C19 In the case of an inconsistency arising between this part and **Section B3*: Development of Flood Liable Land*** the latter takes precedence.

2.4 Building design

2.4.1 Passive design

Objectives

O1 To ensure the dwelling is designed to suit the Tweed's climatic zone.

O2 To ensure the dwelling is designed and sited to maximise solar access during winter and shade during summer.

O3 To provide dwellings with direct access to natural ventilation to reduce condensation, damp, mould and rot.

O4 To promote thermal comfort, amenity and heathier living environments for occupants.

O5 To minimise ongoing utility and operational costs.

Controls

C1 In addition to Chapter 2.1 controls C1 and C2, a site analysis and design response plan must also demonstrate how the material selection, and their thermal and insulation qualities are suited to the microclimate(s) of the site. Light coloured materials, and vegetated surfaces, for walls, other vertical surfaces and roofing are preferred.

C2 Roofs must incorporate at least 600mm deep eaves or sun shading measures such as external louvres, screens and window hoods, on at least the west and north-facing elevations to shield the building from hot summer sun, while allowing direct sunlight in winter.

C3 Large expanses of glazing on the west-facing elevation shall be minimised and fully shaded on the summer solstice.

C4 For small lot housing, the site analysis and design response must illustrate how the following elements (where appropriate) are used to achieve best practice passive design:

a. highlight windows

b. single room width layouts

c. small north-facing courtyard areas

d. internal voids and double volume spaces for double storey dwellings.

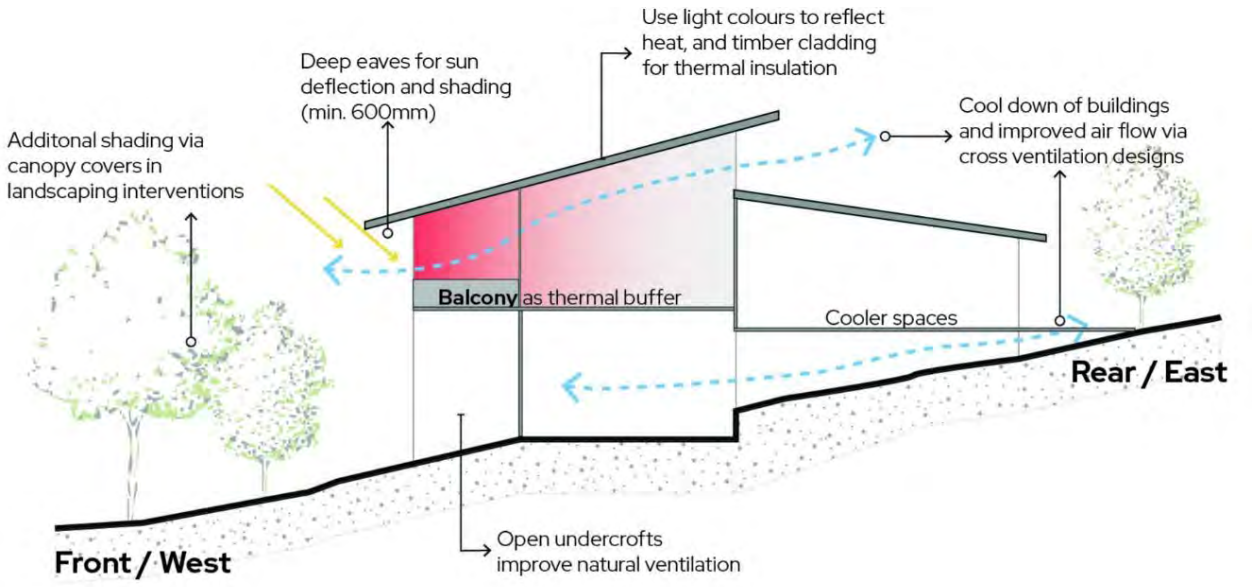


Figure D1.8: How building design & materiality contributes to passive design principles

Alternative building materials and construction systems – Examples of alternative building materials and construction methods that respond to Tweed's microclimates, such as mud brick, green roofs and walls and modular construction systems is provided at yourhome.gov.au

Additional guidance on the use of prefabricated and modular construction technologies in compliance with the National Construction Code (NCC) is provided at abcb.gov.au/initiatives/prefabricated-modular-and-offsite-construction

Council's website explains the additional information required to substantiate alternative building materials for the purpose of development applications https://www.tweed.nsw.gov.au/development-business/building-renovating/home-renovations#sustainable-materials

2.4.2 Built form

Objectives

O1 To minimise the visual impact and bulk of development when viewed from adjoining properties, the street, waterways, and areas for public recreation purposes.

O2 To ensure the dwelling design and materials are compatible with prevailing or desired future character and local climate.

O3 To take advantage of access to natural light, breezes and views by way of rooftop terrace design that is compatible with the overall dwelling and minimises impacts on the neighbourhood.

O4 To ensure that shared valued views are reasonably shared and any impacts to valued views are not unreasonable.

Controls

C1 The overall maximum building height is determined by the Tweed LEP.

C2 Walls longer than 15m and/or greater than 4m high must be articulated through a mix of the following measures to provide visual relief and interest, such as:

a. a variety of architectural elements and materials

b. a variety of roof forms

c. recessing and projecting building forms

d. landscaping.

C3 Minimum floor to ceiling heights of 2.7m are encouraged for habitable rooms. For habitable rooms with a raking ceiling, it is preferable to have at least 30% of the ceiling with a minimum 2.7m height.

C4 Rooftop terraces must be a maximum of 30m² or 15% of the floor below, whichever is the lesser, and not exceed one per dwelling. The following controls apply:

a. No permanent or temporary elements must exceed the maximum building height.

b. Enclosed rooms will not be permitted, and a rooftop terrace covered by a roof is defined as a storey.

c. Lighting installations must use a low light output and project downwards to avoid light pollution.

d. External access stairs must be integrated with the dwelling design and located to have minimal visual or amenity impact on the streetscape and adjoining properties.

e. A rooftop terrace and any fixed structures must be designed and constructed of materials which integrate with the architectural style and form of the building through scale, form, materials and design.

f. Overlooking into private open space and/or habitable rooms and windows of adjacent dwellings is controlled by Chapter 2.4.4.

g. A rooftop terrace/external living area above existing ground level must accord with all boundary setback requirements and controls C3 and C4 of Chapter 2.2.2 Street frontage setbacks**.**

C5 Building siting and height must be designed based on 'view sharing principles' to minimise the impact on views from surrounding properties, and not significantly diminish the public views to heritage items, dominant landscapes and public buildings from public places, or unreasonably obscure public district views of major natural features such as the water, ridgelines or bushland.



View sharing principles –

The Land & Environment Court (lec.nsw.gov.au/practice-and-procedure/principles/planning-principles.html) has a well-established 4 step assessment process to guide the assessment of impacts of development on views which was set out in *Tenacity Consulting v Warringah Council* (2004) NSWLEC 140 as follows:

1. Assessment of the views to be affected
2. Consideration from what part of the property the views are obtained
3. Assessment of the extent of the impact
4. Assessment of the reasonableness of the proposal that

C4 When a secondary dwelling is proposed, the following controls apply:

Table D1.7

Minimum site area	450m²
Maximum internal floor area	60m² or 20% of the total floor area of the principal dwelling, whichever is greater (**refer to Housing SEPP section 52(c)**)
Minimum rear setback – height <4.5m	1.5m
Minimum rear setback – height >4.5m	3m
Minimum frontage and side setbacks	See Sections 4.2 & 4.3

C5 A secondary dwelling is possible on lots less than 450m² if the secondary dwelling is located entirely within an existing dwelling house.

C6 For the purposes of calculating landscape (including deep soil zones) and site coverage, the secondary dwelling must be considered collectively as part of the main dwelling. No additional parking is required for a secondary dwelling, however parking cannot be reduced.

C7 Applications to subdivide a secondary dwelling development will not be permitted. This includes strata, Torrens and community title forms of subdivision.

C8 Additional and separate driveways for secondary dwellings are generally not permitted, however an exception may apply where separate access is necessitated and where the proposal is consistent with the Driveway Access to Property – Design Specification.

C9 Secondary dwellings shall be sited to avoid and minimise disturbance to existing vegetation.

Contributions – Secondary dwellings are exempt from payment of contributions in accordance with Section 7.11 of the Environmental Planning and Assessment Act 1979, Section 64 of the Local Government Act 1993 and Section 305, 306, 307 of the Water Management Act 2000.

2.4.3 Overshadowing

Objectives

O1 To ensure the dwelling is sited and designed to maximise sunlight and daylight access to living spaces and external living areas.

O2 To minimise the potential impacts on solar access to adjoining properties.

Controls

C1 New development must achieve a minimum of:

a. two hours of direct sunlight to at least 50% of the principal area of private open space of the subject dwelling (or 40m² whichever is the lesser) between 9am and 3pm on 21 June

b. three hours of direct sunlight to at least 50% of the glazed area of north-facing windows in habitable rooms and primary living areas, and the surface area of external living areas between 9am and 3pm on 21 June. A breakdown of each element must be provided.

C2 New development must maintain a minimum of:

a. two hours of direct sunlight to at least 50% of the principal area of private open space of any adjacent dwelling (or 40m² whichever is the lesser) between 9am and 3pm on 21 June

b. three hours of direct sunlight to at least 50% of the glazed area of north-facing windows in habitable rooms and primary living areas, and the surface area of external

living areas between 9am and 3pm on 21 June. A breakdown of each element must be provided

c. where such areas already receive less than 2 hours of sunlight, development does not further reduce sunlight by more than 20%.

C3 Where reasonably practicable, sunlight to any existing solar panels should not be reduced to less than 2 hours between 9am and 3pm on 21 June. Impact to solar panels where unreasonably located will not result in the requirement to modify the development to protect solar access to such panels.

2.4.4 Overlooking

Objectives

O1 To minimise overlooking of neighbouring dwellings and external living spaces.

O2 To ensure adequate building separation distances are shared equitably between neighbouring sites, to achieve reasonable levels of external and internal visual privacy.

Controls

C1 Terraces, balconies, living room and kitchen windows must avoid a direct view into neighbouring dwellings or neighbouring private open space. Side windows are to be offset by distances sufficient to avoid visual connection between windows of the subject dwelling and those of the neighbouring dwelling.

C2 External living areas such as decks, verandahs, terraces, rooftop terraces and balconies within 4m from a side or rear boundary may require a privacy screen unless it can be demonstrated that there will be negligible overlooking and/or privacy impacts, as demonstrated in a site analysis.

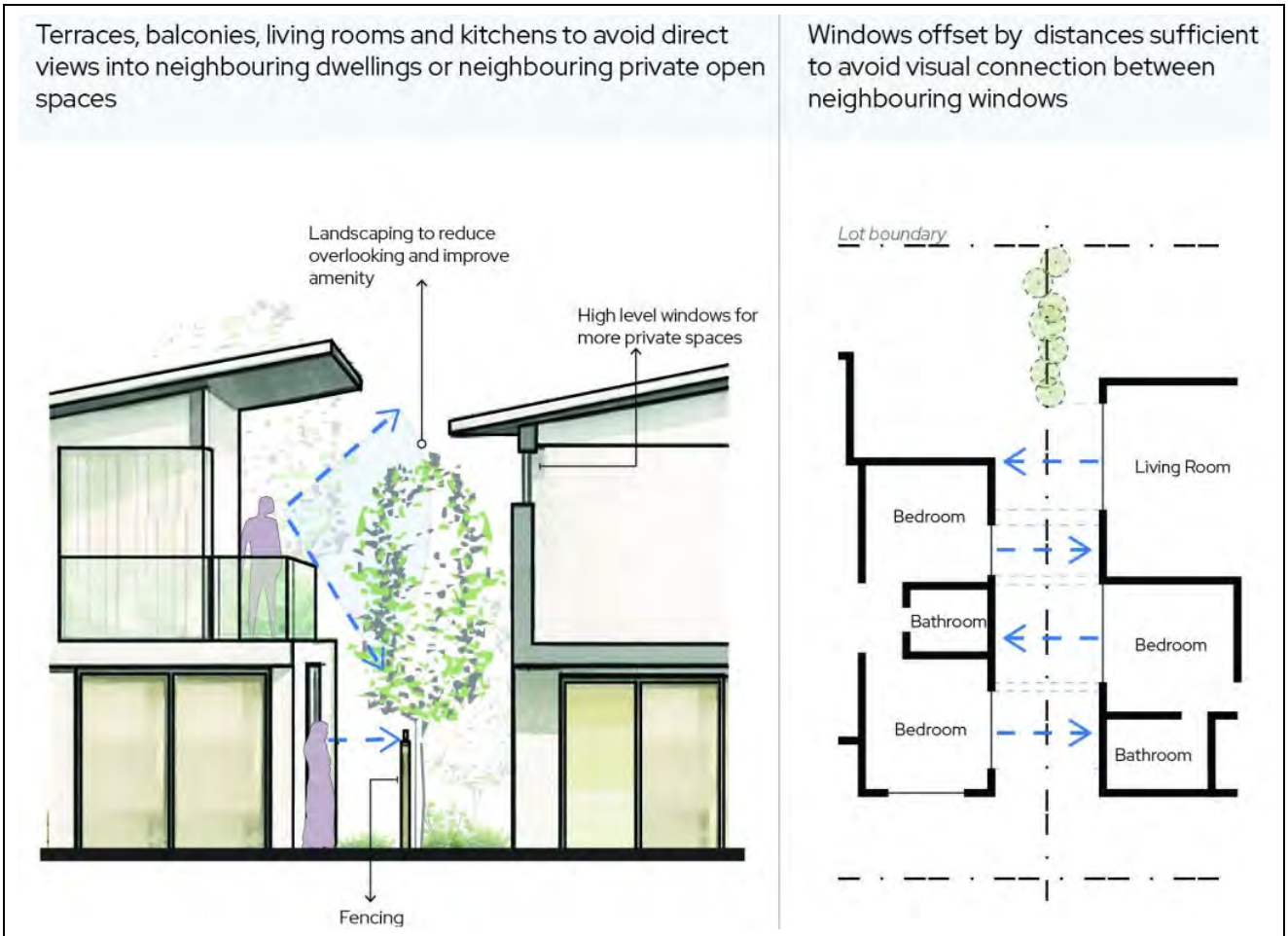


Figure D1.9: How building layout and window placement can minimise overlooking and create privacy

2.4.5 Noise, odour & lighting

Objective

O1 To encourage a high level of acoustic privacy through minimising exposure to noise sources.

O2 To minimise negative impacts of odour and lighting on adjacent properties.

Controls

C1 The noise of an air conditioner, pump, or other mechanical equipment shall be located to prevent offensive noise as defined in the Protection of the Environment Operations Act 1997

C2 Where applicable, development applications shall have regard to Noise Guide for Local Government 2023 be accompanied by an acoustic report prepared by a suitably qualified and experienced acoustic consultant that includes noise associated with the proposed subdivision and acceptable performance criteria for any future proposed sensitive developments (such

as setting acceptable noise levels for inside residential dwellings). The report shall also outline measures to minimise and mitigate potential noise impacts on surrounding occupiers of land by subdivision works. The report should include an attached plan of management showing a noise complaint management procedure. Examples of where an acoustic report will be required (but not limited to) include where the subdivision will be impacted by:

a. busy roads - arterial, designated or classified roads identified in sections 2.119 & 2.120 of the State Environmental Planning Policy (Transport and Infrastructure) 2021

b. aircraft Noise - ANEF contour identified in Clause 7.9 Tweed LEP 2014. (ANEF contours, available on Council's website), or

c. lots with an instrument setting out acoustic restriction under s88B of the Conveyancing Act 1919.

C3 Where measures embedded into new dwellings cannot reduce noise levels to an appropriate level, boundary-to-boundary fences may be acceptable where they meet the following parameters:

a. long expanses of solid masonry, timber paling or Colorbond blank walls are avoided

b. acoustic fences are to be located on lot boundaries and retained in private ownership

c. acoustic fences or barriers must be designed to take into account the passage of local stormwater and floodwater and significant vegetation so as not to create unacceptable impacts

d. landscaping which includes a variety of plant types, such as trees and lower shrubs, is integrated into the overall design with lower shrubs provided on the street facing side of the fence resulting in portions of the fence provided off the front boundary line.

C4 Applications for new residential development that increases residential density within 400 metres from an existing wastewater treatment plant (WWTP) must demonstrate compliance with Design Specification D12.

C5 All external lighting associated with dwelling houses within or adjacent to a C3 Environmental Management zone or C2 Environmental Conservation zone shall be designed in accordance with the *National Light Pollution Guidelines for Wildlife Appendix A: Best practice lighting design* to ensure:

a. wildlife is not disrupted within, or displaced from, important habitat

b. wildlife is able to undertake critical behaviours such as foraging, reproduction and dispersal.

C6 Private tennis courts shall not contain permanent or temporary lighting for night play.

Lighting – A condition may be applied for lighting to comply with *Australian Standard AS/NZS 4282:2023 Control of the obtrusive effects of outdoor lighting* where Council officers identify significant risk.

Significant alterations – means any alteration, for which a permit is required, to the exterior of a dwelling such that its appearance is changed.

2.4.6 Parking & access

Objectives

O1 To minimise the physical and visual impact of hard surfaces, structures and vehicles on the street.

O2 To maximise permeable surface treatments and landscaping to enable stormwater infiltration.

Controls

C1 All off-street car parking spaces and vehicle access must comply with **Section E4: *Access & Parking*** and the relevant Australian Standard.

C2 Multiple driveways and crossovers will not be permitted for multiple parking structures. An exception may be for a dual occupancy or secondary dwelling that requires separate access, and where the proposal is consistent with the Driveway Access to Property – Design Specification.

C3 Parking and access is encouraged to be located off secondary streets and laneways, particularly for lots less than 450m² and with a street frontage less than 10m, where available. In these circumstances, parking and access to the primary street frontage will only be permitted where either a single garage is provided or a two-storey building form with projecting first floor balcony mitigates the visual impact of the parking structure.

C4 Driveways may be located adjacent to the side boundaries only where front fences above 600mm have 60% openness for the first 2 metres along the boundary adjacent to the driveway to achieve pedestrian and traffic sight lines as set out in Australian Standard *AS 2890 Parking facilities*.

C5 Driveways should be designed so that the vehicles can enter and leave the site in a forward direction where vehicles would otherwise have to reverse more than 50m, where the site is steep, fronts a designated road, busy road or is in a highly pedestrianised area.

C6 The following controls apply where a garage or carport is attached to the dwelling:

a. garage doors to a street frontage cannot be more than 50% of the street frontage or 6m, whichever is the lesser

b. the maximum overall building height on land in an urban zone is 3.5m for a flat roof and 4.8m for a pitched/skillion roof

c. a garage or carport must be located a minimum of 1m behind the front building alignment, or 5.5m from the front property boundary, whichever is the greater

d. a basement garage must:

i. not extend more than 1m above ground level (existing) where it fronts a public street/space, or 1.5m above ground level (existing) to the side/rear boundary

ii. not extend beyond the building footprint, and the ramp must not extend beyond site boundaries, and comply with minimum standard requirements.

C7 Development applications seeking to convert a garage to habitable space must provide an alternate parking solution in accordance with **Section E4: *Access & Parking***, or relevant prior approval. Applicants at the head of a cul-de-sac should seek to retain garages and carparking and look for alternate solutions when siting a secondary dwelling or developing a habitable space. Where there are no other suitable locations to replace carparking behind the building line, see Chapter 2.6.3, C14 (b-g), of this Section.

2.5 Dual occupancies

Objective

O1 Dual occupancies must be consistent with the scale and character of surrounding dwellings, or as envisaged through a character statement or the like.

Controls

C1 Dual occupancies are considered as 2 separate dwellings, each of which are required to meet the controls set out in this DCP.

C2 Dual occupancy developments on R2 and RU5 zoned land must be located on sites with a minimum area of:

a. 900m², or

b. 500m² if the land is within the low density residential zone and within 300m of an employment zone, other than Zone E4 General Industrial, or a mixed use zone.

C3 Dual occupancy developments shall be sited to avoid and minimise disturbance to existing vegetation.

C4 Dual occupancy developments must not be located on battle-axe lots.

C5 In all dual occupancy developments, applicants must nominate front, rear and side boundaries and apply setback and landscape area requirements accordingly. The nomination of these boundaries, setbacks and configuration of the development is to be justified through a site analysis. Controls C5 and C6 in Chapter 2.2.3 apply to corner and battle-axe lots.

C6 Mirror image dual occupancy or replication of identical facades is generally discouraged unless it forms part of an overall architectural composition.

C7 In stacked dual occupancy configurations, double garages at the termination of the access handle for the rear allotment must be avoided to minimise visual impact.

C8 On rural zoned land, a dual occupancy must be attached, meaning 2 dwelling-houses that are physically attached by way of a common or shared wall (between internal living areas) or garage. This may include a breezeway or alfresco area if under a single roof line.

C9 Dual occupancy on rural zoned land is not restricted by landscape area, setback, carport, garages and outbuildings controls.

Landscape plan – A formal landscape plan is required for dual occupancy development demonstrating consistency with Chapter 2.5 of this Section.

2.6 Ancillary development

2.6.1 Fences

Objective

O1 To encourage fence design that provides a sense of safety, facilitates surveillance and minimises environmental and neighbourhood amenity impacts.

Controls

C1 Fencing and walls located on bush fire prone land must be constructed of non-combustible materials.

C2 Fences must not impede the natural flow of stormwater runoff or obstruct water meter reading access.

C3 The design of front and return fences must complement the design of both dwelling and streetscape, and must not be comprised of timber paling or Colorbond panels. Landscaping must be incorporated to soften the appearance of long expanses of front fencing beyond 10m in length.

C4 A front and return fence must not exceed a height of:

a. 1.5m with a maximum solid fence height of 600mm, above which a minimum openness ratio of 60% (a site analysis may demonstrate a variation where topography necessitates a retaining wall)

b. 1.8m if located on an arterial road

c. 1.8m where a swimming pool is located along the front boundary, with the 1.8m high section of the fence restricted to the pool area only.

C5 Front fences must not obscure a 2m x 2m splay when adjacent to a driveway except where the fence above 600mm has a 60% openness ratio for the first 2m along the boundary adjacent to the driveway to achieve pedestrian and traffic sight lines as set out in Australian Standard *AS 2890 Parking facilities*.

C6 Return fences must be the same height and design as front fences.

C7 A side and rear fence must not exceed 2m and may include timber paling, metal or Colorbond, if comprised of a low reflective material. A chain wire fence must not exceed 1.2m high unless used for a tennis court.

C8 On corner lots, fence and wall treatments on the secondary street frontage must be of similar visual landscape and build quality and material as the primary street frontage for the length of the building.



Clearing of vegetation associated with ancillary development – Section B1 and Section B2 regulate clearing of vegetation associated with development including ancillary development. Where a proposal includes clearing of or impacts to vegetation, the development shall comply with the relevant Section.



Figure D1.10: The design of this fence in Casuarina plays with materials, transparency and landscaping to extend the character of the home and enhance the streetscape (Architect: Vokes and Peters

2.6.2 Swimming pools

Objective

O1 To ensure pool areas are safe and cause minimal impact on neighbours.

Controls

C1 Swimming pool, spa and associated deck areas must not be located within a nominated deep soil zone or impact mature trees, either on the subject site or neighbouring properties.

C2 Pools may be located between the front building line and street where a site analysis demonstrates that:

a. this is the best solar orientation for the pool and external living areas

b. the impact on habitable rooms of the adjoining and opposite properties is minimised

c. fencing to the street is not constructed of timber paling or Colorbond, but instead incorporates a mix of materials, articulation and landscaping.

C3 The water's edge must be set back 1m from any boundary.

C4 Filters and pumps must meet Chapter 2.5.2, C1.

C5 Swimming pools and spas must have a suitable means for drainage and disposal of overflow water.

C6 Swimming pools and spas must be surrounded with a child-resistant barrier in accordance with the provisions of the *Swimming Pools Act* and the requirements of *Australian Standard 1926*.

2.6.3 Outbuildings

Objectives

O1 To enable uses that are complementary to a dwelling through non-habitable structures of an appropriate scale. These should provide compatibility in design and materials with the associated dwelling house.

O2 To ensure that deep soil zones and significant trees or vegetation are not adversely impacted.

O3 To maintain the existing, or reinforce the desired future, character and streetscape of the area and preserve the amenity of the existing dwelling house and any neighbouring properties.

O4 To avoid land degradation, impact to vegetation and online watercourse and land use conflict.

Controls

C1 Outbuilding controls apply to the following structures (defined as a class 10a building under the Building Codes of Australia) if detached from a dwelling:

a. balcony, deck, patio, pergola, terrace or verandah

b. cabana, cubby house, fernery, shed, gazebo, greenhouse, or shade structure

c. rainwater tank (above ground)

d. carport or garage

e. farm building.

C2 An outbuilding may include a toilet, wash basin and shower, but must not be used as a separate occupancy or for habitable purposes and must not contain a kitchen (or a wet bar).

C3 Deep soil zones must not be used for the siting of an outbuilding.

C4 The total maximum area for outbuildings on land in a residential zone is:

Table D1.8

Lot size	Maximum area of outbuildings
<450m²	50m²
450 – 900m²	60m²
>900m²	100m²

C5 The maximum overall building height for outbuildings on land in a residential zone is 3.5m for a flat roof and 4.8m for a pitched/skillion roof.

C6 The size of sheds on land in a rural zone must:

a. not result in adverse impact on the amenity of adjoining properties

b. be consistent with Council's *Scenic Landscape Protection Policy*

c. be proportionate to the scale of the farming or rural/residential operation.

C7 All outbuildings, except carports, must be located a minimum of 1m behind the front building alignment, or 5.5m from the front property boundary, whichever is the greater.

C8 All outbuildings must be set back the following minimum distances from side boundaries:

a. 0.9m for building walls

b. 0.45m for guttering, eaves and hoods.

C9 All outbuildings must be set back the following minimum distances from rear boundaries, when there is no access from a rear laneway:

a. 1m for building walls, guttering, eaves and hoods when accessed from a rear laneway

b. 1.5m for building walls, guttering, eaves and hoods.

C10 The design and materials of outbuildings must be compatible with those of the dwelling house. Reflective and high-glare surface finishes are to be avoided.

C11 Garage doors to a street frontage must not be more than 50% of the street frontage or 6m in width, whichever is the lesser.

C12 Garages may be permitted to encroach within the primary frontage setback if a site analysis demonstrates that:

a. no other suitable location is available behind the building line

b. there is no vehicular access to the rear or side of the site

c. the proposal will not affect the amenity of adjoining properties

d. the design of the garage is complementary to the design, materials and roof form of the dwelling

e. the proposal will not create an unwanted precedent to the vicinity

f. the proposal does not result in the creation of additional driveway access

g. the proposal will not impede on the required pedestrian and traffic sight lines

h. the structure is located a minimum of 0.9m from the side boundary.

C13 A carport must be designed with 2 or more sides fully open, and cannot be fitted with a door, fence or gate, nor have rooms within the roof.

C14 Carports may be located adjacent to the side boundary if the boundary wall remains open and the structure is not attached to a fence.

C15 Carports may be permitted to encroach within the primary frontage setback if the site analysis demonstrates that:

a. no other suitable location is available behind the building line

b. it does not exceed 33% of the site width, or 6m between supporting posts, whichever is the lesser

c. it is located a minimum of 0.9m from the side boundary

d. frontage facing the street is to remain open and shall not be fitted with a door or enclosing device of any kind

e. posts or columns do not obstruct vehicle manoeuvrability or visibility

f. the roof design is to complement the roofline of the existing house and not significantly impact the streetscap

g. the roof is not trafficable.

C16 Development applications seeking to convert a garage to habitable space must provide an alternate parking solution in accordance with Part E4 of this DCP. Applicants at the head of a cul-de-sac should seek to retain garages and carparking, and look for alternate solutions when siting a secondary dwelling or developing habitable space. Where there are no other suitable locations for replacing carparking behind the building line, see C14 b-g above.

2.6.4 Farm buildings

Objectives

O1 To enable buildings that are complementary to agricultural land use through non-habitable structures of an appropriate scale. These should provide compatibility in design and materials with the associated dwelling house.

O2 To avoid land degradation, impact to vegetation and online watercourse, and land use conflict.

Controls

C1 In addition to the outbuilding controls of Chapter 2.5.3, the following controls apply to farm buildings. These are structures that are ancillary to agriculture use on the landholding, as defined in the Tweed LEP 2014.

C2 The size of farm buildings on land in rural zones must:

a. not result in adverse impact on the amenity of adjoining properties

b. be consistent with Council's *Scenic Landscape Protection Policy*

c. be proportionate to the scale of the farming or rural operation

d. not exceed the site coverage requirements of Chapter 2.2.1, control C1.

C3 Farm buildings must be set back a minimum of:

a. 1m behind the building line of the existing dwelling house on the property

b. 5m from side boundaries

c. 10m from a dwelling house located on the same allotment as the farm building

d. 20m from a dwelling house located on an adjacent allotment to the farm building

e. 40m from any watercourse.

C4 Farm buildings must:

a. be clustered together in one location and close to dwellings, to avoid any land use conflict

b. provide landscape buffers between farm buildings and nearby dwellings to minimise the visual impact of the farm building

c. be sited to avoid and minimise disturbance to existing vegetation

d. face the narrowest elevation towards the road

e. utilise colours and finishes complementary to the dwelling house and surrounding environment.

C5 Farm buildings must not be erected on land having a slope in excess of 15%. Cut and fill for farm buildings should be limited to 1m of cut and 1m of fill. This control takes precedence over Chapter 2.2.6.

C6 No kitchens or laundering facilities are permitted. A bathroom and sink may be necessitated by the separation of the farm building from the primary dwelling for the purpose of personal hygiene.

2.6.5 Detached studio

Objective

O1 To enable expansion of the principal dwelling to accommodate changing household needs and preferences through a detached, small scale and ancillary structure (such as a teenager's retreat with ensuite).

Controls

C1 Detached studios must be situated on the same site as the dwelling and be limited to one per lot.

C2 Detached studios must be single storey unless it is proposed as a garage-top space.

C3 Detached studios must not be used as a separate dwelling.

C4 Detached studios must:

a. not exceed 36m²

b. not contain cooking facilities (e.g. kitchen or sink)

c. not contain internal partitions other than those necessary for bathroom facilities or demonstrate requirement for the use of the studio (e.g. photography darkroom)

d. be no greater than 20m from the dwelling house, with justification required for greater distance in a rural zone

e. be sited to avoid and minimise any disturbance to native vegetation

f. not require a separate driveway, car parking area, garage or carport structure

g. be set back 1.5m (single storey) and 3m (garage-top space) from the rear boundary.

C5 In a rural zone, detached studios must not require the provision of additional public services infrastructure over and above that required by the dwelling.

C6 For the purposes of calculating site coverage, detached studios must be considered collectively as part of the main dwelling.

Contributions – Detached studios are exempt from payment of contributions in accordance with Section 7.11 of the Environmental Planning and Assessment Act 1979, Section 64 of the Local Government Act 1993 and Section 305, 306, 307 of the Water Management Act 2000.

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D2

Multi-Dwelling Housing, Residential Flat Buildings, Shop-Top Housing and Mixed Use Development



1. Introduction

1.1 Purpose

The purpose of this Section is to guide the planning and design of medium and high density housing to provide a diversity of housing choice and efficient use of land in the Tweed Shire.

1.2 Application

This Section applies to development that consists of any of the following:

a. the erection of a new building

b. the substantial redevelopment or the substantial refurbishment of an existing building, or

c. the conversion of an existing building.

1.3 Definition of building types

Multi Dwelling Housing

For the purposes of this Section, *Multi Dwelling Housing* means 3 or more dwellings that are attached or detached on a lot, each with access at ground level (e.g. townhouses and terraces, as well as manor houses).

Part D2 of this DCP applies to Multi Dwelling Housing in the following zones:

a. General Residential (R1)

b. Low Density Residential (R2

c. Medium Density Residential (R3

d. Village (RU5).

Where the land is in the Low Density Residential (R2) or Village (RU5) zones, the following must apply:

a. the overall lot size must be at least 1350m^2 (with a density of at least one dwelling per 450m^2), or

b. the density must be at least one dwelling per 250m^2 if within 300m of an Employment or Mixed use zone.

Residential Flat Buildings, Shop Top Housing & Mixed Use (with residential component)

For the purposes of this Section, these development types are defined as follows:

a. *Residential Flat Building* means a building containing 3 or more dwellings and is more than 2 storeys (e.g. an apartment building), but does not include an attached dwelling, co-living housing or multi dwelling housing.

b. *Shop Top Housing* means housing located above retail or business premises, but not a medical centre or health service (unless meeting the definition of business premises).

c. *Mixed Use* (with residential component) means one or more dwellings located above a ground floor commercial premises or health services facilities.

This Section applies to Residential Flat Buildings, Shop Top Housing & Mixed Use (with residential component) in the following zones:

a. all 3 forms of development in the General Residential (R1) and Medium Density Residential (R3) zones

b. Shop Top Housing / Mixed Use (with residential component) only in the Local Centre (E1), Commercial Centre (E2), and Mixed Use (MU1) zone.

Tweed LEP 2014

For the above types of development, the Tweed LEP 2014 provides Principal Development Standards in Part 4 in relation to building height, floor space ratio, and land use definitions.

2. Objectives and Controls

2.1 General

Objectives

O1 To foster high quality design that responds appropriately to the future character of the area, landscape setting and surrounding built form.

O2 To improve liveability through enhanced internal and external amenity, including better dwelling layout, depth and ceiling heights, solar access, natural ventilation and visual privacy.

O3 To deliver improved sustainability through better traffic and transport solutions, greater building adaptability and robustness, improved energy efficiency and water sensitive urban design.

O4 To improve the relationship of medium and high density housing to the public domain including streets, lanes and parks.

O5 To deliver design guidance and assist in the provision of more diverse housing mix and choice.

Controls

Multi-Dwelling Housing

C1 The objectives and design criteria established for Multi Dwelling Housing contained in the NSW *Low Rise Housing Diversity Design Guide for Development Applications* (July 2020), (Sections 2.2 applying to Manor Houses only, and 2.4 Multi Dwelling Housing) apply to multi-dwelling housing development. Except as modified by another control in this DCP including:

a. setbacks

b. landscaping

c. lighting controls

d. any relevant Character Statement.

Until the Character Statements are prepared, DCP 2008 Part B and A1 Part D will continue to be in force.

Residential Flat Buildings, Shop Top Housing & Mixed Use (with residential component)

C2 State Environmental Planning Policy (Housing) 2021 – Chapter 4 Design of residential apartment development applies and the controls in the *Apartment Design Guide* (NSW Government, 2015) apply to residential flat buildings, shop-top housing and mixed use development that includes residential uses. Except as modified by another control in this DCP including:

a. setbacks

b. landscaping

c. lighting, noise & odour controls

d. any relevant Character Statement.

Until the Character Statements are prepared, DCP 2008 Part B and A1 Part D will continue to be in force.

C3 Despite the 'State Environmental Planning Policy (Housing) 2021 – Chapter 4 Design of residential apartment development' only applying to buildings of at least 3 storeys in height (not including levels below ground level (existing) or levels that are less than 1.2 metres above ground level (existing) that provide for car parking), and containing at least 4 dwellings, the provisions of the 'Apartment Design Guide Part 4: Designing the building' will apply to development below these thresholds that do not fall into the Multi Dwelling Housing definition.

All development

C4 Applications for new residential development that increase residential density within 400 metres from an existing WWTP must demonstrate compliance with Design Specification D12.

2.2 Site analysis

Objective

O1 To ensure site and building design has been informed by comprehensive consideration of the opportunities, constraints and temperate sub-tropical climate of the site and its context.

Controls

C1 A site analysis plan for multi-dwelling houses shall be provided in accordance with NSW *Low Rise Housing Diversity Design Guide for Development Applications* (July 2020) Published by NSW Department of Planning, Housing and Infrastructure, unless varied by a control in this Section.

C2 A site analysis plan for residential flat buildings, shop-top housing or mixed use with a residential component shall be in accordance with *NSW Apartment Design Guide* (July 2015), unless varied by a control in this Section.

2.3 Site design

2.3.1 Setbacks

Objectives

O1 To establish the desired spatial proportions of the street and define the street edge.

O2 To create a threshold by providing a clear transition between the public and private realms.

O3 To provide space that can contribute to the landscape character of the street where desired.

O4 To assist in achieving visual privacy to dwellings from the street, and privacy between dwellings.

O5 To create good quality entries to lobbies, foyers or individual dwellings.

O6 To promote passive surveillance and outlook to the street.

Controls

C1 The following minimum setbacks apply to each development type, as indicated in **Table D2.1**.

Table D2.1

<table>
<tr><th>Development type</th><th>Primary street setback</th><th>Secondary street setback (for corner lots)</th><th>Side setback</th><th>Rear setback</th></tr>
<tr><td rowspan="4">Multi-dwelling housing</td><td rowspan="2">Established areas: average of 2 closest residences (+/- 1m)</td><td rowspan="4">3m</td><td>1 storey: 0.9m</td><td rowspan="4">5m or Deep Soil Zone (whichever is greater)</td></tr>
<tr><td>2 storey: 1.5m</td></tr>
<tr><td rowspan="2">New areas:
• Town housing: 6m
• Row housing: 3m</td><td>Unimpeded 0.9m access along one side boundary</td></tr>
<tr><td>Primary living room windows: 4m</td></tr>
<tr><td rowspan="2">Residential flat buildings</td><td>6m</td><td rowspan="2">3m</td><td>3m</td><td>8m or Deep Soil Zone (whichever is greater)</td></tr>
<tr><td>Top level: 9m</td><td>Above three storeys: 5m</td><td>Top level: 9m</td></tr>
</table>

Development type	Primary street setback	Secondary street setback (for corner lots)	Side setback	Rear setback
Shop top housing / Mixed Use (with residential component)	0m	0m	0m for at least 5m from street boundary Primary living room windows: 4m and be screened	0m

C2 Where new development cannot meet the building separation requirements of the *Apartment Design Guide*, all side-facing windows and doors are to be designed to minimise overlooking and privacy issues by ways of size and set out height of windows, and the use of fixed privacy screens.

C3 Minimum setbacks apply to the outer edge of the building including decks, terraces and balustrades.

2.3.2 Landscaping

Objectives

O1 Enhance the appearance and amenity of development, integrate with the character of the locality and the streetscape, soften the visual impact of urban development and provide privacy between dwellings.

O2 To improve the quality and quantity of the urban forest.

O3 To create an interconnected urban tree canopy that assists in climate change adaptation and mitigation.

O4 Maintain and enhance canopy cover to mitigate the effects of urban heat and improve air quality, urban biodiversity and community health and wellbeing.

O5 Enable natural infiltration of rainwater, whilst reducing stormwater runoff, and promote water sensitive urban design.

O6 Retain and enhance flora and fauna habitat throughout suburban areas and contribute to flora and fauna corridors.

O7 Provide privacy between adjoining dwellings and private open space.

O8 Optimise solar orientation through provision of shade in summer and solar access in winter with a variety of heights and species of trees and shrubs.

O9 Limit heat transfer impacts from hard surface areas, improve micro-climatic conditions of sites and the solar performance of dwellings.

O10 Integrate landscaping with the road reserve in line with Council's Guidelines for Road Reserve Vegetation in Urban Areas.

Controls

C1 Landscaping for multi-dwelling housing shall be provided in accordance with **Table D2.2**

C2 Landscaping associated with residential flat buildings, shop-top housing or mixed use with a residential component shall be in accordance with **Table D2.3**.

C3 Existing landscape elements on sites, such as natural rock outcrops, watercourses, dune vegetation, indigenous vegetation and mature trees, should be retained and integrated with the design of the buildings where possible.

C4 An application made under this Section shall include a landscape plan detailing:

a. existing landscape elements of the site

b. the location and calculations of the landscaped area, deep soil zones and site coverage

c. plant species to be used

d. locations and species of canopy trees

e. how the landscaping complements and integrates with the amenity of the dwelling, the streetscape and any topographical features

f. how each dwelling achieves integration of the dwelling, landscaped areas, private open space and external living areas

g. suitable privacy and solar access for each dwelling and its outdoor and landscaped spaces.

C5 The following general requirements apply to all development under this Part:

a. landscape design shall provide sufficient space for healthy plant and tree growth

b. landscaping must be compatible with the scale of development

c. a landscaped front garden must be provided

d. a minimum of 80% of plants shall comprise of locally occurring Australian native species from the *Tweed Shire Council Native Species Planting Guide* - species must not include weeds with a General Biosecurity Duty, Priority Weeds or the like

e. on lots adjoining native bushland, locally occurring Australian native plant species from the *Tweed Shire Council Native Species Planting Guide* shall be planted within 10m from any lot boundaries adjoining bushland

f. landscaping is to be designed with consideration for any asset protection zones, underground and overhead infrastructure, future canopy/root expansion, as well as environmental conditions of the site

g. plantings must be consistent with the *Planning for Bush Fire Protection guide* (RFS, 2019)

h. canopy trees shall be a minimum 45L pot size

i. canopy trees shall be established and maintained for the life of the development and any failed trees must be replaced immediately.

C6 Deep soil zones shall:

a. be in accordance with **Table D2.2** and **Table D2.3**.

b. be located to optimise solar orientation providing shade in summer and solar access in winter

c. not be covered by impervious surfaces such as concrete, terraces, outbuildings or other structures

d. contain diverse understorey plantings of groundcovers and suitable shrubs

e. be located outside existing and proposed service easements within lots

f. comply with all relevant provisions within Development Design Specification D15 Work in Proximity

g. be located to minimise shadowing over solar collectors, and disruption of primary views

h. where possible, be contiguous to maximise the number of trees that can be planted.

C7 An existing tree of the size required under this section may count towards the landscaping requirement under this control.

C8 Where compensatory tree requirements apply to the site under Section B2, these may be counted towards the minimum landscape requirements of this Part.

C9 An application must include a landscape plan, comprising:

a. deep soil zones in line with **Table D2.2**, located based on a comprehensive site analysis and informed by the internal layouts of dwellings

b. tree canopy rate or planting rates specified in **Table D2.2** for multi-dwelling housing and **Table D2.3** for residential flat buildings and shop-top housing

c. a minimum 80% species from the *Tweed Shire Council Native Species Planting Guide*, including at least one locally occurring Australian native canopy tree. Plant species must not include weeds with a General Biosecurity Duty, Priority Weeds or the like.

C10 Planting on structures for multi-dwelling housing shall be in accordance with the *Low Rise Housing Diversity Design Guide for Development Applications 3C: Landscaped Area*.

C11 Planting on structures for shop-top housing and mixed-use development shall be in accordance with *Apartment Design Guide* (NSW Government, 2015) *Section 4P Planting on structures*

Tree canopy – a development can deliver either the tree canopy percentage **or** the tree planting rate. The tree canopy percentage shall be calculated as the number of trees needed to meet the canopy percentage area using the assumed canopy area of small, medium and large trees as per Table 2.2 and Table 2.3 - *Indicative canopy size at maturity.*

For example, a townhouse development on a 1500m2 lot requires 375m2 (25%) of tree canopy. This can be delivered with 5 medium trees and 5 small trees.

Table D2.2 Tree canopy and deep soil - Multi-Dwelling Housing

Lot size (m^2)	Deep soil zone (% of site)	Deep soil zone requirements	Tree canopy (% of site)	Tree planting rate
<1000	20%	One deep soil zone in the front setback and one deep soil zone in the rear setback – minimum dimensions of 3m.	20%	For every 300m^2 of site area, or part thereof, plant at least one medium tree, or 2 small trees.
1000 - 3000	25%	One deep soil zone in the front setback and one deep soil zone in the rear setback – minimum dimensions of 6m.	25%	For every 200m^2 of site area, or part thereof, plant at least one medium tree, or two small trees.
>3000	30%	One deep soil zone in the front setback and one deep soil zone in the rear setback – minimum dimensions of 6m.	30%	For every 350m^2 of site area, or part thereof, plant at least one large tree, or 2 medium trees.

Indicative canopy tree size at maturity

Size	Minimum canopy spread	Minimum canopy area
Small	6m	28m2
Medium	8m	50m2
Large	12m	113m

The following substitutions may be made to the planting rate outlined in this table where endorsed by Council:

- One medium tree may be substituted for 2 small trees
- One large tree may be substituted for 2 medium trees.

Table D2.3 Tree canopy and deep soil - Residential Flat Buildings & Shop-Top Housing

Lot size (m^2)	Deep soil zone (% of site)	Deep soil zone requirements	Tree canopy (% of site)	Tree planting rate
<650	7%	One deep soil zone in the front setback and one deep soil zone in the rear setback – minimum dimensions of 3m.	15%	For every 350m^2 of site area, or part thereof, plant at least one small tree in the front setback and one small tree in the rear setback.
650 - 1500	7%	One deep soil zone in the front setback and one deep soil zone in the rear setback – minimum dimensions of 3m.	15%	For every 350m^2 of site area, or part thereof, plant at least one medium tree in the deep soil zone areas.
>1500	7%	One deep soil zone in the front setback and one deep soil zone in the rear setback – minimum dimensions of 6m.	20%	For every 575m^2 of site area, or part thereof, plant at least one large or 2 medium trees in the deep soil zone areas.

Indicative canopy tree size at maturity

Size	Minimum canopy spread	Minimum canopy area
Small	6m	28m2
Medium	8m	50m2
Large	12m	113m

The following substitutions may be made to the planting rate outlined in this table where endorsed by Council:

- One medium tree may be substituted for 2 small trees
- One large tree may be substituted for 2 medium trees.

Planting on structures – planting over basement car parks, podiums, roofs and walls can provide amenity, improve air quality and microclimate, and reduce direct energy use and stormwater runoff. It can also supplement deep soil planting on sites where opportunities for this are limited or restricted such as high-density areas.

Where a proposal does not achieve deep soil zone requirements alternate forms of landscaping such as planting on structures may be acceptable.

3. Lighting, noise & odour

Objective

O1 To encourage a high level of acoustic privacy through minimising exposure to noise sources.

O2 To minimise negative impacts of odour

O3 To mitigate the effect of artificial light on neighbouring properties, wildlife and sensitive ecosystems.

Controls

C1 The noise of an air conditioner, pump, or other mechanical equipment shall be located to prevent offensive noise as defined in the Protection of the Environment Operations Act 1997.

C2 Where applicable, development applications shall have regard to Noise Guide for Local Government 2023 be accompanied by an acoustic report prepared by a suitably qualified and experienced acoustic consultant that identifies and assesses the noise and vibration sources during demolition and construction works, as well as noise associated with occupation at the property. This includes noise associated with lifts, car lifts, air conditioning and ventilation systems, other plant and equipment, car parks, any outdoor and common outdoor areas, pool and spa areas (including plant and equipment), any waste chutes and waste storage areas. The report shall outline measures to minimise and mitigate potential noise and vibration impacts on surrounding occupiers of land. Consideration shall also be required for development impacted by;

a. busy roads - arterial, designated or classified roads identified in sections 2.119 & 2.120 of the State Environmental Planning Policy (Transport and Infrastructure) 2021, or

b. aircraft noise - ANEF contour identified in Clause 7.9 Tweed LEP 2014. (ANEF contours, available on Council's website).

Where measures embedded into new developments cannot reduce noise levels to an appropriate level, boundary-to-boundary fences may be acceptable where they meet the following parameters:

a. Long expanses of solid masonry, timber paling or Colorbond blank walls are avoided.

b. Acoustic fences are to be located on lot boundaries and retained in private ownership.

c. Acoustic fences or barriers must be designed to take into account the passage of local stormwater and floodwater and significant vegetation so as not to create unacceptable impacts.

d. Landscaping which includes a variety of plant types, such as trees and lower shrubs, is integrated into the overall design with lower shrubs provided on the street facing side of the fence resulting in portions of the fence provided off the front boundary line.

C3 Applications for new residential development that increases residential density within 400 metres from an existing wastewater treatment plant (WWTP) must demonstrate compliance with Design Specification D12.

C4 All external lighting shall be designed in accordance with the *National Light Pollution Guidelines for Wildlife Appendix A: Best practice lighting design*. Specifically, development shall:

a. only use artificial lighting for specific and defined purposes and only in the required location

b. use adaptive controls to manage light timing, intensity and colour

c. light only the intended object or area

d. use the minimum amount of light needed for the activity

e. use non-reflective, dark-coloured surfaces

f. use lights with reduced or filtered-out blue, violet and ultraviolet wavelengths.

C5 Development that is likely to result in significant risk to threatened species for which artificial light has been demonstrated to affect behaviour, survivorship or reproduction, as determined by Council, must include a site-specific risk assessment and management plan consistent with the *National Light Pollution Guidelines for Wildlife*.

C6 Private tennis courts shall not contain permanent or temporary lighting.

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D3

Character Statements



As part of the ongoing refinements to the DCP, Council will be converting the site-specific chapters of Tweed DCP 2008 Section B to "Character Statements". This work is expected to begin in 2026.

In the interim, that is until the Character Statements are completed, certain sections of Part B of Tweed DCP 2008 have been incorporated in Part F.

While Council seeks to ensure consistency across all sections of the DCP, it is recognised that in particular circumstances a control in one DCP Part may contravene a control in another DCP Part. In this case, applicants are encouraged to follow the approach outlined in the "Application" Chapter provided in Part A of this DCP.

FINGAL HEAD (BOONINYBAH)

CHARACTER STATEMENT

Vision for the character of Fingal Head hamlet and peninsula (Booninybah): Fingal Head is a harmonious coastal community that embraces and preserves its natural environment and beauty, celebrates its rich cultural heritage, and fosters a sustainable and vibrant environment for residents and visitors alike.

The residential areas of Fingal Head are characterised by a mix of older, traditional small-scale dwellings, alongside eclectic and uniquely designed coastal homes. There is an emerging trend of contemporary and larger scale houses replacing the traditional dwellings which exhibit more significant visual bulk to neighbours and the street. A significant portion of the residential land in Fingal Head is constrained by flooding, bushfire risk and high ecological sensitivity.

Community values

- Balance between development and preservation.
- Recognise, respect and promote cultural heritage, emphasising the celebration and preservation of indigenous knowledge, stories, traditions, and historical landmarks.
- Environmentally friendly practices and responsible tourism to preserve and protect the area's natural resources.
- Vibrant and involved community ·
- Proactive approach towards community resilience.
- Small low-profile 'treed' character for residents, visitors, flora and fauna.
- By preserving the natural beauty, cultural heritage, and fostering community engagement in Fingal Head, we aim to create a harmonious and sustainable environment where residents and visitors alike can enjoy and contribute to the unique character of this special hamlet.

Existing character elements

The predominant character defining elements of buildings in Fingal Head relate to:

- Its environmental setting and attributes, being a narrow peninsula surrounded by water and established coastal vegetation.
- Its small-scale, low-density settlement footprint.
- The eclectic and ever evolving mix of building design exhibiting no prevailing or predominate architectural style.
- The requirement to address flood, slope and bushfire risk when designing buildings.

The specific character defining elements of each precinct in Fingal Head relate to:

- Raised single and double storey dwelling houses on the flat flood affected land to the north and south of the village core.
- Split level single dwellings and multi-unit development on the elevated and sloping land adjacent to the village core.
- Traditional single and double storey homes, and some multi-unit development, on the flood free, flat land of the village core.
- Underutilised land zoned R1 Local Centre is located on Marine Parade adjacent to the beach and foreshore is used for residential purposes.
- The Fingal Rovers Surf Life Saving Club supports a small café and the eclectic café/restaurant Sheoak Shack opposite the boat ramp both service the community and visitors.
- A small primary school has provided education and a hub for the community for more than a century.
- The General Store: a small local business serving the needs of the local community. Valued as a casual, welcoming, community hub.
- Remaining undeveloped land is under Council or Crown ownership, or in private ownership under the Tweed Byron Local Aboriginal Land Council.
- These open space areas zoned for recreation and natural areas zoned for environmental protection act as natural barriers to further urban expansion.

Preferred future character

With little opportunity for expansion of the township, a key priority for Fingal Head is providing guidance on the appearance of buildings in terms of bulk and scale, which will ensure the valued low-density character and scale is retained, yet encouraging the eclectic mix of building design and character to endure.

The preferred future character will be achieved by:

- Maintaining the small, low profile, 'treed' character which provides green space and habitat for residents, 'visitors, flora and fauna.
- Limiting height, bulk and scale of developments to low density to allow for urban vegetation and flora and fauna corridors.
- Sustainably designing homes to blend in with the leafy surroundings.
- Minimising additional commercial uses within the village.
- Adhering to the current 2-storey character height limit.

D4

Employment



1. Introduction

1.1 Purpose

The purpose of this Section is to:

a. facilitate development that maximises employment generation through efficient site planning, design, and land use

b. provide design requirements that minimise land use conflicts, including when adjacent to residential development

c. foster a high-quality urban environment through design controls, landscaping and urban heat mitigation.

1.2 Application

This Section applies to Development Applications affecting land zoned E3 Productivity Support or E4 General Industrial under the Tweed LEP 2014 or the Tweed City Centre LEP 2012.

2. Objectives and Controls

2.1 Site Analysis

Site analysis – The requirement for a site analysis plan applies only in the instance of a development application seeking erection of a building or carrying out work involving the enlargement or extension of a building. Subdivision applications are subject to site analysis requirement under Part C of this DCP.

Objectives

O1 To ensure development applications are based on a thorough understanding of the opportunities and constraints of a site, enabling appropriate siting of a development, and minimising land use conflicts and adverse amenity or environmental impacts.

O2 To provide quality outcomes, landscaping, and comfortable workplaces.

Controls

C1 A site analysis plan must be submitted as part of Development Application documentation that identifies the existing conditions, opportunities and constraints of a particular site.

C2 A site analysis plan must be made with reference to prevailing constraints affecting the development site including, but not limited to:

a. land of ecological significance, including land recognised as koala habitat

b. scenic amenity values

c. waterways, water bodies, riparian areas and riparian vegetation

d. land subject to flood risk

e. whether the site contains or adjoins places of cultural significance, a heritage item or a heritage conservation area

f. land subject to bushfire hazard

g. contaminated land

h. acid sulfate soils.

C3 Where applicable, a site analysis plan is to be informed by an Aboriginal Cultural Heritage Assessment, in accordance with Council's *Aboriginal Cultural Heritage Management Plan.*

Aboriginal Cultural Heritage Management Plan –

Council adopted the Aboriginal Cultural Heritage Management Plan 2018 (ACHMP)(PDF, 14MB) on 5 July 2018. Whilst the ACHMP is not part of this DCP, Compliance with Control C3 above requires review of the relevant mapping as part of constraints mapping linked with this DCP. If the subject site is mapped as predictive or confirmed Aboriginal heritage site, the Application will need to demonstrate compliance with the ACHMP.

C4 In addition to matters identified in C2 and C3 above, the site analysis is to demonstrate a thorough understanding and assessment of:

a. direction of solar paths (summer and winter)

b. prevailing winds

c. weather patterns

d. urban heat risks

e. shading influences.

2.2 Site design

2.2.1 Setbacks

Objectives

O1 To define building envelopes within each allotment by specifying minimum setbacks.

O2 To achieve attractive, harmonious and coordinated streetscapes.

O3 To provide for quality landscaping improving the amenity of the area and mitigating the urban heat effect.

Controls

C1 A minimum setback of 6m applies where adjoining residential zoned land or embellished parkland.

C2 Vehicle parking and hardstand areas within the front setback and visible from the street are to be suitably screened by high-quality landscape embellishment to minimise visual impact.

C3 Outdoor amenity areas and small ancillary uses such as cafes or canteens, including shade structures and seating areas, are encouraged within the front setback in line with CPTED principles.

C4 When adjoining residential land; loading, open storage, waste disposal and other activities likely to generate emissions should be screened and set back to minimise amenity impacts.

C5 Driveways are to be positioned so that on-street parking and landscaping on the site are maximised and to avoid removal or damage to existing street trees.

C6 Driveways must be designed to enable vehicles to enter and leave the site in a forward direction.

2.2.2 Landscaping

Objectives

O1 To provide a 'soft edge' and vegetation screen that enhances the appearance of the development and improves the visual amenity of employment sites and precincts.

O2 To provide canopy tree cover for mitigating the effects of urban heat through shade and shelter.

O3 To assist in stormwater management by minimising runoff across hard surfaces.

O4 To maintain safety for car park users.

Controls

C1 Where a site analysis is required (**refer to Chapter 2.1: *Site Analysis* of this Section**), an Application subject to this Section should be accompanied by a Landscape Plan, which addresses the following matters:

a. location and height of existing trees, fences and other structures

b. proposed buildings including wall and eave lines, window and door locations, access, parking and utility areas

c. dimensions and materials for all surfaces and statement of % permeable area

d. location, height and materials of retaining walls, including cross section where located in the frontage

e. location, width and standard cross section of planting beds

f. plant species, including description of intended function and size at maturity

g. location and finished levels of drainage

h. optionally, visual depiction of the intended landscape character.

Canopy trees – This part refers to canopy trees which are defined as a tree with a minimum canopy area of 50m^2 at maturity. Canopy trees play an important role in softening the bulk and scale typical of commercial development and reducing the effects of urban heat.

C2 The following general requirements apply to all landscaping under this Part unless varied by another Control:

a. Plant species are to comprise a minimum 80% species from Council's *Native Species Planting Guide*. Species must not include weeds with a General Biosecurity Duty, Priority Weeds or the like.

b. On lots adjoining native bushland, only plant species from Council's *Native Species Planting Guide* shall be planted within 10m of any lot boundaries adjoining bushland.

c. Each deep soil zone shall contain diverse understorey plantings of groundcovers and suitable shrubs.

d. Root control barriers are required for all canopy trees planted within 2m of paved surfaces, kerbing, underground services or similar infrastructure.

e. Landscaping is to be designed with consideration for any asset protection zones, underground and overhead infrastructure, future canopy/root expansion, as well as environmental conditions of the site.

f. All plants are to maintain adequate sight lines in accordance with traffic visibility, engineering safety requirements and CPTED recommendations.

g. Canopy trees shall be a minimum 75L stock, with shrubs and ground covers a minimum tubestock size.

h. Plants shall be mulched to a depth of 100mm.

i. Canopy trees shall be established and maintained for the life of the development, and failed trees must be replaced immediately.

C3 The following landscape standards apply to all development under this Part:

Table D4.1

Site Area	Minimum deep soil zone (% of site area)	Landscaping Requirements
<1000m^2	15%	At least one canopy tree^ per 100m2 or part thereof of deep soil zone Mass plantings of suitable ground covers or low shrubs.
1000 – 3000m^2		At least one canopy tree^ per 100m2 or part thereof of deep soil zone with mass plantings of suitable ground covers or low shrubs.
>3000m^2		At least one canopy tree^ per 100m2 or part thereof of deep soil zone Mass plantings of suitable ground covers or low shrubs.
Canopy tree *is defined as a tree of at least 8m in height at maturity OR has a minimum canopy area of at least 50m^2 at maturity.*		

C4 All street frontages are to have a landscape buffer. This shall be the full length of the frontage (excluding access ways) and at least 3m in width. At least 50% of the minimum landscaped area required under C3/Table D4.1 shall be contained within the landscape buffer. Where side and rear setbacks adjoin residential land or embellished parkland, an additional landscape buffer of at least 3m in depth must also be provided as required under Chapter 2.5 of this Section.

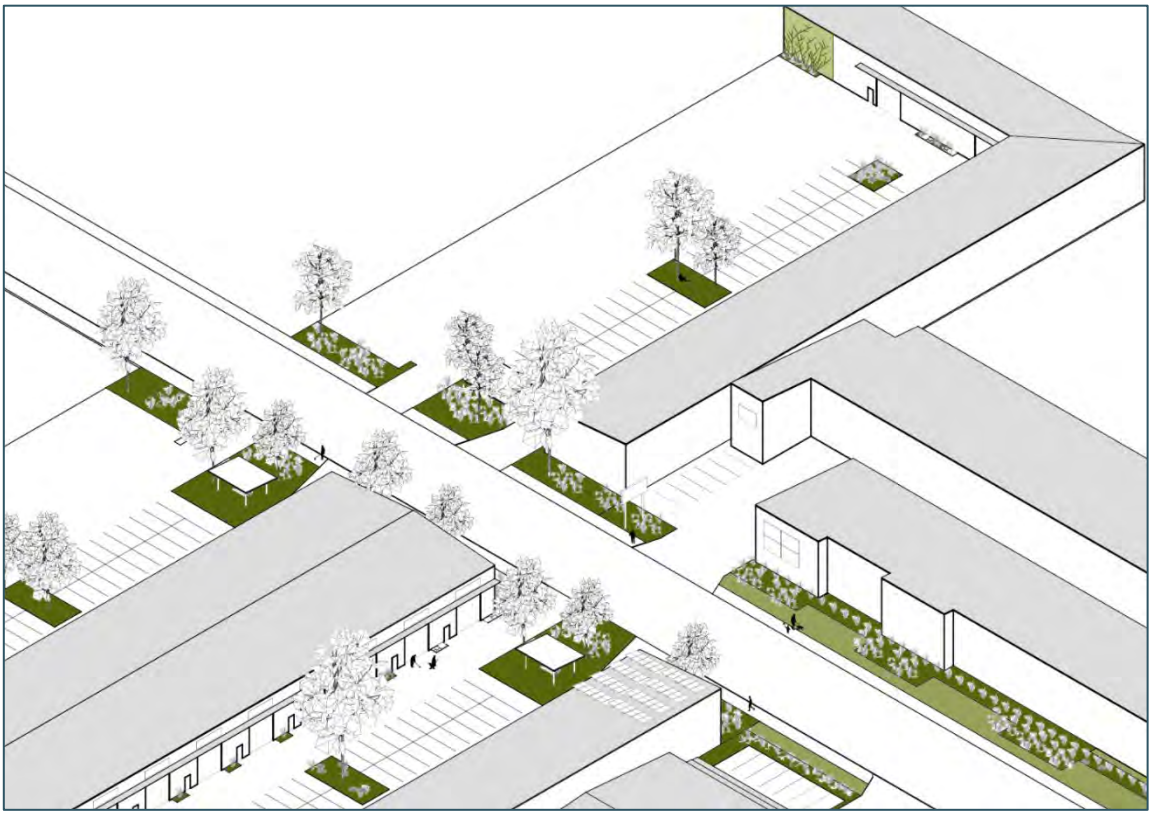


Figure D4.1: Graphic representation of landscaping outcomes sought under Controls 2-6 of this Chapter.

C5 In addition to the landscape buffer requirements of C4, at least one-canopy tree shall be provided within carparking areas for every six at-grade car parking spaces, to the following standards:

a. A deep soil zone with a minimum dimension of 3m by 3m (or suitable equivalent) is provided for **each** canopy tree.

b. Trees shall have a clear trunk height of at least 2.4m at maturity.

c. Trees shall be situated to receive sufficient sunlight, water and nutrients.

C6 At least 50% of paved surfaces, other than public roads, must meet one of the following cool paving standards:

a. paving with light-coloured aggregates, pigments and binders

b. high emittance and high albedo cement and asphalt

c. resin-based concrete

d. light-coloured coatings, or

e. permeable paving, providing it is installed on a subgrade with the capacity for infiltration or temporary storage of water below the pavement.

Plant selection – Consideration should be made to soil type, drainage, aspect, local climatic conditions, available root and canopy space, existing species in the area and proximity to water bodies. Selecting tree species from outside of the preferred list (*Native Species Guideline* and *Street Trees)* may be permitted where reasonable justification is provided and upon consideration all the factors relevant to a particular site.

Native Species Planting Guide (NSPG) – is an online interactive resource produced to assist homeowners, land holders and professionals to prepare locally occurring native species planting lists for projects including landscape plans, restoration plans, and backyard garden planting.

https://info.tweed.nsw.gov.au/native-species-planting-guide/tweed

2.2.3 Earthworks

Objectives

O1 Maximise opportunities to integrate the topographic features, scenic landscapes and character of the Tweed by limiting the extent of earthworks permitted to accommodate large floorplate uses and encourage the provision of landscaping.

O2 Promote attractive streetscapes by providing integrated landscape solutions where retaining walls are visible from the street.

Controls

C1 Cut and fill is to be limited to 3m.

C2 Details of all proposed earthworks are to accompany all Development Applications illustrating the extent, location, heights and levels (areas of cut and fill, retaining walls, batters, building pads etc.). This can be represented on the site analysis, site plan and site sections.

C3 Retaining walls to public interfaces are to be a maximum of +/-1.0m before incorporating a landscape step, and all earthwork batters are to be landscaped to mitigate adverse visual impacts.

2.3 Stormwater Management

Objectives

O1 Ensure that development applications do not have significant adverse effects on the quality or quantity of flows of water onto adjacent land or into waterways, wetlands or environmental areas during construction and post-completion.

O2 Maximise natural designs of major drainage systems to promote infiltration, vegetation, provision of linear open space and delay flow passage.

O3 Minimise long term maintenance requirements for stormwater drainage infrastructure.

O4 Preserve and utilise existing drainage patterns and integrate natural and man-made water cycles and catchment systems.

O5 Encourage stormwater recycling for non-potable use.

O6 Ensure that streets operate adequately during major storm events and provide for public safety.

O7 Identify opportunities to co-locate stormwater drainage facilities adjacent to open space.

O8 Minimise damage to properties and inconvenience to residents from stormwater.

Controls

C1 A Stormwater Management Plan shall be submitted with all development applications, addressing the requirements of this Section.

C2 Design is to incorporate the principles of Water Sensitive Urban Design (WSUD**)** as specified in Development Design Specification D7 - Stormwater Quality.

C3 Where relevant, design shall provide major storm drainage systems with capacity to convey the 1% AEP flows in the public domain in a manner that is safe for persons, vehicles and properties, as per Development Design Specification D5 – Stormwater Drainage Design (v1.4).

C4 Where relevant, design shall provide minor storm drainage systems with adequate capacity to convey the design storm under normal conditions without blockage or undesirable ponding for prolonged periods, in accordance with Development Design Specification D5.

C5 Drainage systems should minimise runoff, delay its passage and where possible accommodate it within the landscape of the subdivision by utilising techniques such as reuse, detention, retention and infiltration.

C6 Drainage and detention systems must be designed to ensure peak flow rates do not cause adverse impact on downstream aquatic environments, watercourses and property.

C7 'Natural' channel designs should be adopted for significant, non-tidal, off-street open drains with attributes such as a meandering path, pool and riffle zones, use of natural materials and riparian or floodplain vegetation.

C8 Natural watercourses and their alignment should be retained, including riparian vegetation. Proposals to adjust water course alignment and/or to convert natural watercourses into artificial drains will only be considered if such proposals are part of a site management plan that demonstrates how the proposal will result in a net enhanced environmental outcome and will improve the urban structure, to the satisfaction of Council and all applicable State agencies.

C9 Permanent stormwater quality treatment must be in accordance with the Tweed Urban Stormwater Quality Management Plan and Development Design Specification D7.

C10 The area used for stormwater quality facilities in public open space areas will not be credited towards open space commitments unless where compliant with the development standards for open space in **Part C**, **Chapter 2.8: *Open Space Network***.

C11 Development applications where stormwater management facilities are located within ecologically significant areas or associated buffers are to be consistent with **Section B1: *Biodiversity & Habitat Management***.

C12 All development applications involving earthworks must include an Erosion and Sediment Control Plan prepared in accordance with Development Design Specification D7 and its Annexure A.

C13 Stormwater drains and management facilities in the public realm shall be designed to minimise risks to public safety, without the need for safety barriers.

C14 Where a site contains watercourses and/or drains that are sourced externally, provision must be made for conveyance of stormwater (including the 1% AEP event) that does not adversely impact on upstream or downstream watercourses or property.

C15 Land receiving external stormwater runoff is not required to treat and remove externally derived pollutants and nutrients.

C16 Stormwater runoff and drainage must only be discharged from a subdivision at a 'lawful point of discharge'. This must be on or immediately adjacent to the development site and may be:

C17 A natural watercourse or waterway to which the site naturally drains; or

C18 A 'lawful point of discharge' agreed to by Council.

C19 Where no acceptable point of discharge exists, development must either provide the necessary connecting drainage or acquire and dedicate to Council connecting reserves or easements to provide a legal continuity to an offsite lawful point of discharge.

C20 In the case of an inconsistency arising between this Section and **Section B3*: Development of Flood Liable Land*** the latter takes precedence.

2.4 Building design

2.4.1 Built Form

Objectives

O1 To foster a high-quality working environment through climate-sensitive design.

O2 To ensure building design, form, materials and colours contribute to safe and attractive streetscapes.

O3 To ensure development does not compromise the future use of the site for employment-related purposes.

O4 To ensure land adjoining a development site is not sterilised or isolated and is capable of being reasonably accessed and developed for employment purposes.

Controls

a) Layout and orientation of development should take advantage of the prevailing winds, maximising opportunities for natural ventilation throughout the site and across the precinct.

b) Development must consider passive design principles to maximise thermal comfort, cross ventilation, and solar access.

c) Development should incorporate a variety of materials, architectural elements and colours to enhance the front and other facades visible from public areas, without causing significant glare nuisance.

d) Building entrances should address the street frontage(s), clearly articulate entrances and pedestrian access, and provide level or ramp access.

e) To mitigate the urban heat effects, development applications are encouraged to consider incorporating vegetation, green roofs and green walls as part of the overall design to screen hard surfaces.

f) If the proposed development is likely to affect adjacent employment land by way of isolating it or sterilising its capacity to be developed for employment purposes, the following is to occur:

a. Negotiations are to be undertaken with neighbouring owners to seek amalgamation or coordinated development outcome.

b. If neighbouring landowners do not agree on terms of amalgamation, evidence of reasonable offers is to be provided to consent authority; or

c. if the amalgamation of adjoining properties cannot be achieved, demonstrate that the adjacent property has reasonable capacity to be developed, or redeveloped, for employment purposes by submitting an indicative schematic layout.



Figure D4.1: Tweed's older employment precincts contain landlocked and/or narrow lots, at risk of being sterilised and unable to be reasonably developed for employment purposes (**refer to control C6 above**)

g) Blank or unarticulated built form elevation should be limited to less than 15m in length and 5m in height, when facing a road.

h) Use of large format signage or branding across whole elevations, including large format images across display windows, should be limited.

i) Retail premises with a contiguous sales floor area accessible to the public of greater than 5,000m^2 should activate at least 50% of the building frontage with generous and identifiable features. These include;

a. building entrance

b. display windows

c. human-scale built form, such as:

shade structures, awnings, outdoor amenity spaces, landscaping, BBQ areas, canteens or cafes.

j) Developments are to provide staff with communal or break-out/lunch areas which are commensurate with the size of the development. Communal areas are to provide amenities through a design that fosters access to sun, shade, outlook, landscaping and other comforts.

k) Proposed development should consider the "surveillance" principle provided as part of CPTED, which includes:

a. clear sightlines between public and private places

b. effective lighting of public places

c. landscaping that makes places attractive, whilst not providing potential offenders with a place to hide or entrap victims.

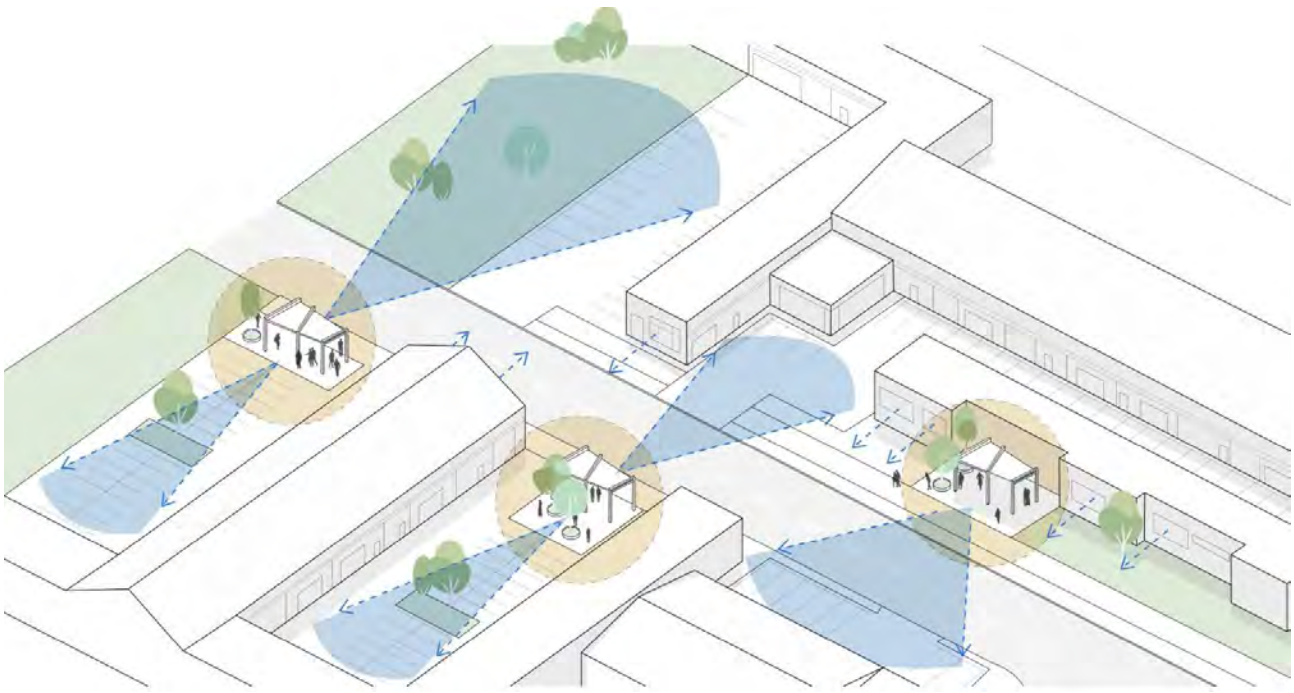


Figure D4.2: Example of design solutions enhancing the surveillance.

2.4.2 Fences

Objectives

O1 To delineate the boundaries between public and private land and between neighbouring properties, with a combination of landscaping and fencing where required.

O2 To minimise the visual impact of fences and allow private landscaping to integrate with the streetscape appearance.

O3 To aid visual permeability across sites to, and from, the street.

Controls

C1 Buildings and spaces should be designed and managed to define ownership boundaries without resorting to formal features like high fences, walls, 'keep out' signs, locks and security guards.

C2 Front fences are permitted for security purposes.

C3 Front fences should be limited to 1.8m in height and be set back behind the 3m landscaping buffer. The maximum solid fence height is 600mm, with any portion of fence above this height requiring a 60% open area.

C4 Unfinished galvanised chain link fencing along the front setback is not acceptable.

C5 Side and rear fencing may be built to a height of 2.1m.

C6 Fencing should be sited as to not impede the sightlines of drivers.

2.4.3 Noise, odour and lighting

Objectives

O1 Ensure that development adequately caters for noise management, without undue reliance on structural acoustic barriers or restrictive building designs.

O2 To minimise pollution and ensure appropriate levels of air quality.

O3 To ensure safe and efficient lighting.

O4 To mitigate the effect of artificial light on wildlife and ecosystems.

Controls

C1 Where applicable, development applications shall have regard to Noise Guide for Local Government 2023 be accompanied by an acoustic report prepared by a suitably qualified and experienced acoustic consultant that identifies and assesses the noise and vibration sources

during demolition and construction works, as well as noise associated with occupation at the property. This includes noise associated with lifts, car lifts, air conditioning and ventilation systems, noisy operational activities, other plant and equipment, car parks, any outdoor and common outdoor areas, pool and spa areas (including plant and equipment), any waste chutes and waste storage areas. The report shall outline measures to minimise and mitigate potential noise and vibration impacts on surrounding occupiers of land. Consideration shall also be required for development impacted by;

a. busy roads - arterial, designated or classified roads identified in sections 2.119 & 2.120 of the *State Environmental Planning Policy (Transport and Infrastructure) 2021*

b. aircraft noise - ANEF contour identified in *Clause 7.9* Tweed LEP 2014. (ANEF contours, available on Council's website), or

c. lots with an instrument setting out acoustic restriction under s88B of the Conveyancing Act.

C2 Acoustic fences are to be located on lot boundaries and retained in private ownership.

C3 Acoustic fences or barriers must be designed to take into account the passage of local stormwater and floodwater and significant vegetation so as not to create unacceptable impacts.

C4 Development that is likely to result in the emission of atmospheric pollutants, including odours, as determined by Council, must include measures, operating practices and technology to ensure that such emissions are acceptable.

C5 All external lighting shall be designed with consideration for the *National Light Pollution Guidelines for Wildlife Appendix A: Best practice lighting design*. Specifically, development shall:

a. only use artificial lighting for specific and defined purposes and only in the required location

b. use adaptive controls to manage light timing, intensity and colour

c. light only the intended object or area

d. use the minimum amount of light needed for the activity

e. use non-reflective, dark-coloured surfaces

f. use lights with reduced or filtered-out blue, violet and ultraviolet wavelengths.

C6 Development adjoining an Environmental Zone as defined in the Tweed LEP, shall avoid light sources with blue-rich spectral power distributions. Light sources with a correlated colour temperature of 3000K or less shall be used unless where Council is satisfied that a higher colour temperate is required for safety reasons.

C7 Development that is likely to result in significant risk to threatened species, for which artificial light has been demonstrated to affect behaviour, survivorship or reproduction, as determined by Council, must include a site-specific risk assessment and management plan consistent with the *National Light Pollution Guidelines for Wildlife*.

National Light Pollution Guidelines for Wildlife – While artificial light at night (ALAN) provides for human safety, amenity and increased productivity, ALAN can disrupt critical behaviours and cause physiological changes in wildlife. The National Light Pollution Guidelines for Wildlife provides theoretical, technical and practical information required to assess whether ALAN is likely to affect wildlife, and the management tools to minimise and mitigate that effect.

https://www.dcceew.gov.au/environment/biodiversity/publications/national-light-pollution-guidelines-wildlife

2.5 Development adjoining land where residential accommodation is permitted

Objectives

O1 To minimise adverse impact on adjoining or adjacent residential land.

O2 To provide effective measures reducing the risk of a land use conflict.

Controls

C1 Development which adjoins land where residential accommodation is permitted is to minimise:

C2 Impacts on the visual privacy of residents of the adjoining property.

C3 Emissions impact, including noise, light, dust and odour that may be generated by the proposed employment use.

C4 The risk of overshadowing adjoining residential land.

C5 Where side and rear setbacks adjoin land where residential accommodation is permitted, a minimum of 3 metres buffer width of landscaped deep soil zones must be provided.

C6 Development on land adjoining residential accommodation is to minimise noise and light emissions resulting from deliveries and loading outside of core operating hours.

C7 Where development has the potential to impact adjoining residential accommodation, assessments for the potential impact are to be submitted with the application, including, but not limited to:

a. Odour/Air Quality Impact Assessment submitted by a suitably qualified and practicing Environmental Consultant in accordance with NSW Environmental Protection Authority Guidelines and Technical Framework

b. Acoustic Assessment submitted by a suitably qualified and practising Acoustic Consultant in accordance with the NSW Noise Policy for Industry

c. detailed design plans that demonstrate proposed pollution prevention measures, discharge points and proposed management actions during occupation.

2.6 Development on land subject to natural hazards

Objective

O1 To minimise the risk to human life, property and environment caused by natural hazards.

Controls

C1 Any portion of the development that is at or below the Flood Planning Level, shall be constructed of flood compatible material that is suitable for retaining structural integrity during and following long periods of continuous under water immersion.

C2 Structures shall be able to withstand the forces of floodwater, debris and buoyancy up to the Flood Planning Level.

C3 Development shall demonstrate minimal increase in flood affectation elsewhere in the floodplain.

C4 Development shall have reliable flood-free access for pedestrians and vehicles from the development, at a minimum level equal to the Flood Planning Level.

C5 The storage, handling or manufacturing of hazardous materials or chemicals must not be below the Flood Planning Level and must be located to minimise the likelihood of inundation and possible spills into flood waters.

2.7 Specific land uses

2.7.1 Sex service premises

Note: The NSW Department of Health and Safe Work NSW should be consulted on health standards and safety guidelines of sex service premises.

Objectives

O1 To ensure sex service premises are appropriately located and do not adversely affect the amenity of surrounding land uses including places for education establishments, residential, community purpose, health care premises or recreational areas.

Controls

C1 Development or use of any site for the purpose of sex services must not be located within:

a. 500m radius of any property used for residential purposes, or

b. 200m of any educational establishment, hospital, child care centre, place of worship or any other area frequented by children.

C2 All vehicle parking and access areas should be screened from the street and include lighting.

C3 Signage including flashing, coloured or neon elements nor display words or images in the view of Council, to be lewd, sexually explicit or offensive language is not permitted.

C4 One sign is permitted per premises and should not exceed a display area of $3m^2$.

C5 A waiting area of $40m^2$ is to be provided for clients to prevent opportunities for loitering outside the building.

C6 The maximum number of rooms for sex services is 10.

C7 Operating hours of a sex service premises is restricted to between 6pm to 6am.

C8 Council may include a condition of consent for a sex service premises for a period of 12 months, after which Council will reconsider the proposal.

C9 The submission of an application for sex service premises should include:

a. a detailed description of the proposal, including a site analysis featuring details of existing uses of adjoining properties

b. a social impact assessment in accordance with **Section E3: *Social Impact***

c. the number of employees on premises at any one time

d. proposed hours of operation

e. an operational management plan, including security arrangements

f. an architectural/ design and lighting plan

g. a parking and access plan

h. health and hygiene plan.

2.8 Site-specific controls

2.8.1 Ourimbah Road & Border Park Employment Precinct



Aspiration: Urban enterprise area, located within a network of accessible locations.

The precinct's urban location, small size, proximity to Tweed Heads CBD and the Gold Coast Airport offer opportunities to accommodate boutique industries, urban services, specialised shops and businesses operating in the broader knowledge economy. This Section of the DCP seeks to foster these land uses and ensure the precinct benefits from high-quality design, active transport and abundant green streetscapes.

Objectives

O1 Promote good urban design outcomes and high quality employment-generating land uses.

O2 Promote development that prioritises safety, access and amenity of pedestrians and cyclists.

O3 Incorporate urban heat mitigation through a range of measures, including landscaping.

O4 Ensure that new development is designed to integrate sustainable design principles.

Controls

C1 Building walls shall be articulated to provide more varied streetscapes, where visible from public roads or adjacent residential areas.

C2 Where long, continuous building lines (façades) over 10m are present along a street frontage, visual relief shall be provided by any one or more of the following:

a. varying the façade alignment

b. varying external finishes (texture and colour)

c. providing glass curtain walls

d. locating office facilities along the facade.

C3 The use of large, uninterrupted areas of metal cladding or untreated concrete surfaces for wall construction is not supported. Applicants shall vary materials and/or finishes for external walls to provide attractive streetscapes and quality building designs.

C4 Offices are to address the streetscape and are to be located along street frontages where possible.

C5 Entrances to buildings and office areas must be highlighted by architectural features complementary to the overall design of the building.

2.8.2 Minjungbal Drive Enterprise Corridor



Aspiration: A vibrant employment corridor with active street frontages

Minjungbal Drive accommodates a variety of small-scale commercial activities and urban services. Future development within this employment corridor will be shaped to achieve a high level of design that contributes to the locality and gives a distinct character by providing the mixtures and density of activities, without compromising the primacy of Tweed Heads CBD as the regional city.

Objectives

O1 Promote a distinctive and high quality employment corridor, complementing Tweed Heads CBD.

O2 Prioritise pedestrian and cycling connectivity to take advantage of immediate proximity to a range of residential neighbourhoods.

O3 To foster good design through appropriate landscaping, architecture and visual amenity.

O4 Mitigate urban heat through appropriate design and landscaping.

Controls

C1 All building facades fronting public roads shall be articulated to provide visual interest to the public realm.

C2 Where long, continuous building façades over 10m are present along a street frontage, visual relief shall be provided by any one or more of the following:

a. varying the façade alignment

b. varying external finishes (texture and colour)

c. providing glass curtain walls

d. locating office facilities along the facade.

C3 The use of large, uninterrupted areas of metal cladding or untreated concrete surfaces for wall construction is not supported. Rather, the design shall offer a suite of materials and/or finishes for external walls to provide attractive landscape and quality building designs, contributing to urban heat mitigation.

C4 Offices are to address the streetscape and are to be located along the primary street frontage where possible.

C5 Entrances to buildings and office areas must be highlighted by architectural features complementary to the overall design of the building.

C6 Service stations and vehicle sales or hire premises shall locate an active frontage use (such as a showroom, office, customer service area, convenience store or restaurant) along the primary and secondary street frontages.

2.8.3 South Tweed Bulk Retail & Homemaker Cluster



Aspiration: large format retail, specialised shops, services and employment opportunities clustered in a "homemaker" format.

Provide for a cluster of large floor specialty shops and homemaker stores, supported by smaller-scale, commercial activities and urban services, without compromising the primacy of Tweed Heads CBD as the regional city.

Objectives

O1 Support a mix of large floor specialty shops and homemaker stores, along with smaller format retail, office, commercial and industrial businesses to provide a range of retails and services for both the local community and the regional catchment.

O2 Prioritise pedestrian and cycling connectivity to take advantage of immediate proximity to a range of residential neighbourhoods and reduce traffic congestion.

O3 Promote greater landscaping and heat mitigation measures to reduce the impacts created by large format buildings and significant hardscaping in precinct.

Controls

C1 Development applications shall clearly demonstrate that the development will not detract from the role of Tweed Heads CBD as a regional city.

C2 Adequate on-site parking, manoeuvring and loading facilities are provided.

C3 Building height, façade features and colour schemes shall not create amenity conflict within the precinct.

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Part E

Community

E1

Heritage



For Section E1 of the Tweed DCP refer to document titled Section A18 Heritage

DCP 2008 Section A18 Heritage forms part of this DCP.

E2

Advertising Signs



1. Introduction

1.1 Purpose

Signage in form of advertising structures, building identification signs and business identification signs is an important contributor to the quality of the built environment, and an essential component of business communication.

This Section seeks to ensure that design of signage is well integrated with the landscape, streetscape and the character of the area, as expressed through the objectives as provided below.

1.2 Application

This Section applies to all land in The Tweed and must be read in conjunction with the following controls which prevail over this DCP:

1. *State Environmental Planning Policy* (*Exempt and Complying Development Codes*) 2008.
2. Chapter 3 of *State Environmental Planning Policy* (*Industry and Employment*) 2021.
3. *State Environmental Planning Policy No 64 – Advertising and Signage (Amendment No. 3).*
4. *Transport Corridor Outdoor Advertising and Signage Guidelines (NSW Government, 2017).*
5. *AS 4282-2023: Control of the obtrusive effects of outdoor lighting.*
6. *National Light Pollution Guidelines for Wildlife* (Australian Government, 2020).

2. Objectives and Controls

Objectives

O1 To eliminate the proliferation of signs and co-ordinate signage where possible.

O2 To enable legitimate, approved developments and land uses to be identified appropriately.

O3 To ensure signage and associated lighting has been designed and integrated into the overall building design and achieves building legibility.

O4 To ensure that signage does not adversely affect the existing and likely future amenity, landscape, wildlife, streetscape and character of the area.

O5 To ensure that signage does not distract or adversely impact road safety and network efficiency.

Controls – Applicable to all signage

C1 Signage must be structurally sound, and comprise materials, finishes and fixings that are easily maintained and durable.

C2 Signage must relate to the lawful use conducted on the premises on which it is displayed.

C3 Signage should avoid protruding above the dominant skyline, when viewed from ground level with a visual catchment of 1km. Where not achieved, an assessment against the requirements of the Tweed Scenic Landscape Protection Policy must be provided.

C4 For signage within 250m of, and visible from, a classified road, an assessment against the requirements of *Transport Corridor Outdoor Advertising and Signage Guidelines (NSW Government)* must be provided.

C5 Signage must not be displayed on a parked vehicle, caravan, boat or trailer if it is being used for advertising as the primary purpose.

C6 Signage located on heritage sites or within heritage conservation areas shall comply with Section E1: Heritage of this DCP.

Controls - Residential and Rural zones (R1, R2, R3, RU1, RU2, RU5)

C7 Maximum of 1 business or building identification sign per elevation, associated with a business or building located on the land.

C8 Any wall sign must be limited to one per tenancy, per elevation and be a maximum of 1m^2.

C9 Any wall sign must not exceed the height of the eaves of the building or 2m, whatever is lowest.

C10 Signage must relate to the land on which it is to be displayed, or to premises situated on that land and must be limited to the name, logo, location, business and products.

C11 Illumination may only be provided by means of external recessed or concealed spotlighting and must comply with AS 4282-2023 Control of the obtrusive effects of outdoor lighting.

C12 Fluorescent or iridescent paints or signs that rotate, flash or move are not supported.

C13 Signage materials, finishes and fixings should be easily maintained and durable.

C14 Signage design shall relate to the style, character and function of the building, land use or activity, and reflect the area's landscape and character.

C15 The location, type, number, colour and size of signage shall:

a. be visually interesting
b. exhibit a high level of design quality
c. ensure legibility and wayfinding

d. not detract from the amenity and character of the land or building to which it relates.

C16 All business identification signs (except wall signs) on land zoned RU1 or RU2 must:

a. not exceed 3m^2

b. not exceed 2m height above existing ground level.

C17 Freestanding signage shall be avoided in zones RU1 and RU2.

Controls - Employment & Mixed Use zones (E1, E2 & MU)

C18 The following controls apply to freestanding pylon signs (including directory signs):

a. the subject site must be wider than 15m

b. maximum of one freestanding sign for each street frontage

c. must be located near site entries and well placed for viewing by pedestrians and drivers

d. must be located least 3m from any protected tree

e. must be limited to the name, logo, location, business and products of the establishment

f. maximum height of 6m above existing ground level (on land zoned E3 and E4), and 4m above existing ground level (on land zoned E1 and E2)

g. maximum size of 8m² (where premises only comprises a single commercial tenant

h. maximum size of 16m² with individual signage within the index sign is a maximum of 5m² (where premises has more than one commercial tenant).

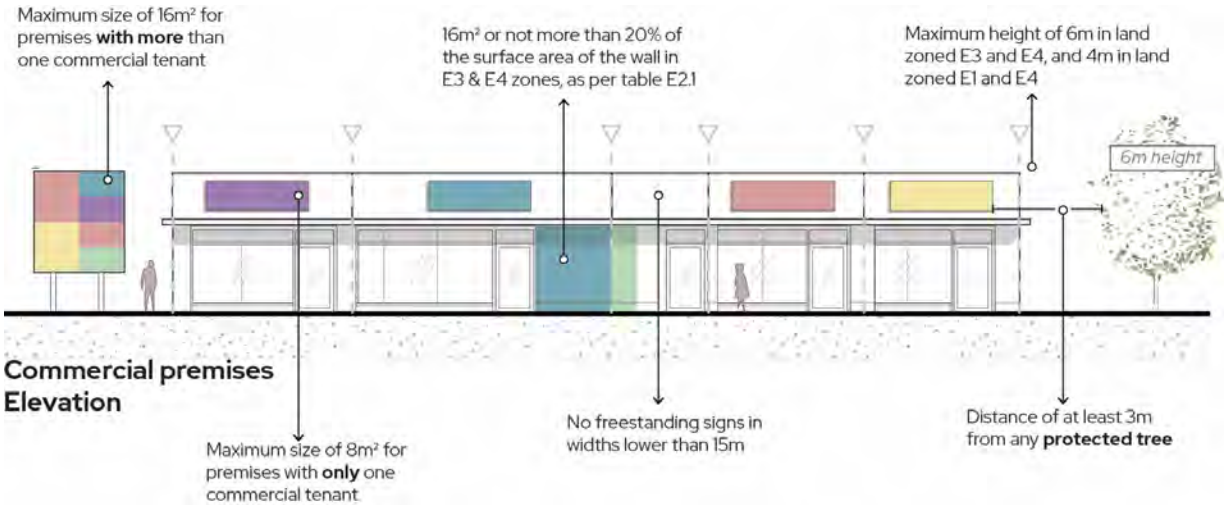


Figure E2.1: Examples of freestanding and wall sign configurations

C19 The following controls apply to wall signs:

a. There is a maximum of one wall sign per tenancy, per elevation.

b. Wording must be limited to the name, logo, location, business and products of the establishment

c. Signs are to integrate with the development form, scale, colour and style and not be visually dominating.

d. Signs shall be of a complementary size, shape and style throughout the development.

e. Each sign must be restricted to the dimensions shown in Table E2.1.

Table E2.1

Land use zone	Maximum area
E1, E2 & MU Zones	5m²
E3 & E4 Zone	16m² or not more than 20% of the surface area of the wall

C20 Multiple tenancy premises along Minjungbal Drive and Tweed Valley Way shall consider a single freestanding pole sign as per C18, as opposed to individual wall signage for each tenancy, to avoid poor streetscaping and visual character impacts.

C21 Signs should generally be confined to the ground level of the building, awning or fascia, unless it can be demonstrated that the building is of a scale, architectural style and in a location that would be enhanced by signage at different elevations.

C22 Illuminated signage must comply with the following:

a. conceal and integrate illumination within a wall or a pylon

b. relevant standards for illuminated lighting, including AS 4282-2023 Control of the obtrusive effects of outdoor lighting

c. not be located within an environmental zone

d. Where located within 50m of residential, rural or environmental zone, be consistent with the *National Light Pollution Guidelines for Wildlife* to ensure wildlife:

   i. is not disrupted within, or displaced from, important habitat

   ii. is able to undertake critical behaviours such as foraging, reproduction and dispersal.

C23 Directional signage should provide wayfinding on the site to assist pedestrians, vehicles and cyclists in locating entry and exits, parking controls and delivery and reception areas.

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E3

Social Impact



1. Introduction

1.1 Purpose

Social impacts refer to the consequences that people experience when a new development brings change. This can include impacts on the availability and access to housing, employment, education, healthcare, open space, natural environment and community facilities. It could also include safety and security, community values, cultural connections, as well as physical and mental health. For the purposes of this Section 'people' are classed as individuals, households, groups, communities, or organisations.

The purpose of this Section is to ensure that developments are assessed from the perspectives of people, which means developments are more likely to be socially sustainable. The assessment of social impacts aims to identify, predict, evaluate and manage the likely positive and negative social impacts arising from development projects and propose responses to the predicted impacts.

DCP E3: Social Impact aims to:

1. Facilitate socially sustainable development through identification, evaluation and response to social impacts.[1]
2. Facilitate meaningful, effective and relevant community participation.[2]
3. Provide requirements for social impact assessment and management plans proportionate to the development scale.[3]

[1] Environmental Planning and Assessment Act 1.3 (b) & Division 4.3 | 4.15 and NSW Social Impact Assessment Guideline 2025
[2] Environmental Planning and Assessment Act Division 2.6 and NSW Social Impact Assessment Guideline 2025
[3] Aligns with NSW Social Impact Assessment Guideline 2025

1.2 Application

This Section is to be read in conjunction with the Tweed LEP 2014 or Tweed City Centre LEP 2012, whichever is applicable. A provision of a LEP or State Environmental Planning Policy prevails in the case of an inconsistency between it and a provision of this DCP.

1.3 Social impact categories

The *NSW Government Social Impact Assessment Guideline, 2025* identifies 8 impact categories that can assist proponents in identifying likely social impacts. Some projects may have impacts in all these categories, but others may only have a few. Neatly categorising impacts is not as important as identifying and assessing them. The categories simply provide prompts to consider possible social impacts during construction through to operational stages of development:

- **Way of life**: including how people live, how they get around, how they work, how they play, and how they interact each day. **For example:** Housing affordability, innovative spaces for remote workers.
- **Community:** including composition, cohesion, character, how the community functions, resilience, and people's sense of place. **For example:** Increase in population/influx of construction workers into the area, change in community demographic composition, change in the types or patterns of use impacting social connections.
- **Accessibility:** including how people access and use infrastructure, services and facilities, whether provided by a public, private, or not-for-profit organisation. **For example**: active and public transport connectivity to jobs, services, education, open space.
- **Culture**: both Aboriginal and non-Aboriginal, including shared beliefs, customs, practices, obligations, values and stories, and connections to Country, land, waterways, places and buildings. **For example**: Significance of the natural and built form and how the project will change/complement/interact with these culturally important areas, practices or histories.
- **Health and wellbeing**: including physical and mental health especially for people vulnerable to social exclusion or substantial change, psychological stress resulting from financial or other pressures, access to open space and effects on public health. **For example:** location of a licensed club in proximity to a vulnerable population; new open space to encourage physical activity.
- **Surroundings:** including ecosystem services such as shade, pollution control, erosion control, public safety and security, access to and use of the natural and built environment, and aesthetic value and amenity. **For example:** Crime Prevention Through Environmental Design (CPTED) principles; Changes to streetscapes; additional noise from a development.
- **Livelihoods**: including people's capacity to sustain themselves through employment or business. **For example:** employment opportunities in new, emerging or growth industries. Essential worker housing close to jobs. Disadvantage to a particular social group.
- **Decision-making systems:** including the extent to which people can have a say in decisions that affect their lives, and have access to complaint, remedy and grievance mechanisms. **For example:** touchpoints with community to shape the project and/or provide feedback on the project.

1.4 Social impact guidance

There are 2 types of social impact reports that Council may require. The development type, scale and likelihood of social impacts will determine the required report. The Controls in this Section provide direction on the requirement.

A **Social Impact Comment (SIC)** is a **short form statement** generally required for developments that are unlikely to result in significant social impact. A SIC can form part of the Statement of Environmental Effects (SEE), where social impacts are discussed to address s1.3 of the Environmental Planning and Assessment Act (EP&A Act) 1979.	A **Social Impact Assessment (SIA)** is a **stand-alone report** required for developments where significant social impacts are anticipated. They are usually larger in scale, may be sensitive in nature, and/or likely to result in substantial change (positive or negative) to something that people value highly, either lasting indefinitely, affecting many people in a widespread area, or affecting vulnerable groups. A SIA report is to accompany the submitted development documentation. A SIA should be prepared by a suitably qualified social impact assessment professional.

Application requirements for both assessment categories must examine the social impact considerations and have an assessment process; however, the extent of research, assessment and author of assessment varies. The length and detail provided should be commensurate with the scale of the development and significance of the likely social impacts.

If you are unsure of the significance of the impacts, **refer to Schedule 1 of this Section** for **Table E3.5: Impact Significance Matrix**.

1.4.1 Social Impact Comment (SIC)

Table E3.1: What must be included

Project description	Brief description of the proposed development (if submitting as part of the SEE, this should already be documented)
Social locality and social baseline	Briefly describe the site locality, current patterns of use, the characteristics/demographics of communities who may be affected, topography, physical surrounds.
Community consultation	Briefly describe community sentiment on the project. This may be through appropriate and meaningful community consultation and feedback received (if undertaken) or other data that may be available (e.g. local knowledge, previous surveys, social media commentary).
Impact assessment	Briefly describe the likely positive and negative social impacts identified. These should be listed against relevant social impact categories. Note: It is not sufficient to state there are no impacts.
Impact mitigation/ enhancement	Briefly describe how the project design has been refined to mitigate risk of negative impacts and enhance positive impacts.
Monitoring, review and update	Briefly describe how any measures identified through the assessment will be managed over the life of the development. Measures may also be included in the condition of consent if a proposal is approved.

1.4.2 Social Impact Assessment (SIA)

A Social Impact Assessment (SIA) report should be prepared by a suitably qualified social impact assessment professional who:

a. has qualifications in the fields of community/social planning, social science or demonstration of relevant significant professional body of work, or

b. extensive experience in the field of social impact assessment, community needs analysis and community consultation, and

c. is familiar with the types of information required. (May draw on other technical experts).

Recommended structure:

1. Introduction, project description and context
2. Social locality and social baseline
3. Community and stakeholder consultation
4. Impact identification and assessment
5. Social impact enhancement and mitigation (project refinement)
6. Monitoring and management
7. Appendices**:** Community profiles, Supporting information, e.g. outcomes of primary research, engagement or other studies, references.

1. Introduction, project description and context

Provide an overview of the proposed development, including any key objectives to deliver social outcomes for the community.

2. Social locality and social baseline

Identifying the social locality and the current social baseline provides an understanding of areas that may be impacted by the project and the characteristics of those communities within the project's social locality.

2.a Social locality. Describe the social area this development will influence. This will vary by project. It may be confined to a village, across multiple townships within the Tweed Local Government Area or extend to a broader regional area. Identifying the social locality begins with understanding the scale and nature of the project, the characteristics of affected communities, and where positive and negative impacts may be experienced by different people.

Figure E3.1 compares a relatively confined social locality (left) with a more diverse social locality (right). The social locality may change with project stages.

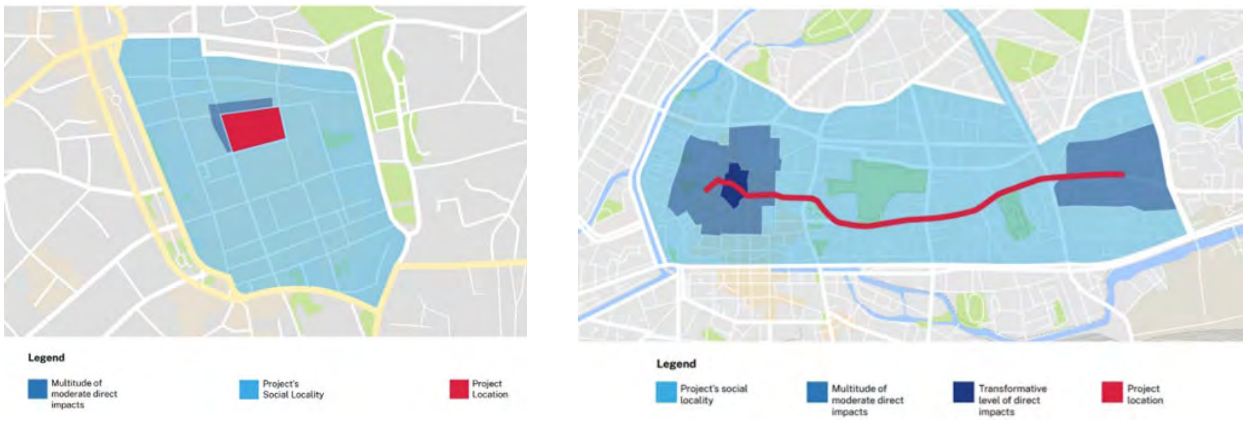


Figure E3.1: Confined social locality (left) compared with diverse social locality (right)

(Source: NSW Social Impact Assessment Guideline 2025)

2.b Social baseline. Describe the current social context, without the project, within the identified social locality. This provides a benchmark against which social changes can be anticipated and potential social impacts identified. Include information on:

a. the current characteristics/demographic profile of the communities in the social locality

b. any historical, current, and expected social trends or social changes/ patterns of use for people in the locality relevant to the project

c. any built or natural features in the social locality, relevant to the project, that have value or importance for people, and why people value those features.

A summary can be provided in this section of the report, with an appendix of any detailed profile information.

3. Community and stakeholder consultation

Details of community and other stakeholder sentiment on the development. A summary can be provided in this section of the report, with an appendix of any detailed outputs from appropriate and meaningful community and stakeholder consultation and feedback. Including stakeholder list of invites and participants, methods used, copies of any resources used, records of feedback collected by key themes, and other data accessed (e.g. previous surveys, social media commentary).

4. Impact identification and assessment

Predict and assess likely social impacts both positive and negative, against the social baseline. Consider whether the project activities might cause some form of impact (positive or negative) across the 8 social impact categories outlined in this Section.

Once likely social impacts are identified, use Table E3.5 in Schedule 1 of this Section to **evaluate** the likely significance of both positive and negative social impacts (without measures applied).

When assessing the nature and scale of social impacts, consider the project's:

a. social locality

b. proposed construction and operation methods, and expected duration of each method

c. local and regional context, including dependency on, or proximity to, other projects or other forms of industry.

The assessment must include sufficient detail to provide Council with a clear understanding of the potential positive and negative impacts of the development. Document in a social impact response table (**refer to Table E3.6 in Schedule 1**). Note: It is not sufficient to state there are no impacts.

5. Social impact enhancement and mitigation (project refinement)

Summarise proposed enhancement or mitigation responses to the identified positive and negative social impacts. Use the tables in Schedule 1 to revise the significance rating of each impact after the mitigation/ enhancement measures applied, to demonstrate the expected effectiveness of the proposed measures.

Complete a social impact response table. The table should include the following information:

a. social impact category (as defined under 1.3 Social impact categories)
b. summary of impact
c. project phase (e.g. operational or construction)
d. nature of the impact (positive or negative)
e. impacted stakeholder/s
f. unmitigated significance rating (refer to Schedule 1)
g. mitigation or enhancement measures to be implemented
h. significance rating after mitigation or enhancement.

Where appropriate, demonstrate refinements on submitted plans.

6. Monitoring and management

Describe how any measures identified through the social impact assessment will be managed and monitored over the life of the development. For large scale projects, applicants may prepare a separate management plan. Measures may also be included in the conditions of consent if a proposal is approved.

Social Impact Assessment Guideline – For best practice guidance on writing a Social Impact Assessment see NSW Social Impact Assessment Guideline, NSW Social Impact Assessment Technical Supplement and NSW Social Impact Assessment Scoping Worksheet, NSW Department of Planning, Housing and Infrastructure, 2025.

2. Objectives and Controls

Objectives

O1 Ensure development applications are accompanied by sufficient evidenced information to allow adequate assessment of social impacts arising from a development.

O2 Ensure a transparent, consistent and methodical approach to identify, evaluate, respond to, and monitor positive and negative social impacts of a development.

O3 Ensure meaningful, equitable and effective community engagement and participation, proportionate to the development scale, to inform assessment and response to social impacts.

O4 Maximise opportunity for development that responds to community needs, local character, regional conditions and is consistent with Council and State Government strategic frameworks and guidelines.

Controls

C1 All developments or modifications with likely social impacts must provide either a Social Impact Comment (SIC) or a Social Impact Assessment (SIA) as per the requirements set out in this Section.

C2 All other developments or modifications must still consider and address arising social impacts in the Statement of Environmental Effects (SEE), as is required by s1.3 of the Environmental Planning and Assessment Act 1979.

C3 Council will use its discretion under the Environmental Planning and Assessment Act 1979 to request a SIC or SIA for any development application or modification that Council as the Consent Authority considers necessary to make a determination. This includes if:

a. there are likely and significant social impacts - particularly those with a significance rating of high to very high in the Impact Significance Matrix (**refer to Table E3.5**)

b. there is a modification, extension or expansion of an existing development that could result in likely and significant social impacts

c. there is a perceived conflict between the proposal and its locality

d. it is anticipated the proposal will generate significant public objection.

C4 Any measures to enhance the positive social impacts and eliminate or minimise negative impacts of the development are to be documented. For a SIA this is in the form of a social impact response table (see Table E3.6 for example), and, where appropriate, illustrated on submitted plans.

Table E3.2: Specific development types requiring social impact comment or assessment

Land use	Social Impact Comment	Social Impact Assessment
Residential, tourist and visitor accommodation uses		
Residential subdivision	50-100 lots / dwellings in all stages	>100 lots / dwelling in all stages
Housing types to which the SEPP (Housing) 2021 applies, unless listed elsewhere in this table. (including social and affordable housing; housing for seniors and people with a disability; build-to-rent etc.)	50-100 dwellings	>100 dwellings
Boarding houses	1-20 dwellings	>20 dwellings
Caravan park / Camping grounds / Manufactured home estate	N/A	All
Tourist and visitor accommodation (including eco-tourist facilities and agritourism)	Capacity to accommodate up to 30 persons.	Capacity to accommodate >30 persons.
Commercial and industrial uses		
Commercial premises	500-3000sqm	>3000sqm
Entertainment facilities, amusement centres and function centres	50-100 person capacity	>100 person capacity
Industries	1500-3000sqm	>3000sqm
Heavy industries and heavy industrial storage establishments	N/A	All
Storage premises	1500-3000sqm	>3000sqm
Licenced premises including hotels, bars, pubs, nightclubs,	Modifications, alterations and additions to existing premises	All other applications

Land use	Social Impact Comment	Social Impact Assessment
registered clubs, artisan and other licenced food and drink premises.		
Restricted premises	N/A	All
Sex service premises (excluding home occupation sex service premises)	N/A	All
Other health, education and community infrastructure uses		
Medical centres	1-5 consulting rooms	6 or more consulting rooms
Drug rehabilitation service facilities, including methadone clinics, safe injecting rooms and primary needle and syringe programs and transitional group homes	N/A	All
Centre-based childcare facilities	Overall capacity 20 - 100 places	Overall capacity >100 places
Educational establishment	Overall capacity 1-100 students	Overall capacity >100 students
Place of assembly/public worship	1-100 person capacity	>100 person capacity



As per the NSW Local Environmental Plan (LEP) Making Guideline, Planning Proposals must address social and economic effects. Council may require a Social Impact Assessment for Planning Proposals in accordance with provisions in this Section.

Schedule 1. Determining significance of social impacts

Table E3.3: Impact Likelihood criteria

Almost certain	Definite or almost definitely expected. (e.g. has happened on similar projects)
Likely	Probably occur in most circumstances
Possible	Could occur
Unlikely	Low probability
Rare	Remote probability. May occur but only in exceptional circumstances

Table E3.4: Impact Magnitude criteria

Transformational	Substantial change (positive or negative) experienced in community wellbeing, livelihood, infrastructure, services, health, and/or cultural values; either affecting vulnerable groups or affecting many people in a widespread area.
Major	Substantial change (positive or negative) to something that people value highly, either lasting indefinitely, affecting many people in a widespread area, or affecting vulnerable groups.
Moderate	Noticeable change (positive or negative) to community wellbeing and/or something that people value highly, either lasting for an extensive time, or affecting a group of people.
Minor	Mild change (positive or negative), for a reasonably short time, for a small number of people who are generally adaptable and not vulnerable.
Minimal	Little noticeable change (positive or negative) experienced by people in the social locality.

Table E3.5: Impact Significance Matrix

Impact Likelihood	Impact Magnitude (may be positive or negative)				
	Minimal	**Minor**	**Moderate**	**Major**	**Transformational**
Almost certain	Low	Medium	High	Very high	Very high
Likely	Low	Medium	High	High	Very high
Possible	Low	Low	Medium	High	High
Unlikely	Negligible	Low	Low	Medium	High
Rare	Negligible	Negligible	Low	Medium	Medium

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E4

Access and Parking



1. Introduction

1.1 Purpose

Traffic volumes generated by development need to be managed so that potential adverse impacts can be minimised. This Section provides a planning framework to achieve integrated car park design with high level of amenity, site landscaping and water sensitive urban design.

DCP E4: Access & Parking aims to:

1. Provide safe, convenient and equitable access to developed land for pedestrians, cyclists, motorists and public transport users.
2. Provide facilities and infrastructure that encourage movement by means other than private vehicle.
3. Encourage car park design and landscaping to enhance visual amenity, provide pedestrian comfort, legibility and minimise impacts from stormwater runoff and pollution.
4. Provide off street parking facilities that satisfy the demand of residents, visitors, staff, customers, servicing, loading and unloading.
5. Provide integrated transport opportunities within business centres to improve their amenity, accessibility and sustainability.

Parking rates and controls - within this Section are to be considered a development guideline and represent a possible acceptable solution to meet the stated aims and objectives. It is acknowledged that there will be alternative solutions, which Council may consider within the assessment.

Where a development application seeks an alternative solution to a design control this must be documented within the Statement of Environmental Effects (SEE), and include:

- identification of the control being varied
- justification, supported by a detailed site analysis and any other supplementary material, detailing why the Control cannot be met and demonstrating how the alternate proposal achieves the aims and objectives of this Section
- justification, supported by a detailed Access, Traffic and Parking Impact Study for any reduction in the prescribed vehicle parking rates
- upgrading of:
    - public transport facilities, and/or
    - on-street parking resulting in additional spaces, and/or,
    - the streetscape and pedestrian/cyclist amenity.

Additional definitions used in this Section –

Small Car Space means a parking space designed to accommodate small cars and as a result is smaller than the minimum dimensions described in this Section.

Tandem or Stacked Spaces means 2 parking spaces arranged in such a way that vehicular access to one of the parking spaces cannot be obtained without crossing the other space.

Large development means development proposals where the total site development results in a GFA greater than 5,000m^2.

Nuisance is caused if customers park in front of adjacent residential properties to the extent that casual visitor parking spaces are no longer readily available for these adjacent properties, or if customers use off street parking provided by adjacent properties.

2. Objectives and Controls

2.1 Public transport, pedestrian and cyclist access and amenity

Objectives

O1 Ensure designs optimise pedestrian, cyclist, public transport user and persons with disability access to and within the development.

O2 Ensure non-vehicle movement corridors are safe, attractive and provide for efficient movement through the site.

O3 Ensure vehicle access parking does not compromise the equity and amenity of non-vehicle access.

O4 Encourage public transport use through incorporating specific treatments to maximise patrons' convenience and comfort.

O5 Support cycling as a sustainable transport method by providing movement corridors that integrate with user-friendly bicycle parking areas and end-of-trip facilities.

O6 Provide landscaping to enhance user comfort, amenity and improve the microclimate without compromising the traffic safety or the surveillance security of pedestrians and cyclists.

O7 Integrate site landscaping and water sensitive urban design to minimise hardstand areas and address site stormwater flow and pollution

O8 Provide landscaping to minimise the harsh visual impact of large parking areas, and mitigate any noise and light spill impacts on adjoining properties.

O9 Mitigate detrimental effects on the downstream stormwater environment by minimising peak flow rates and pollutants discharged from the site

Controls

C1 Detail, both on plan and within the Statement of Environmental Effects, the access and parking treatments pursued to optimise pedestrian, cyclist, public transport and people with disability access to and within the site.

C2 Access and parking shall be provided in accordance with the following Australian Standards:

1. *Car Parking Facilities* (AS 2890.1)
2. *Commercial Vehicle Facilities* (AS 2890.2)
3. *Bicycle Parking Facilities* (AS 2890.3)
4. *On-Street Parking* (AS 2890.5)
5. *Off-Street Parking for People with Disabilities* (AS 2890.6).

Where there is conflict between standards, **Section D3: *Character Statements*** shall prevail, followed by this section and then Australian Standard AS 2890, unless stated otherwise in this Section.

C3 Internal footpaths are to be clearly identifiable and provided to move the users from adjacent streets onto the site and to destinations within the site.

C4 Access and parking design treatments shall ensure the safety and comfort of footpath users.

C5 Weather protection for pedestrian movement corridors is to be integrated with the building design.

C6 Bicycle parking spaces and public transport bus stop seating is to be provided at the minimum rate specified in **Table E4.2**.

Development Applications involving landscaping and stormwater management – shall include additional relevant documentation, i.e. landscaping plan, and will be assessed in accordance with the relevant *Landscaping* and *Stormwater management* Chapters applicable to that application's land use.

C7 Any development requiring 5 or more employee bicycle parking spaces (class 1 or 2) must provide appropriate consideration and provision of change rooms, showers and clothing lockers.

C8 Non-residential development with a collective site (GFA) greater than 1,000m2, and/or a walking distance greater than 50 metres from a car space to the public entrance shall provide weather protection for pedestrian movement corridors.

C9 Proposals for large developments shall include a public transport impact statement. This statement shall contain:

a. a locality plan showing development site in relation to nearest practical public transport route and bus stops

b. proposed means and standard of pedestrian access from nearest bus stop to development site

c. (where development site is more than 50m from the nearest bus stop) evidence of negotiations with public transport operator to obtain bus route and stop adjacent to or closer to development

d. proposed bus stop seating arrangements

e. proposed arrangements for provision of bus stop within the development site (where applicable).

C10 Pedestrian facilities and cycleways are to be designed in accordance with Austroads *Guide to Road Design, Part 6A: Pedestrian and Cyclist Paths*.

C11 Footpaths shall be designed and constructed in accordance with Council's Footpath and Cycleway standard drawing S.D.013, unless otherwise agreed.

C12 Residential development where all units have direct ground floor access may provide additional storage/garage space in lieu of resident bicycle parking.

C13 Accessible parking facilities are to be provided in accordance with AS2890.6 and the Building Code of Australia. Proposals must comply with the requirements of the *Disability Discrimination Act 1992* (Commonwealth).

C14 Landscaping should be fully contained on site and not extend onto public areas unless specifically authorised by Council.

C15 Where a proposal involving landscaping of public space is agreed to by Council, landscaping shall be in accordance with Development Design Specifications D14 – Landscaping Public Space.

C16 Landscaping areas should be protected from vehicular traffic by kerb and gutter wheel stops or other appropriate barriers, although due consideration must be given to tripping hazards for pedestrians.

C17 Landscaping shall be maintained by the landowner in accordance with this plan at the landowner's cost.

C18 Stormwater drainage design shall be in accordance with the requirements of Tweed Development Design Specification D5 – Stormwater Design and D7 – Stormwater Quality.

C19 Stormwater quality improvement devices (SQIDs) are to be located on the development site upstream of the discharge point into the public stormwater system. All SQIDs shall be installed, operated, serviced and maintained by the owner or occupier.

C20 Provide a constructed footpath/cycleway network or additions to the existing footpath network radiating from the extent of the development site so that at least 50% of dwellings within the following radial distance of the development site have direct pedestrian/cycle path connection to the development.

Table E4.0: GFA vs Radial Distances

GFA (m^2)	Radial distance from a development site
5,000 - 10,000	200m
10,000 - 20,000	300m
20,000 - 30,000	400m
over 30,000	500m

2.2 Vehicle Access and Parking

Objectives

O10 Ensure car park, roadway and pedestrian access layout is legible, safe and convenient for all users.

O11 Ensure private vehicle parking is provided commensurate to the intensity and nature of the land use/s and expected traffic movements.

O12 Achieve appropriate separation between pedestrians, loading and heavy vehicles.

O13 Provide flexibility for reduced provision of parking in localities where demand is likely to be lower.

O14 Prevent parking nuisance to adjacent properties by requiring adequate on-site car parking for development.

O15 Ensure the provision of landscaping to enhance user comfort, amenity and improve the microclimate without compromising traffic safety or surveillance security.

O16 Provide landscaping to break up the harsh visual impact of large parking areas, and mitigate any noise and light spill impacts on adjoining properties.

Controls

C21 Detail, both on plan and within the Statement of Environmental Effects, the access and parking treatments pursued to optimise pedestrian, cyclist, public transport and all access requirements to and within the site.

C22 Internal footpaths are to be provided for pedestrians and cyclists to move from adjacent streets onto the site and to destinations within the site.

C23 Onsite parking is to be provided at the numerical rates detailed in **Table E4.2**.

C24 Any development involving a land use other than a dwelling, secondary dwelling or dual occupancy must provide vehicular access to and from the site in a forward moving direction.

C25 If a dual occupancy is in a 'stacked' arrangement the rear dwelling shall provide turnaround facilities to allow vehicular access to and from the site in a forward moving direction.

C26 Provide suitable separation and design treatments between large vehicle manoeuvring areas, loading and unloading areas and adjoining residential areas to mitigate impacts within and surrounding the site.

C27 Vehicle access is expected to be derived from the frontages which have the lowest pedestrian and cycle volumes. This includes porte cocheres (covered vehicle set downs), where permissible.

C28 Driveway access in any CBD strip shopping area will not be supported without substantial justification as this breaks the active street frontage.

C29 Porte cocheres will not be supported in any CBD strip shopping area.

C30 Generally, no new off street parking bays or aisles will be allowed at street level within 6m of the principal property frontage anywhere within the CBD sectors outlined in areas 1,2 and 3 of **Table E4.1**.

C31 Tandem or stacked parking is not generally favoured. However, a limited number of stacked employee and/or resident spaces may be considered where suitably justified, by addressing and/or demonstrating:

a. a need for tandem or stacked parking

b. no inconvenience to employees/residents

c. assessment that the provision of tandem or stacked parking will not adversely affect the functioning of parking and access to the site

d. no more than 2 cars parked in a stacked arrangement, so that no more than one vehicle has to move to allow egress of another

e. tandem or stacked parking is only to be used for people employed or residing on the premises where vehicles are likely to parked all day or a major part of the day

f. paired tandem or stacked spaces must be used by the occupants of the same tenancy

g. sufficient space shall be provided on site for shifting vehicles without requiring their movement onto public streets

h. tandem or stacked parking will not be permitted for customer/public parking

i. the minimum length of tandem or stacked parking is 10.4m

j. mechanical car lifts may be acceptable in residential developments provided all spaces have capacity to store the B99 vehicle (Appendix A AS2890.1) with headroom in accordance with section 5.3 of AS2890.1 (minimum 2.2m).

C32 Small car spaces will not count towards the required number of vehicle spaces prescribed by **Table E4.2**.

C33 Visitor parking shall be incorporated within reasonable and convenient proximity of the visitor's final destination with no barriers to pedestrian movement located in between (e.g. public roads).

C34 Provide aisles for parcel-pickup facilities or areas for the manoeuvring or docking of commercial vehicles or garbage trucks separate from areas of normal pedestrian/vehicular traffic.

C35 Large developments (greater than 5,000m2 GFA) shall include a dedicated rank for a minimum of 2 taxis, supported by a minimum 2m wide paved and roofed pedestrian access to the building entrance.

C36 Where the required number of customer car parking spaces cannot be met and Council's Section 7.11 Contribution Plan No. 23 - Offsite Parking applies to the site, Council may consider accepting a cash contribution in lieu of the unsupplied facilities or spaces. Contributions eligibility as an alternate to on-site parking provision will not be granted as a right and will be based on the merits of each application, in accordance with the objectives of this Section.

C37 The requirements for local area specific customer car parking in the Commercial Premises (**Tables E2.4.5-4.2.8**) and Health Services Facilities groups (**Table E4.2.17**) may be reduced in accordance with the rates specified in **Table E4.1** if:

a. a locality-specific rate is not provided in the Section D3: Character Statements

b. there is adequate parking on the site and in public car parks to prevent a nuisance to adjacent properties

c. there is adequate parking on the site and in public car parks to ensure customers do not use off street parking provided by neighbouring properties

d. the aims and principles of this Section have been achieved.

Table E4.1: Concession areas

Area	Concession
Tweed Heads, Murwillumbah and Kingscliff CBDs (refer to Maps 1, 2 and 3).	The minimum number of customer car parking spaces required may be reduced by 10% of that shown in **Tables E2.4.5-4.2.8** and **Table E4.2.17**.
Area 4. Rural Villages (Zone) of Uki (RU5), Burringbar (RU5), Mooball (RU5), Stokers Siding (RU5), Tyalgum (RU5), Chillingham (RU5), Kunghur (R5), Bilambil (RU5) and Kielvale (RU5).	The minimum number of customer car parking spaces required may be reduced by 50% of that shown in **Tables E2.4.5-4.2.8** and **Table E4.2.17**.

Parking spaces, loading bays and manoeuvring/reversing areas for large vehicles such as buses, trucks and garbage trucks are to be made on the merits of each application. Reductions in the requirements for provision of parking for delivery and service vehicles specified in Table E4.2 may be considered where the applicant can provide evidence to support a concession.

Access to off street parking areas must comply with the current version of Council's *Driveway Access to Property Design Specification*.

Sight and stopping distances to be used for assessment of access driveways should be obtained from Austroads' *Guide to Road Design*

Site credits – are available when there is a proposed change of use or redevelopment of a site. The credit is deemed to be consistent with that provided under the previous approvals for that site. Where development consent history in relation to parking provision is not clear due to the age of this development consent, such development is deemed to have parking credits based on the expected parking that would have been provided for that land use under this DCP, unless deemed to be contrary to the aims and principles of this Section.

To promote business activity; change of land use or redevelopment in the CBD areas (LEP zones E1, E2, MU1) are entitled to parking credits based on either existing parking approvals or reassessment of the current land use under the rates in this code, whichever is the higher. This concession is discretionary subject to demonstrated consistency with the aims and principles of this Section. Existing use parking credits are not available for proposed residential developments or residential components of mixed use developments.

C38 Parking areas shall be permanently line marked in white colour as detailed in Australian Standard *Parking facilities* (AS 2890).

C39 Areas which must be protected from vehicular traffic (such as traffic islands, gardens, landscaping, aisle ends and pedestrian areas) will be protected by being raised and bordered by a vertical-faced kerb and gutter or other suitable barrier.

C40 Design and construction of parking areas should provide for a minimum of maintenance.

C41 In mixed residential/commercial development proposals, the residential parking areas should be defined as reserved parking.

C42 The number of spaces that may be reserved for staff shall be restricted so that the number of residual spaces left for customers is not less than that required by the schedule.

C43 As with any vehicle, large vehicles must be able to manoeuvre entirely on site and enter and leave the site in a forward direction. If reversing of large vehicles is involved, manoeuvring areas must be separate from areas of pedestrian or small vehicle traffic.

C44 All parking area surfaces will be certified by a qualified engineer prior to occupation or use.

C45 Car parking areas must provide an all weather surface unless otherwise specified. Minimum trafficked area surface standards include the following:

a. Low parking turnover (50 movements per day) - flush seal (i.e. 2 coat bitumen spray).

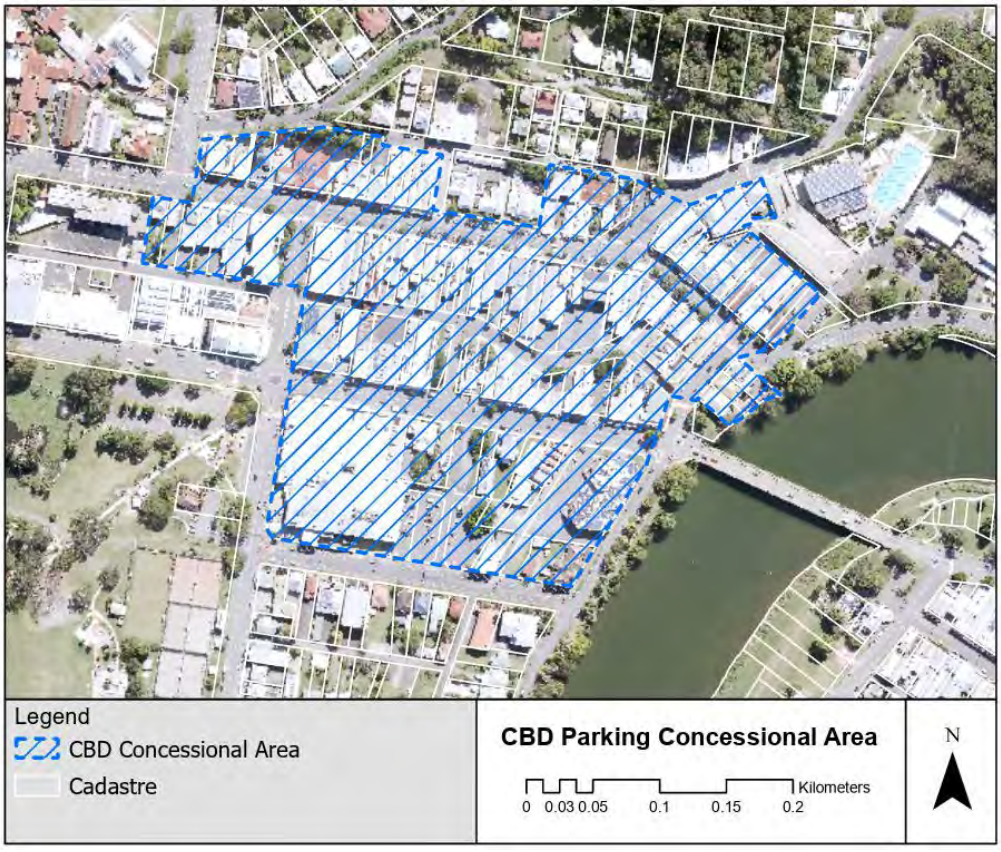
b. High parking turnover (>50 movements per day) -asphaltic concrete.

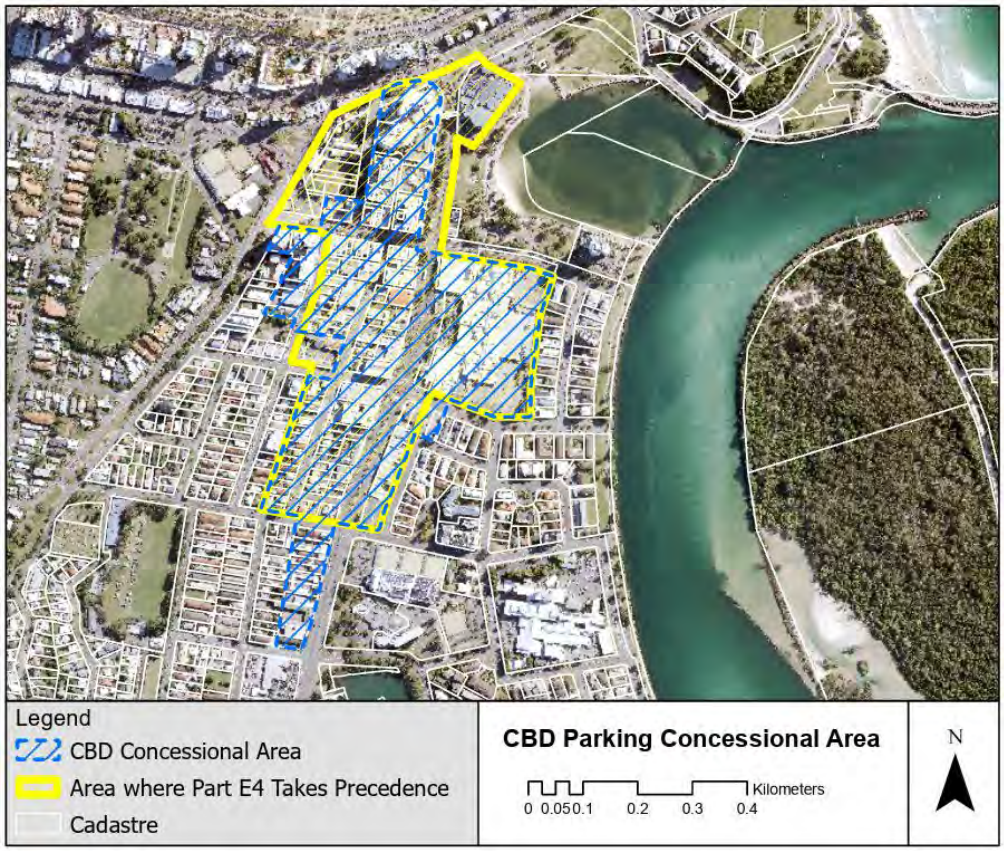
c. Urban gravel pavement may be considered by Council for areas servicing 3 parking spaces or less. The gravel surface shall be of a feature stone (i.e. smooth river stone), dust free, and shall not be trafficked onto road pavements/pedestrian thoroughfares.

d. Rural gravel pavements may be considered by Council where consistent with the amenity and land use of the development site and surrounding areas.

e. Where parking overflow areas are accepted by Council, these may be unsealed and used as additional landscaping. Pavement Design shall be in accordance with Council's Development Design and Construction Specifications requirements.


Legend
CBD Concessional Area
Cadastre
CBD Parking Concessional Area
0 0.03 0.05 0.1 0.15 0.2
Kilometers
N


Legend
CBD Concessional Area
Cadastre
CBD Parking Concessional Area
0 0.03 0.05 0.1 0.15 0.2
Kilometers
N



Figures E4.1, E4.2 & E4.3: CBD Areas where parking rates concessions apply: Tweed Heads, Murwillumbah and Kingscliff CBDs

Table E4.2.1: Within agriculture group term / D INDUSTRY | agriculture

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Cellar door premises			1/25m2 tasting/seating area (3)	1 SRV			

Table E4.2.2: Within residential accommodation / A RES ACCOM | residential accommodation

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Attached dwellings			Residents: 1/unit (2). Visitors: 1/8units (3)		1 per each 1 bedroom unit, 1.5/2 bedroom unit, 2 spaces for >3 bedrooms. Plus 1 space / 4 units for visitors.		
Boarding houses			Residents: 1/unit (2). Visitors: 1/8units (3)			0.5/staff	1/6 beds
Dual occupancies					1 space per dwelling plus provision for driveway parking of another vehicle (2 spaces per dwelling)		

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Dwelling houses					1 space per dwelling plus provision for driveway parking of another vehicle		
Group homes	Assess on merits. To AS2890.6						
Hostels		1/5residents	Residents: 1/4 beds(2) Visitors: 1/10 beds(3)	1/100. Residents SRV.	0.4/resident	1/staff	
Multi dwelling housing	Forward entry/exit to be provided	1/15 units	Residents: 1/unit (2). Visitors: 1/8units (3)		1 per each 1 bedroom unit, 1.5 per 2 bedroom unit, and 2 spaces for 3 or more bedroom units. Plus 1 space per 4 units for visitor parking.		
Residential flat buildings		1/15 units	Residents: 1/unit (1). Visitors: 1/8units (3)		1 per each 1 bedroom unit,1.5 per 2 bedroom unit, and 2 spaces for 3 or more bedroom units. Plus 1 space per 4 units for visitor parking.		
Rural worker's dwellings					1		

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Secondary dwellings					1		
Semi-detached dwellings					1 space per dwelling plus provision for driveway parking of another vehicle		
Seniors housing	AS per SEPP – Seniors Living						
Residential care facilities			Residents: 1/7 beds (1). Visitors: 2+1/30 beds (3)	1 ambulance SRV + truck parking HRV	1/6 bed	0.5/staff	
Shop top housing	in addition to commercial requirements		Residents: 1/unit (1). Visitors: 1/8units (3)		1 per each 1 bedroom unit, 1.5 per 2 bedroom unit, 2 spaces for 3 or more bedroom units. Plus 1 space per 4 units for visitor parking.		
Home business							

Table E4.2.3: Within tourist and visitor accommodation/ B TOURIST & VISTOR ACCOM | tourist and visitor accommodation

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Backpacker's accommodation			1/5 bed (2)	1 HRV		0.5/staff	1/6 beds or 1/12 beds if shuttle bus

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
							permanently utilised
Bed & breakfast accommodation			1/guest bedroom (2)		As per dwelling houses	0.5/staff	1/guestroom
Farm stay accommodation					See dwelling house	1/ off- site staff	1/guestroom
Hotel or motel accommodation	Accommodation component only		Employees: 1/4 staff (2). Visitors: 1/10 units (3)	1 HRV		1/staff	1/room or unit
Serviced apartments			Employees: 1/4 staff (2). Visitors: 1/10 units (3)	1 HRV		1/staff	1/apt + 1 visitor space per 4 apt's

Table E4.2.4: Outside tourist and visitor accommodation / B TOURIST & VISTOR ACCOM | caravan parks

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Caravan parks and camping grounds	As per Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable						

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
	Dwellings) Regulation 2000						

Table E4.2.5: Within commercial premises / C COMMERCIAL PREMISES | business premises [e.g. banks, post offices, hairdressers, etc]

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Funeral homes				1 SRV		0.5/staff	1/50m2 GFA

Table E4.2.6: Within commercial premises / C COMMERCIAL PREMISES | office premises

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Office*	eg Real Estate, Travel Agent		Employee: 1/200m2 GFA (2). Visitor: 1/750m2 over 1000m2 (3)	1/200m2 GFA SRV		1/50m2 GFA	included in staff parking

Table E4.2.7: Within commercial premises / C COMMERCIAL PREMISES | retail premises

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Food & drink premises			Employees: 1/100m2 GFA (1). Visitors: 1/50m2 GFA (3)	1 SRV		1/staff	3.5/100m2 GFA
Pubs	Licensed premises	1/10 car parking spaces	Employees: 1/25m2 bar + 1/100m2, lounge/beer garden (1). Visitors: 1/25m2 bar + 1/100m2 lounge/beer garden (3)	1 HRV	See hotel or motel accommodation	0.5/staff	1/10m2 licensed floor area + ancillary areas + reservoir for 6 cars for drive in bottle shop
Restaurants or cafes	Internal dining area is to be defined. Footpath dining area to be considered in accordance with Councils Footpath Dining Policy		Employees: 1/50m2 GFA (2). Visitors: 2 (3)	1 HRV		1/staff at peak operating time	3.5/100m2 dining area
Take-away food & drink premises			Employees: 1/100m2 GFA (1).	1 SRV		1/staff	3.5/100m2 GFA
Hardware and building supplies				1/500m2 storage area, AV		0.5/staff	1.6/100m2 GFA + 0.8/200m2 outside

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
							storage area + 1/50m2 showroom/retail area
Kiosks	Max GFA 15m2		Employees: 1/100m2 GFA (1). Visitors: 1/50m2 GFA (3)				1.6/100m2 (min 2)
Markets	Assess on merits Refer to RTA Traffic Generating Developments						
Plant nurseries, garden centres and landscaping material supplies			Employees: 1/1000m2 site area (2). Visitors: 1/1000m2 site area (3)	Min 1 HRV		1/staff, may be stacked	1/600m2 site area, min 5
Roadside stalls	Assess on merits, but, all parking must be on site (off road reserve)						
Rural supplies			1/5 staff (2)	1 AV			10% of site to be car spaces/access lanes (not

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
							including driveways)
Shops		1/100m2 GFA, shops over 5,000m2 GFA	2/100m2 GFA up to 100m2 GFA and thereafter at 1/200m2 GFA (3)	1/1500 GFA, min 1, min 2 for supermarkets, HRV		1/100 GFA	3.5/100m2 GFA
Neighbourhood shops	Max GFA 300m2		Employees: 1/100m2 GFA (1). Visitors: 1/50m2 GFA (3)				1.6/100m2
Shopping Centres	a) 0-20000m2 b) 20000-30000m2 c) >30000m2: GLFA: Gross Leasable Floor Area (see RMS definition)	1/100m2 GFLA, shopping centres over 5,000m2 GFA	Employees: 1/300m2 GLFA (1) Shoppers: 1/500m2 over 1000m2 (3)	Assess on merits		Incl in customer car parking	a) 4.5/100m2 GLFA b) 4.3/100m2 GLFA c) 4.1/100m2 GLFA
Bulky goods premises			1/4 staff (3)	1/1500 GFA HRV		0.25/100 GFA	1.4/100m2 GFA
Timber yards				1/500m2, storage area, suitable for articulated truck, AV		0.5/staff	1/600m2 storage area
Vehicle sales and hire premises	No parking of display vehicles in customer or staff car parking			1 AV		1/staff	1/12 display vehicles (min 5)

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
	spaces or public land is permitted						

Table E4.2.8: Outside commercial premises / C COMMERCIAL PREMISES | amusement centres

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Amusement centres			2 + 1/50m2 GFA (3)	1 SRV		0.5/staff	3.2/100m2 GFA
Entertainment facilities		1/10 seats	1/20m2 floor area up to a maximum of 10. spaces (3)	1 SRV		0.5/staff	greater of 0.25 spaces to each seat or to each sq m of net floor area
Function centres			1/20 seats up to a maximum of 10 spaces	1 HRV		0.5/staff	0.3 spaces to each seat
Registered clubs		1/10 car parking spaces	Employees: 1/25m2 bar + 1/100m2, lounge/beer garden (1). Visitors:	1 HRV		0.3 spaces per staff. Where spaces are to be reserved for	1/10m2 GFA (includes ancillary use areas) Minimum 1

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
			1/25m2 bar + 1/100m2 lounge/beer garden (3)			specific members they must be additional and be nominated at DA stage	coach parking space on site.
Restricted premises	Adult stores					1/staff	3.5/100m2
Service stations	Customer parking requirement is inclusive of the work bay		1/4 car park (3)	min 1 articulated truck parking, AV		1/staff	3.2/work bay + 2.8/100m2 convenience or retail store
Sex services premises						included in customer requirement	1/50m2 GFA
Veterinary hospitals			Employee: ½ consulting rooms (2) Visitor: 2 (3)			1.6/consulting room	2.4/consulting room
Wholesale supplies			1/5 staff (2)	1 AV			10% of site to be car spaces/access lanes (not including driveways)

Table E4.2.9: Within rural industry / D INDUSTRY | rural industries [e.g. use of composting facilities and works]

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Agricultural produce industries			1/5 staff (2)	MIN 1 AV		1/staff	
Livestock processing industries			1/5 staff (2)	2 AV		1/staff	
Sawmill or log processing industries			1/5 staff (2)	MIN 1 AV		1/staff	min 4
Stock & sale yards				1/1500, Display area, min 1 HRV		0.5/staff	10% of site for parking and access lanes, but, not driveways

Table E4.2.10: Within industry / D INDUSTRY | industries

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
General industries	If located in commerce and trade zone increase to 1/50m2 GFA		1/5 staff (2)	1 HRV		1/120m2 GFA	
Light industries	If located in commerce and trade zone increase to 1/50m2 GFA		1/5 staff (2)	1 HRV		1/120m2 GFA	

Home industry	Assess on merits, consider road width and current parking pressures within the vicinity.						

Table E4.2.11: Outside industry / H COMMUNITY INFRA REC AND ASSEMBLY PLACE | boat building and repair facilities

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Boat building and repair facilities			1/5 staff (2)	1 HRV		1 space per 60m2 of total use area	included in staff parking
Vehicle body repair workshops	Customer parking requirement is inclusive of the work bay		1/5 car parks (2)	1/200m2 HRV		1/staff	3.2/work bay
Vehicle repair stations	Customer parking requirement is inclusive of the work bay		1/5 car parks (2)	1/200m2 HRV		1/staff	3.2/work bay

Table E4.2.12: Within heavy industrial storage establishment / D INDUSTRY | heavy industrial storage establishments

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Heavy industries	If located in commerce and trade zone increase to 1/50m2 GFA		1/5 staff (2)	1 HRV		1/120m2 GFA	
Liquid fuel depots			1/5 staff (2)	MIN 1 AV		10% of site for parking and access lanes, but, not driveways	included in staff parking. Site area to be provided for future parking (in case of change of use) at rate of 1/75m2 GFA

Table E4.2.13: Within storage premises / D INDUSTRY | storage premises

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Storage Units - Multi storey or without direct vehicle access to each unit	Where parking is in a central location and units are accessed on foot		2 (3)	HRV		2	1/750m2 GLFA (max 10)

Table E4.2.14: Outside storage premises / E TRANSPORT FACILITY | warehouse or distribution centres

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Warehouses or distribution centres				MIN 1 AV		1/staff	1/360m2 GFA

Table E4.2.15: Within waste or resource management / H COMMUNITY INFRA REC AND ASSEMBLY PLACE | waste or resource management facilities

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Resource recovery facilities			1/5 staff (2)	MIN 1 AV		10% of site for parking and access lanes, but, not driveways	
Waste disposal facilities	assess on merits						
Waste or resource transfer stations	assess on merits			MIN 1 AV			

Table E4.2.16: Within air transport facility/ E TRANSPORT FACILITY |

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Airport or airstrip	assess on merits						
Heliport or helipad	assess on merits						

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Freight transport facilities						1 space for each vehicle associated with development + 1/2 on site staff	
Passenger transport facilities	Base on above elements and any ancillary use (eg shops), concurrent usage and merits						
Port or wharf facilities	Assess on merits						
Transport depots	Stack parking is permitted for bus and driver spaces. Requirements may be reduced if it can be shown that at change of shift spare spaces are available	Seating to be provided for all waiting passengers	1/5 drivers+staff (2)	1 bus space for each bus associated with development		1/driver + 1/2 on site employees	
Truck depots	Stacked parking is permitted.		1/5 drivers + staff (2)	1 space for each vehicle associated with development		1/driver + 1/2 on site employees	
Port or wharf facilities	Assess on merits						

Table E4.2.17: Within health services facility/ H COMMUNITY INFRA REC AND ASSEMBLY PLACE |

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Hospitals		1/2 bed	Employee: 1/15 beds (1) Visitor: 1/30 beds (3)	1/30 bed		0.8/bed	0.8/bed
Medical centres		2/consulting room	Employee: 1/8 practitioners (2). Visitors: 1/4 practitioners (3)	1/10 consulting rooms HRV		1.6/consulting room	3.2/consulting room (GP), 1.6/consulting room (specialists)
Health consulting rooms		2/consulting room	Employee: 1/8 practitioners (2). Visitors: 1/4 practitioners (3)			1.2/consulting room	1.6/consulting room

Table E4.2.18: Other relating to community infrastructure /H COMMUNITY INFRA REC AND ASSEMBLY PLACE |

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Child care centres	Preferably sites should provide separate entry/exit access with drive through set down/pick up provision for 3 vehicles		1/4 staff (2)	1 SRV		1/staff	1/7.5 child

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Community facilities	Assess on merit						
Correctional facilities		1/5 carparks	1/5 carparks (3)	Provision for all loading/unloading on site with no reversing on public roads. HRV		1/staff	1/20 inmates
Emergency services facilities	Assess on merit. Provision for efficient, unrestricted access is required						
Industrial training facilities	Teaching component only, add for any other facilities (residence, sporting, shops, refreshments etc)	1 bus stop/100 pupils. Bus stops to be off street carriageway	1/100p/t students + 1/200f/t students (2)	HRV		0.5/staff	1/6 student
Information and educational facilities			Employee: 1/1500m2 (2). Visitor: 2 + 1/1500m2 GFA (3)	1 SRV		0.5/staff	1.6/100m2 display area
Places of public worship	If adjacent to existing off street car parks, consideration will be given to joint use		1/10 customer car parks (3)		2/dwelling	0.5/staff	greater of 0.25 spaces to each seat or to each sq m of net floor area

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Public administration building	If located in residential area, parking will be assessed on merits so no overflow occurs in the adjacent area		1/200m2 GFA (3)	1/200m2 GFA MIN 1 HRV SRV		1/50m2 GFA	included in staff parking
Research stations			1/5 staff (2)			1/staff	
Respite day care centres			Residents: 1/7 beds (1). Visitors: 1/60 beds (3)	1 ambulance SRV + truck parking HRV	1/6 bed	0.5/staff	
Boat launching ramps	50% spaces must be suitable for vehicles with trailers		1/5 car parks (3)				24 per launching lane
Boat sheds					1/50m2		
Charter & tourism boating facilities	Assess on merit						
Environmental facilities	Assess on merit						
Marinas, jetties, moorings, mooring pens			1/5 car park (3)	1 HRV		1/staff	0.8 per mooring
Recreation areas	Assess on merit						

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Recreation facilities (indoor)		1/5 car park	Employees: 1/4 staff (2). Visitors: 1/200 m2 GFA (3)			0.5/staff	5/100m2 GFA
Recreation facilities (major)	Assess on merits						
Recreation facilities (outdoor)		1/5 car park	1/5 car park (3)			0.5/staff	1/6 participant & spectator capacity
Water recreation structures			Employees: ½ staff (2). Visitors: 1/25m2 pool surface (3)	1 HRV			1/60m2 of water surface

Table E4.2.19: Other miscellaneous / H COMMUNITY INFRA REC AND ASSEMBLY PLACE |

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Cemetery	overflow area need not be paved			2 SRV		0.5/staff	24 plus provision for overflow during large funerals
Crematorium	overflow area need not be paved			2 SRV		0.5/staff	24 plus provision for overflow during large funerals
Mortuaries				1 HRV		0.5/staff	Assess on merits

Table E4.2.20: Outside storage premises / E TRANSPORT FACILITY |

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Depots			1/5 staff (2)	MIN 1 AV		10% of site for parking and access lanes, but, not driveways	included in staff parking
Manufactured home estate*	As per Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation 2021						
Residential college*		1/5 student	Residents: 1/4 beds(2) Visitors: 1/10 beds(3)	1/100 residents HRV	0.4/resident	1/staff	
Integrated housing*					1 space per dwelling plus provision for driveway parking of another vehicle. in addition to visitor parking at 1/4 units		

Table E4.2.21: Within commercial premises / C COMMERCIAL PREMISES | business premises [e.g. banks, post offices, hairdressers, etc]

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Bank or financial institution*	ATMs require covered waiting area for 3 persons that do not impede pedestrian movement		Employee: 1/200m2 GFA (2). Visitor: 2 (3)	1/200m2 GFA SRV		1/50m2 GFA	included in staff parking
Hairdresser/beauty salon*			2/100m2 GFA up to 100m2 GFA and thereafter at 1/200m2 GFA (3)			0.5/100 GFA	2.8/100m2 GFA
Laundromat*			2/100m2 GFA up to 100m2 GFA and thereafter at 1/200m2 GFA (3)	1		1/100 GFA (min 1)	2.8/100m2 GFA
Primary produce sales*				1/500m2 storage area, truck parks to be suitable for AV, 1 HRV		1/staff	1.6/100m2 GFA + 0.8/200m2 outside storage area
Real estate agency*			1/200m2 GFA (3)	1/200m2 GFA SRV		1/50m2 GFA	included in staff parking
Travel agency*			1/200m2 GFA (3)	1/200m2 GFA SRV		1/50m2 GFA	included in staff parking

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Boat showroom*	On site provision required for boat transporter use			1/20 boats, min 1 truck park HRV		1/staff	1/12 displayed boats, min 5 spaces
Drive in liquor sales*				1 HRV		0.5/100 GFA	2.8/100m2 GFA + queuing area for 6 cars
Heavy vehicle & plant repair*			1/5 staff (2)	MIN 1 AV		10% of site for parking and access lanes, but, not driveways	included in staff parking
Self storage units - "Ranch" style				HRV		0.5/staff, min 2	Parking to be provided adjacent to each unit, aisle widths to be sufficient to accommodate parking plus through traffic
Wrecking yard & parts sales*			1/5 staff (2)	AV		10% of site for parking and access lanes, but, not driveways	0.8/100m2 covered area + 0.8/500m2 outdoor area

Table E4.2.22: Land use terms within educational establishment group term / H COMMUNITY INFRA REC AND ASSEMBLY PLACE | educational establishments [e.g. TAFE establishment, etc]

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Tertiary Institution, University, TAFE*	Teaching component only, add for any other facilities (residence, sporting, shops, refreshments etc)	1 bus stop/100 pupils. Bus stops to be off street carriageway	1/100p/t students + 1/200f/t students (2) 1/5 pupils over year 4 (2) - schools	HRV		0.5/staff	1/6 student

Table E4.2.23: Land use terms within health services facility group term / H COMMUNITY INFRA REC AND ASSEMBLY PLACE | health services facilities

Land Use	Comment	Public transport, bus stop seating	Bicycle (min class)	Delivery/ Service Vehicle	Resident/visit	Staff	Customer
Day surgery*		1/2 bed	Employee: 1/15 beds (1) Visitor: 1/30 beds (3)	1/30bed SRV		2.4/bed	0.8/bed

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E5

Waste Minimisation and Management



The current DCP 2008 Section A15 will continue to apply:

Waste & Recycling Management, DRAFT

E6

Complying Development under the TLEP 2000



1. Introduction

1.1 Purpose

The purpose of this section is to ensure that Tweed Development Control Plan (DCP) 2025 continues to enable development that qualifies as complying development, subject to conditions, on land where Tweed LEP 2000 applies.

1.2 Application

A complying development certificate may be issued by either Council or an accredited private certifier, provided the proposal:

a. is not subject to a provision in Part 5, 6, 7, 8 or 11 of Tweed LEP 2000 that prohibits the development, requires the council's consent, or requires Council to be satisfied as to certain matters (development greater than 30m from designated road frontages not requiring new road access are deemed not to be subject to Part 5 provisions)

b. does not involve a change in classification as determined under Part A3 of the Building Code of Australia other than a change of classification from a 1a to a 1b for a Bed and Breakfast in a 1(a), 1(b), 1(c) zone per Council's Tweed LEP 2000

c. is not located on land identified under **Section 1.19 Land on which complying development may not be carried out** within State Environmental Planning Policy (Exempt and Complying Development Codes).

1.3 Meaning of terms used in this section

Dictionary provided within Schedule 1 of the Tweed LEP 2000 applies to this section.

2. Controls

2.1. Single dwelling houses and ancillary development on lots between 450 and 5,000m2

Applies to:

a. construction of a dwelling house of no more than two storeys in height

b. alterations or additions to a dwelling house where no more than two storeys in height

c. carports, garages, sheds or the like associated with an existing dwelling house limited to a maximum floor area of 45m^2 and not used for habitable commercial or industrial purposes

d. development ancillary or incidental to single dwelling houses.

Controls

Streetscape

C1 The structure must:

a. comply with any relevant building line specified in Part D of this DCP

b. comply with any building line variation approved by Council, or

c. be set back an average of the setback of like structures on land, either side of the subject property.

C2 Dwelling houses facing public streets have a front door and window in a habitable room facing the street or accessway.

C3 Carports and garages facing a public street or accessway are no more than 6.3 metres wide or 50 percent of the property frontage, whichever is the lesser.

Energy efficiency

C4 The dwelling is to comply with Council's current requirements for Energy Efficiency, including any BASIX requirements.

Bulk and scale

C5 Cut and/or fill does not exceed one metre. The top of any cut and the toe of any fill is not to be closer than one metre to any property boundary, where the overall height at any point exceeds 500mm.

C6 The ground floor level of the structure at any point is no more than 900mm above finished ground level.

C7 Any carport, garage, shed or the like is no more than one storey in height.

C8 The distance between the ground floor level and the underside of the eaves is no more than 2.7 metres for a one-storey single dwelling house and 5.5 metres for a two storey single dwelling house.

C9 The roof pitch is no more than 24 degrees, and any openings are flush with the roof pitch.

C10 The external wall or any post support of any single-storey structure is at least 900mm from a side or rear boundary, and the furthermost projection of the eaves and gutter is at least 675mm from a side or rear boundary. For two storey single dwellings the external wall of the

second floor is to be set back a minimum of 1.5 metres from a side or rear boundary and the furthermost projection of any eave and gutter is at least 1050mm from the side or rear boundary (Note: this setback may be reduced to 900mm if the wall is adjacent to a boundary that bounds a public reserve).

Privacy and security for the second floor of two-storey dwellings

C11 Windows in a habitable room that allow an outlook to a window to a habitable room in an existing adjoining or adjacent dwelling house and which are within 3 metres, must:

a. have fixed obscure glazing or other permanent privacy screening in any part of the window below 1.7m above floor level

b. have sill heights of 1.7 metres above floor level, or

c. be offset from the edge of the window to the edge of the window in the adjoining or adjacent dwelling house by at least 0.5 metres.

Open space and landscaping

C12 No more than one-third of the front setback area is paved or sealed.

Flooding

C13 The existing finished ground level shall comply with **Section B3*: Development of Flood Liable Land***.

Acid Sulphate Soils

C14 Where there is a likelihood of disturbing acid sulphate soils, an Acid Sulphate Management Plan For Minor Works must be obtained, signed by the owner and submitted with the application to the Principal Certifying Authority.

Building

C15 Complies with the deemed to satisfy provisions of the Building Code of Australia.

Sewage Management

C16 Reticulated sewerage is provided, or if an on-site sewage management facility is proposed an approval has been issued by Council in accordance with relevant regulations.

C17 For alterations and additions a statement is required from Council that any on site sewage management facility is adequate to cater for the proposal and will not adversely affect the facility.

Other

C18 All parts of the dwelling and ancillary structures are to be sited clear of any easements.

C19 The development is consistent with any applicable Section 88B Restriction under the Conveyancing Act 1919/1964.

C20 A reticulated water supply is available or a sufficient potable water supply of at least is available from a roof water catchment.

C21 Approval from Council is required under Section 68 of the Local Government Act 1993, prior to the issue of a complying development certificate, if the development involves any of the following:

a. connection of a private drain to a public drain

b. installation of stormwater quality control devices, or

c. erosion and sediment control plan works.

C22 Approval from Council is required under s138 of the Roads Act 1993, prior to the issue of a complying development certificate, if the development requires construction or modification of a driveway access to the property on a public road, verge or footpath.

2.2. Dwelling house and ancillary development on lots of more than 5000 square metres

Includes:

1. Construction of a dwelling house of no more than 2 storeys in height.
2. Alterations or additions to a dwelling house where no more than 2 storeys in height.
3. Carports, garages, sheds, limited to 45m^2 in floor area, associated with an existing dwelling house and not used for habitable commercial or industrial purposes,
4. Development ancillary or incidental to single dwelling houses,
5. Water tanks larger than 20,000 litres.

Controls

Streetscape

C1 The structure must:

a. comply with any relevant building line specified in a Council Policy or development control plan applying to the land

b. comply with any building line variation approved by Council, or

c. in the absence of such a specified building line, be setback at least 20m from the front boundary or an average of the setback of like structures on land either side of the subject property, whichever is the greater.

Energy efficiency

C2 The dwelling is to comply with Council's current requirements for Energy Efficiency, including any BASIX requirements.

Bulk and scale

C3 The ground floor level of the structure at any point is no more than 900mm above finished ground level.

C4 The structure is no more than 2 storeys in height.

C5 The maximum distance between the ground floor level and the underside of the eaves is no more than 2.7m for a one-storey single dwelling house and 5.5 metres for a two-storey single dwelling house.

C6 The external wall of any structure is at least 20 metres from a rear or side boundary.

Building

C7 Complies with the deemed to satisfy provisions of the Building Code of Australia.

Flooding

C8 The existing finished ground level shall comply with **Section B3*: Development of Flood Liable Land***.

Acid Sulphate Soils

C9 Where there is a likelihood of disturbing acid sulphate soils, an Acid Sulphate Management Plan For Minor Works must be obtained, signed by the owner and submitted with the application to the Principal Certifying Authority.

Sewage Management

C10 Reticulated sewerage is provided, or if an on-site sewage management facility is proposed, an approval must be issued by Council in accordance with relevant regulations.

C11 For alterations and additions, a statement is required from Council that any on-site sewage management facility is adequate to cater for the proposal and will not adversely affect the facility.

Other

C12 All parts of the dwelling and ancillary structures are to be sited clear of any easements.

C13 The development is consistent with any applicable Section 88B Restriction under the Conveyancing Act 1919.

C14 A reticulated water supply is available or a sufficient potable water supply of at least is available from a roof water catchment.

C15 Approval from Council is required under Section 68 of the Local Government Act 1993, prior to the issue of a complying development certificate, if the development involves any of the following:

a. connection of a private drain to a public drain

b. installation of stormwater quality control devices, or

c. erosion and sediment control plan works.

C16 Approval from Council is required under s138 of the Roads Act 1993, prior to the issue of a complying development certificate, if the development requires construction or modification of a driveway access to the property on a public road, verge or footpath.

C17 Roof material is to have low reflectivity and be of a colour that complements the natural landscape.

2.3 Swimming pool ancillary to a single dwelling house

C1 Must be for private, non-commercial use only.

C2 All coping or decking around the pool is no more than 900mm above the natural finished ground level, and setback a minimum of 900mm from the front, rear or side boundaries.

C3 The pool is at least 1.5m from the front, side and rear boundaries.

C4 The noise level of any filtration equipment or pumps will not exceed 5dB(A) above the ambient background level measured at the property boundary.

C5 Must achieve compliance with relevant regulations.

C6 Where there is a likelihood of disturbing acid sulphate soils, an Acid Sulphate Management Plan for Minor Works must be obtained, signed by the owner and submitted with the application to the Principal Certifying Authority.

C7 All parts of the building/structure are to be sited clear of any easements affecting the site.

2.4. Conversion of connection of fire alarm systems

C1 Relevant provisions under Part 8 Fire Safety Code of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 will apply.

Part F

Specific Sites

Note: **Part F – Site Specific Controls** includes site specific development control plans and locality plans which remain unchanged and will be the subject of a review and refinement into a series of Character Statements commencing in 2026.

Part	Reference
F1 Terranora	The current DCP 2008 Section B1 will continue to apply: SECTION B1 - TERRANORA
F2 Tweed City Centre	The current DCP 2008 Section B2 will continue to apply: SECTION-B2-TWEED-CITY-CENTRE.PDF
F3 Banora Point – Tweed Heads South	The current DCP 2008 Section B3 will continue to apply: SECTION B3 - BANORA POINT WEST - TWEED HEADS SOUTH
F4 West Kingscliff	The current DCP 2008 Section B4 will continue to apply: SECTION B4 - WEST KINGSCLIFF
F5 Casuarina Beach	The current DCP 2008 Section B5 will continue to apply: SECTION B5 - CASUARINA BEACH
F6 Murwillumbah West	The current DCP 2008 Section B6 will continue to apply: SECTION B6 - MURWILLUMBAH WEST Section B6 Map
F7 Keith Compton Drive	The current DCP 2008 Section B8 will continue to apply: SECTION B8 - KEITH COMPTON DRIVE
F8 Tweed Coast Strategy	The current DCP 2008 Section B9 will continue to apply: SECTION B9 - TWEED COAST STRATEGY
F9 Koala Beach	The current DCP 2008 Section B10 will continue to apply: SECTION B10 - KOALA BEACH
F10 Fraser Drive, Banora Point	The current DCP 2008 Section B12 will continue to apply: SECTION B12 - FRASER DRIVE, BANORA POINT
F11 Seabreeze Estate - Pottsville	The current DCP 2008 Section B15 will continue to apply: SECTION B15 -SEABREEZE ESTATE
F12 Planning Controls – Friday Island, Bogangar	The current DCP 2008 Section B17 will continue to apply: SECTION B17 - PLANNING CONTROLS - FRIDAY ISLAND, BOGANGAR

Part	Reference
F13 Bogangar– Cabarita Beach Locality Plan	The current DCP 2008 Section B19 will continue to apply: SECTION B19 - BOGANGAR/CABARITA BEACH LOCALITY PLAN
F14 Uki Village	The current DCP 2008 Section B20 will continue to apply: SECTION B20 - UKI VILLAGE
F15 Pottsville Locality Based Development Codes	The current DCP 2008 Section B21 will continue to apply: • SECTION B21- PART 1 INTRODUCTION • SECTION B21-PART 2 POTTSVILLE IN CONTEXT • SECTION-B21-PART 3 LOCALITY WIDE STRATEGIES • SECTION-B21-PART 4 AREA SPECIFIC-STRATEGIES: VILLAGE CENTRE • SECTION-B21-PART 4 AREA SPECIFIC STRATEGIES: RESIDENTIAL AND EMPLOY • SECTION-B21-PART 5 APPENDICES • COMMUNITY CONSULTATION
F16 Murwillumbah Town Centre	The current DCP 2008 Section B22 will continue to apply: SECTION B22 - MURWILLUMBAH TOWN CENTRE
F17 Hastings Point	The current DCP 2008 Section B23 will continue to apply: • SECTION-B23 PART 1 INTRODUCTION • SECTION-B23 PART 2 HASTINGS POINT IN CONTEXT • SECTION-B23 PART 3 VISION FOR HASTINGS POINT • SECTION-B23 PART 4 PRECINCT SPECIFIC STRATEGIES • SECTION-B23 PART 5 VISUAL SETTINGS • SECTION-B23 PART 6 BUILDING TYPE CONTROLS • SECTION-B23 PART 7 APPENDICES
F18 Area E Urban Release Development Code	The current DCP 2008 Section B24 will continue to apply: • SECTION B24- NOTIFICATION OF ADOPTION • SECTION B24-INTRODUCTION • SECTION B24-PART 2 SUBDIVISION • SECTION-B24 PART 3 VILLAGE CENTRE • SECTION-B24 PART 4 RESIDENTIAL • SECTION-B24 SUPPLEMENTARY SITE ANALYSIS • SECTION-B24 CUT AND FILL GUIDANCE NOTE • SECTION-B24 URBAN FOOTPRINT CONTROLS • SECTION-B24 INDICATIVE STRUCTURE PLAN • SECTION-B24 TRANSITIONAL ZONE BUFFERS DIAGRAM

Part	Reference
F19 Kingscliff	The current DCP 2008 Section B26 will continue to apply: • KINGSCLIFF LOCALITY PLAN: VOLUME 3 DEVELOPMENT CONTROL PLAN (PT1) • KINGSCLIFF LOCALITY PLAN: VOLUME 3 DEVELOPMENT CONTROL PLAN (PT2) • KINGSCLIFF LOCALITY PLAN: VOLUME 3 DEVELOPMENT CONTROL PLAN (PT3) • KINGSCLIFF LOCALITY PLAN: VOLUME 3 DEVELOPMENT CONTROL PLAN (PT4)
F20 61 Marana Street Bilambil Heights	The current DCP 2008 Section B27 will continue to apply: MARANA_STREET_DCP_FINAL_15FEB2016.
F21 Club Banora	The current DCP 2008 Section B28 will continue to apply: SECTION-B28-CLUB-BANORA-V2

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Definitions

Broadscale clearing	The harvesting, processing, or transport of more than 20 trees that are greater than 3m in height (including non-native species) on or from a single land holding within a 12-month period.
Building	Has the same meaning as in the Environmental Planning and Assessment Act 1979. It includes part of a building, and also includes any structure or part of a structure (including any temporary structure or part of a temporary structure), but does not include a manufactured home, moveable dwelling or associated structure within the meaning of the *Local Government Act 1993*.
Bush fire prone land	Land shown on the NSW Bush Fire Prone Land map prepared in accordance with the Guide for Bush Fire Prone Land Mapping (BFPL Mapping Guide) and certified by the Commissioner of NSW RFS under purposes of Section 10.3 of the Environmental Planning and Assessment Act 1979
Clearing	Clearing vegetation means a. cut down, fell, uproot, kill, poison, ringbark, burn or otherwise destroy the vegetation, or b. lop or otherwise remove a substantial part of the vegetation.
Concept Landscape Plan	A plan demonstrating the indicative layout of proposed landscaping.
Council	Tweed Shire Council
Declared Vegetation	Vegetation with one of more of the characteristics in Table B2.1 of this DCP
Detailed Landscape Plan	A plan to demonstrate how proposed landscaping complements and integrates with the amenity of the urban zoned land, the streetscape and any topographical features of the site. Includes information on the location, species, size of plants as well as information on engineering controls and structures to be included.
Dwelling	Has the same meaning as in the *Tweed Local Environmental Plan 2014*. It means a room or suite of rooms occupied or used or so constructed or adapted as to be capable of being occupied or used as a separate domicile.
Earthworks	Means any alterations to natural landform including cut and fill.
Existing lawful building	Includes part of a building, and also includes any structure or part of a structure but does not include any temporary buildings or

	structures, manufactured home, moveable dwelling or associated structure
Farm buildings	Has the same meaning as in *Tweed Local Environmental Plan 2014*. It means a structure the use of which is ancillary to an agricultural use of the landholding on which it is situated and includes a hay shed, stock holding yard, machinery shed, shearing shed, silo, storage tank, outbuilding or the like, but does not include a dwelling.
Flood liable land	Means land subject to inundation in the probable maximum flood.
Forestry	Within the meaning of the Forestry Act 2012 or Part 5B of the Local Land Services Act 2013.
Heritage Conservation Area	An area identified through Tweed Development Control Plan 'B5 Heritage'.
Land of ecological significance	Means one or more of the following: a. biodiversity elements (red flags) identified in DCP B1 and as shown in Schedule 1 of that Part; and b. core koala habitat as defined in the Tweed Coast Comprehensive Koala Plan of Management; and c. land on the NSW Biodiversity Values Map under Part 7 of the Biodiversity Conservation Act 2016.
Landscape Management Plan	A plan outlining the maintenance of proposed public landscaping for the specified establishment and maintenance periods.
Landowner	The person who is the owner of land or who, due to reason of ownership or otherwise, is in lawful occupation or possession, or has lawful management or control of the land.
Locally native vegetation	Any species (or genetic variant) of vegetation that existed within the Tweed Shire Local Government Area before European settlement.
Maintenance	Maintenance means work to prevent deterioration or fix existing deterioration. Maintenance generally involves keeping your property in a tenantable condition. Examples of maintenance include: a. repainting faded or damaged walls b. oiling, brushing or cleaning something that is otherwise in good working condition, or c. maintaining plumbing.
Maintenance (in relation to a heritage item)	In relation to a heritage item, Aboriginal object or Aboriginal place of heritage significance, or a building, work, archaeological site, tree or place within a heritage conservation area, means ongoing protective care, but does not include the removal or disturbance of existing

	fabric, alterations (such as carrying out extensions or additions) or the introduction of new materials or technology
Major encroachment	Has the same meaning under Australian Standard *AS-4970-2025 Protection of Trees on Development Sites*.
Marine vegetation	Has the same meaning as under the Fisheries Management Act 1994. It means any species of plant that at any time in its life must inhabit water (other than fresh water) i.e. Mangroves, Seagrass or Saltmarsh.
Native vegetation	Has the same meaning under Part 5A of the Local Land Services Act 2013 being any of the following types of plants native to New South Wales*: a. trees (including any sapling or shrub or any scrub) b. understory plants c. groundcover (being any type of herbaceous vegetation) d. plants occurring in a wetland (but does not include marine vegetation to which the Fisheries Management Act 1994 applies). * A plant established in New South Wales prior to European settlement.
Notional Root Zone	Zone enclosed by a radius of 12 times the diameter at standard height that is a primary trigger for arboricultural input on a development site in accordance with Australian Standard *AS4970-2025 Protection of Trees on Development Sites*.
Probable Maximum Flood	The largest flood that could conceivably occur at a particular location.
Pruning	The removal of vegetative material that does not result in a detrimental decline in the shape, structural integrity, or health of the tree. Does not involve crown maintenance works that exceed a maximum of 20% of the canopy in any 2 year period and is to be carried out in accordance with the *Australian Standard AS 4373 – 2007 Pruning of amenity trees*.
Rural infrastructure	Includes permanent boundary fences, permanent internal fences, roads, tracks or pipelines, buildings other than habitable buildings, tanks, dams, stockyards, bores, pumps, water points, windmills or private powerlines.
Steep Land	Land on a slope greater than 18 degrees.
Tree	A long-lived woody perennial plant greater than 3 m in height with one or relatively few main stems or trunks (or as defined by the determining authority).

Tree Canopy	The layer of leaves, branches and stems of a tree that provide coverage of the ground when viewed from above, or the combined canopy area of a group of trees. The area of tree canopy is exclusive of any canopy cover that falls outside the lot boundaries.
Tree Protection Zone	A specified zone above and below ground and at given offsets from the trunk set aside to protect a tree's roots and crown where these might be damaged by development.
Vegetation	Any of the following types of plants, whether dead or alive: a. a tree (including any sapling, shrub, or any scrub) b. understorey plants c. groundcover (being any type of herbaceous vegetation) d. plants occurring in a wetland.

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Appendices

- **Appendix 1. Arborist Reports**
- **Appendix 2. Coastal Risk Management Report Requirements for DCP Section B4**
- **Appendix 3. Subdivision Works, Compliance Certification (applies to Part C Subdivision)**
- **Appendix 4. Subdivision Infrastructure Inspections (applies to Part C Subdivision)**

Appendix 1. Arborist Reports

All Arborist reports must be prepared by an independent arborist who holds a minimum Australian Qualifications Framework (AQF) Level 5 and be prepared in accordance with Australian Standard 4970-2025 Protection of Trees on Development Sites.
The following information shall be provided:

a. name, address, phone number and qualifications of the arborist
b. date of assessment
c. scope and objective of the report
d. inspection methods/techniques,

1.1 Preliminary Arboricultural Report

The preliminary report is not intended to be the comprehensive tree protection report. This information is to be used to understand the site constraints and opportunities to inform the design layout.
The following information is required:

a. scaled plan clearly identifying and numbering all declared vegetation on the site - this could be overlaid on a recent aerial photograph of the site and/or proposed site plans
b. for each tree/vegetation: a description of species, age class, height, trunk diameter at 1.4 m, canopy spread in m^2 and density, health and condition (leaves, branches, trunk, roots)
c. Tree Risk Assessment using industry best practice appraisal methodology
d. clear photographs of impacted vegetation
e. Vegetation Priority assessed in accordance with **Section B2, Schedule 2**
f. clear depiction of the Structural Root Zone (SRZ), Nominal Root Zone (NRZ) and recommended Tree Protection Zone (TPZ), and encroachments (where associated with development) calculated in accordance with *AS4970-2025 Protection of Trees on Development Sites*
g. assessment of useful life expectancy for each tree
h. determination of overall retention value for each tree
i. specialist reports where required, such as botanical specimen identification or laboratory results, to confirm presence of pathogens
j. discussion and evaluation of all available arboricultural management options as an alternative to complete tree removal
k. proposed impact level to all declared vegetation:

i. *Retain – no impacts*: avoids all activities within the NRZ
ii. *Retain – with impacts*: includes activities within the NRZ but does not result in complete removal - for example, pruning, compaction, fill, excavation within the NRZ.
iii. *Remove*: complete removal of vegetation.

1.2 Arboricultural Impact Assessment

Where development proposes a major encroachment of declared vegetation with a Vegetation Priority Score of 1 (High) or 2 (Moderate) in accordance with **Section B2, Schedule 2**, an Arboricultural Impact Assessment is required.

The Arboricultural Impact Assessment is generally prepared when the final layout is complete. The report will identify trees to be removed, retained or transplanted.

An Arboricultural Impact Assessment shall include:

a. description of species, age class, height, trunk diameter at 1.4 m, canopy spread in m^2 and density, health and condition (leaves, branches, trunk, roots)

b. clear depiction of the Structural Root Zone (SRZ), Nominal Root Zone (NRZ) and recommended Tree Protection Zone (TPZ), and encroachments (where associated with development) calculated in accordance with *AS4970-2025 Protection of Trees on Development Sites*

c. discussion of other relevant information, including tree structure/weaknesses, root form and distribution, pest and diseases, any important habitat features for fauna (e.g. hollows)

d. a clear statement demonstrating that the tree/s would remain viable as a result of the development

e. details of how the area lost to the encroachment can be compensated for elsewhere and contiguous with the NRZ

f. clear recommendation(s) of appropriate arboricultural management measures during construction and use of the development in accordance with *Australian Standard AS4970-2025 Protection of Trees on Development Sites*.

Appendix 2. Coastal Risk Management Report Requirements for DCP Section B4

A Coastal Risk Management Report is to be submitted for all development on land that is seaward of the 2100 Hazard Line. This report is to be prepared by suitably qualified coastal engineering and structural engineering consultants (as defined under "Definitions in Section B4 of the DCP) and must consider and address the following:

1. Coastal Hazard Zones:
    a. the location of the development relevant to the back-beach coastal erosion escarpment
    b. the location of the development relevant to the coastal hazard zones.
2. Risks due to the impact of coastal hazards on the land and building(s), including an assessment of the degree of inundation, hazard level, impacts of waterborne debris and overtopping waves, buoyancy effects, evacuation and other emergency issues during the design storm event (100 ARI event).
3. An assessment of the zone of reduced foundation capacity as it applies to the progression of the coastal erosion escarpment towards the subject land.
4. Compliance with the Development Controls (**refer to Section B4**: ***Coastal Hazards***).
5. Recommendations for the structural design and construction of the total development, including foundation design, protection measures and the structural status of any existing structures to be retained (where existing structures to be retained include approved coastline protection structures, these must be certified as being structurally adequate for withstanding a design storm event). Refer to Section 55M of the Coastal Protection Act, 1979.
6. Recommendations on the monitoring and maintenance of all coastal protection and hazard mitigation measures proposed for the total development (including any existing structures to be retained) for the life of the development (taken to be 50 years unless specified otherwise and justified).
7. Recommendations on all measures and precautions to minimise risk to personal safety of occupants and the risk of property damage for the total development (including any existing structures to be retained) to address the impacts on the site for the design storm event (100 ARI event) for the life of the development (taken to be 50 years unless specified otherwise and justified).
8. Specify architectural/engineering plans on which the assessment is based.
9. Specify date/s of inspection.
10. Specify professional qualifications and experience of the authors

Appendix 3. Subdivision Works, Compliance Certification (applies to Part C Subdivision)

3.1 Scope

For subdivisions involving subdivision work, the Principal Certifier (PC) shall be the (development) consent authority (Council or Minister for Planning for State significant development).

Prior to issue of a subdivision certificate the Principal Certifier must be satisfied per *Section 6.15(2) Environmental Planning and Assessment Act 1979* that:

a. the work has been completed, or

b. agreement has been reached between the applicant for the certificate and the consent authority:

   i. as to the payment by the applicant to the consent authority of the cost of carrying out the work

   ii. as to when the work will be completed by the consent authority, or

c. agreement has been reached between the applicant for the certificate and the consent authority:

   i. as to the security to be given by the applicant to the consent authority with respect to the work to be completed

   ii. as to when the work will be completed by the applicant.

This appendix applies to (a) above. Agreements referred to in (b) or (c) above must be by special agreements negotiated with the Principal Certifier. However, such agreements must (where applicable) be in accordance with relevant provisions of this appendix.

This appendix does apply in the case where a subdivision certificate is sought for part only of the land to be subdivided (in accordance with a development consent) provided all the subdivision works for that part of the land (including necessary off site works) have been completed.

Clause 157 of the Regulations requires the applicant for a subdivision certificate to provide "evidence that the work has been completed". Section 6.15 of the Act requires the Principal Certifier to be satisfied that the work has been completed prior to issuing a subdivision certificate. In this regard evidence that will be satisfactory to the Principal Certifier is production of a 'Subdivision Works Compliance Certificate" issued by a NER registered engineer in accordance with this manual.

3.2 Subdivision Works – Certification Arrangements

3.2.1 Definitions

"Subdivision work(s)" means:

any physical activity authorised or required to be carried out under the conditions of development consent for the subdivision.

"Completion of subdivision works" means:

The appointed NER registered engineer has issued a "Subdivision Works Compliance Certificate", and the "date of completion" is the date on the compliance certificate.

3.2.2 Appointing a third-party NER registered engineer

1. The subdivider shall appoint a third-party NER registered engineer to certify that the works are completed in accordance with the conditions of development consent and to subsequently provide engineering certification to the Principal Certifier in the form of a Subdivision Works Compliance Certificate.
2. An NER engineer should not be appointed if there is a conflict of interest in accordance with sections 28(1) and 29(1) of the Building and Development Certifiers Act 2018.
3. The subdivider must notify the Principal Certifier and Council (if Council is not the Principal Certifier) of the name, address and contact phone number of the appointed NER registered engineer, prior to the issue of any Subdivision Works Certificate.

3.2.3 Power and Duties of the appointed NER registered engineer

The primary functions of the appointed NER registered engineer are to:

a. ensure that the subdivision works are constructed in accordance with the Approved Design Plans, conditions of development consent and the Development Construction Specifications C101 – C501
b. on satisfactory completion of these works, in accordance with the requirements of this manual issue a *Subdivision Works Compliance Certificate* as evidence to the Principal Certifier that the subdivision work is completed
c. if the subdivider does not construct the subdivision works in accordance with the approved design plans, conditions of development consent and the Development Construction Specifications, refuse the issue of a *Subdivision Works Compliance Certificate* (or refuse it until all non-compliant works have been remedied to become fully compliant).

3.3 Subdivider's Responsibilities

3.3.1 Subdivider's Responsibilities for completion of subdivision works

To receive a *Subdivision Works Compliance Certificate*, the subdivider must construct subdivision works in accordance with the Approved Design Plans and the conditions of development consent. This includes the subdivider constructing all subdivision works in accordance with the Development Construction Specifications C101 – C501 and in this regard to:

a. enable subdivision works site access at all times to the appointed NER registered engineer and the Principal Certifier or their representatives

b. where works fail inspections and/or tests, respond as required by the Development Construction Specifications, or other associated relevant standards or appointed NER registered engineer's directions - if this requires removal of defective work, then remove the defective work as required by the appointed NER registered engineer

c. comply with all statutory requirements with regard to subdivision works

d. respond, as required and appropriate, to orders/directions/notices/requests etc. from Council representatives and representatives of statutory authorities

e. when appropriate, apply to the appointed NER registered engineer for a *Subdivision Works Compliance Certificate* and *Off Defects Liability Compliance Certificate*.

If the subdivider fails to construct the subdivision works in accordance with the above requirements, this will result in the appointed NER registered engineer refusing to issue a *Subdivision Works Compliance Certificate*.

3.3.2 Certification of Subdivision Works

In order to meet the requirements of a Subdivision Certificate application relating to subdivision works, when the subdivision works have been completed, the subdivider must:

a. in accordance with Development Design Specification D13 – Engineering Plans Subdivisions, arrange for production of Works as Executed Plans (WAX)

b. apply to the Principal Certifier and obtain a *Subdivision Work as Executed Plans Compliance Certificate*

c. submit a copy of the *Subdivision Work as Executed Plans Compliance Certificate* to the appointed NER registered engineer

d. apply to the appointed NER registered engineer for a *Subdivision Works Compliance Certificate*..

3.3.3 Subdivision Work as Executed Plans Compliance Certificate

When the subdivider considers that the works are completed, *Works as Executed Plans* may be prepared and an application for a *Subdivision Work as Executed Plans Compliance Certificate* submitted to the Principal Certifier (see Development Design Specification D13).

A *Subdivision Work as Executed Plans Compliance Certificate* is a prerequisite for the issue of a *Subdivision Works Compliance Certificate*.

3.4 Subdivision Infrastructure Inspection Clearance

3.4.1 Inspections by Infrastructure Authority (Council)

The Council of the area, being the authority that will receive and take over responsibility for infrastructure created by the subdivision works, will make a number of inspections during the progress of the works. These inspections may be scheduled inspections or unscheduled inspections.

3.4.2 Right of Access

The subdivider must enable access to the subdivision works site at all times to the infrastructure authority or its authorised representatives. This includes access to all plans, specifications, survey data, test results etc related to the works.

3.4.3 Scheduled Inspections

1. *Scheduled Inspections* are detailed in Appendix D and are nominated as Hold Points.
2. Works must not proceed beyond any of these Hold Points until the Council has issued an *Infrastructure Release Notice*.
3. A *Subdivision Works Compliance Certificate* must not be issued by the appointed NER registered engineer, until there is an *Infrastructure Release Notice* issued by the infrastructure authority for all Hold Points and Witness Points nominated in Appendix D.
4. The Principal Certifier shall not advise that the subdivision works are "off defects liability" (see p94) unless Council has issued an *Infrastructure Release Notice* from Council for the *Off Defects Liability Inspection*, Scheduled Inspection (Appendix D).

3.4.4 Unscheduled Inspections

1. *Unscheduled Inspections* by the infrastructure authority (or Principal Certifier or NER registered engineer) may take place at any time.
2. It is the responsibility of the appointed NER registered engineer to ensure the subdivision works are constructed in accordance with the conditions of consent, approved design plans and requirements of the development construction specifications. *Unscheduled Inspections* by the infrastructure authority are a means of auditing this process.

3. *Unscheduled Inspections* may take the form of:
    i. visual inspections
    ii. sampling and testing (of a type referred to in the development construction specifications), or
    iii. survey or level check.
4. If an *Unscheduled Inspection* by the infrastructure authority reveals non-conformance with the conditions of consent, approved design plans and requirements of the development construction specifications, the infrastructure authority may issue a *Non Compliant Infrastructure Notice* to the Principal Certifier.
5. The Principal Certifier shall forward the *Non Compliant Infrastructure Notice* to the appointed NER registered engineer.
6. The appointed NER registered engineer must respond to the *Non Compliant Infrastructure Notice* by presenting an *Infrastructure Remediation Plan* to the Principal Certifier within 7 days, detailing how non-conforming works can be remediated to conform with the conditions of consent, approved design plans and requirements of the development construction specifications. The Principal Certifier shall forward a copy of the *Infrastructure Remediation Plan* to the infrastructure authority.
7. The infrastructure authority may audit the progress of the *Infrastructure Remediation Plan* with further Unscheduled Inspections. If remediation is not satisfactory, the infrastructure authority may issue further *Non Compliant Infrastructure Notice(s).*
8. When the remediation works are completed to the satisfaction of the infrastructure authority, it shall issue an *Infrastructure Release Notice* to nullify the previously issued *Non Compliant Infrastructure Notice(s).*
9. A *Subdivision Works Compliance Certificate* must not be issued by the appointed NER registered engineer, until there is an *Infrastructure Release Notice* issued by the infrastructure authority to nullify all previously issued *Non Compliant Infrastructure Notice(s),* if applicable.

3.5 Subdivision Works Compliance Certificate

Prior to the issue of a *Subdivision Works Compliance Certificate* the appointed NER registered engineer must:

a. be satisfied that the subdivision works have been completed in accordance with *Approved Design Plans*, conditions of development consent and the Development Construction Specifications
b. be in receipt of all *Infrastructure Release Notices* required by Appendix D

c. receive a *Subdivision Work as Executed Plans Compliance Certificate* issued by the Principal Certifier

d. complete the Subdivision Work Compliance Certificate in the form of *Attachment C1*

e. attach to the certificate all the information and supporting documentation required in *Schedule A* of Attachment C1 being:

SCHEDULE A

1. Date Subdivision Works commenced on site.
2. Date Subdivision Works completed.
3. Copies of all tests and results required by the Development Construction Specifications, and Closed Circuit Television (CCTV) pipeline reports.
4. Copies of WAX plans as required by Development Design Specification D13.
5. *Subdivision Work as Executed Plans Compliance Certificate* (must be issued by the Principal Certifier).
6. Copies of all the *Infrastructure Release Notices* for *Scheduled Inspections* issued by the infrastructure authority as required by C2.63.
7. Copies of all *Non Compliance Infrastructure Notice(s)* issued by the infrastructure authority arising from *Unscheduled Inspections* and for each such notice an accompanying *Infrastructure Release Notice* releasing the non-compliance as required by C2.64.

Appendix 4. Subdivision Infrastructure Inspections (applies to Part C Subdivision)

4.1 Definitions

"Scheduled Inspection": Inspections scheduled in this appendix, which constitute Hold Points for the subdivision works.

"Hold Point": A point beyond which an activity (being part of the subdivision works which may not proceed without the approval of the infrastructure authority.

"Infrastructure Authority": The local government Council of the area which will receive and take over responsibility for infrastructure created by the subdivision works.

4.2 Scheduled Inspections by Infrastructure Authority

Council officers will not deal directly with the contractor. The appointed NER registered engineer / project manager shall be responsible for organising inspections, providing a minimum 2 working days' notice. Scheduled inspections shall be jointly held between the appointed NER registered engineer, contractor, sub-contractor (where applicable and Council.

Subdivision works must not proceed beyond the scheduled inspection Hold Points nominated in this Clause until an *Infrastructure Release Notice* has been issued by the infrastructure authority.

Table D2 nominates the scheduled inspections to be made by the infrastructure authority and criteria for acceptance.

For staged subdivisions, these Hold Points are applicable to each stage.

If the subdivider chooses to do the works in sections or sub stages, an inspection and release will be required for each section covered by the Hold Point.

Council may request additional Hold Point inspections at the pre-start meeting or during the construction phase for individual items.

Any defects listed during inspections may generate additional inspections and fees.

Table E6.1 – Scheduled inspections

Hold point	Description	When	Acceptance Criteria	Comments
1.	Pre-start meeting.	Prior to starting any site works	All relevant consent conditions addressed, including PCC and PCW. Principal Certifier nomination, Prior to commencement, Contractors insurances and Pipelaying Accreditation forms completed.	Site meeting with appointed NER registered engineer, contractors and Council.
2.	Inspection of erosion & sediment control measures.	Prior to stripping of vegetation and/or topsoil from the site.	Erosion & sediment control measures are installed in accordance with the approved Erosion & Sediment Control Plan.	
3.	Inspection of site.	After stripping of topsoil, prior to earthworks. **Note:** Not required if a geotechnical consultant has been engaged as per AS 3798-1996 and a certificate verifying this has been submitted to Council.	In-situ material is deemed to be suitable for earthworks.	If in-situ material is not deemed suitable, the subdivider must submit alternative proposal to remove unsuitable material and import satisfactory replacement material.

Hold point	Description	When	Acceptance Criteria	Comments
4.	Inspection of completed earthworks.	When earthworks completed and prior to placement of pavement materials.	Finished earthworks and sub grade levels are in accordance with approved design plans, erosion & sediment control measures (including dust control) installed and operating in accordance with the approved Erosion & Sediment Control Plan.	
5.	Inspection of gravity sewer lines.	Prior to backfilling and includes (but not limited to) bedding, pipe class, house connection assembly with concrete support, external backdrops, trench supports and clearances to other services.	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	
6.	Inspection of sewer structures.	Delivery to site – precast manhole bases. Prior to pouring cast in-situ structures. Benching of channels completed prior to building	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	

Hold point	Description	When	Acceptance Criteria	Comments
		manhole structures.		
7.	Inspection of sewer rising mains.	Prior to backfilling and includes (but not limited to) bedding, pipe class, trench supports, boundary kits, valves, markers, thrust blocks and clearances to services. Associated venting and downstream infrastructure protection.	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	
8.	Water reticulation.	Prior to backfilling and includes (but not limited to) bedding, pipe class, thrust blocks pre and post concrete, trench supports, water property services, stop valves, hydrants, scour, air valves and clearances to other services.	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	

Hold point	Description	When	Acceptance Criteria	Comments
9.	Stormwater.	Prior to backfilling and includes (but not limited to) bedding, pipe class, grades, jointing, trench supports, sub-soil drains, manholes/pits, gullies, IAD, swales, drainage structures and lifting bungs.	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	
10.	Stormwater box culverts	Prior to backfilling and includes (but not limited to) bedding, base slabs, culverts, crown placements and culvert structures.	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	
11.	Road subgrade -levels and proof rolling.	Subgrade completed, prior to placement of pavement. May include subgrade replacement assessment.	Levels within specified tolerance. Proof rolling with truck (single axle minimum 8 tonnes) that does not reveal visible deflections.	Areas deflecting are to be replaced with compacted approved material for full extent of affected area and subjected to re-test.
12.	Road subbase – levels and proof rolling.	Subbase completed, prior to placement of base course.	Levels within specified tolerance. Proof rolling with truck (single axle	Areas deflecting are to be replaced with compacted approved material for full extent

Hold point	Description	When	Acceptance Criteria	Comments
			minimum 8 tonnes) that does not reveal visible deflections.	of affected area and subjected to re-test.
13.	Pavement under kerb & gutter	Immediately prior to pouring kerb & gutter and stringline for kerb machine is in place.	Levels within specified tolerance. Proof rolling with truck (single axle minimum 8 tonnes) that does not reveal visible deflections.	Areas deflecting are to be replaced with compacted approved material for full extent of affected area and subjected to re-test.
14.	Finished road pavement (pre-seal inspection).	Pavement completed, trimmed and compacted (prior to sealing).	Levels within specified tolerance and with sufficient depth still available to accommodate AC (if applicable). Proof rolling with truck (single axle minimum 8 tonnes) that does not reveal visible deflections.	Areas deflecting are to be removed and replaced with compacted approved material for full extent of affected area and subjected to re-test.
15.	Kerb & gutter where grades are less than 1%.	Kerb & gutter completed.	Water from a water truck is to be run down kerb and reveal no ponding.	
16.	Concrete structures including footpaths, cast in-situ sewer structures, stormwater structures (including cast in-situ culvert	After placement of steel reinforcing and/or formwork and prior to concrete pour.	Formwork structurally sound, area cleaned and dimensionally correct. Reinforcing in accordance with approved drawings.	

Hold point	Description	When	Acceptance Criteria	Comments
	bases and structures), retaining walls, footings and piers.			
17.	Earth retaining structures.	Foundation preparation. After placement of steel reinforcing and/or formwork and prior to concrete pour, if required.	Stable foundations for rock walls, as jointly inspected by designer responsible for certification. Formwork (If required) structurally sound, area cleaned and dimensionally correct. Reinforcing (if required) as per approved drawings.	
18.	Stormwater pollution control structures.	Unit installed and fitted out.	Unit constructed and installed in accordance with approved plans and specifications.	Evidence of cleaning shall be submitted prior to final inspection.
19.	Stormwater management features, including OSD, bioretention basins.	Liners, drainage lines, drainage layers, forebays, pits and weirs	Feature constructed and installed in accordance with approved plans and specifications.	
20.	Sewerage pumping and lift stations (civil works).	Prior to pouring concrete (see concrete structures). Pipes, vents, fittings and furnishings.	Excavation, formwork and reinforcing is in accordance with approved plans and specifications.	

Hold point	Description	When	Acceptance Criteria	Comments
21.	Sewerage pumping and lift stations (mechanical or electrical).	Mechanical and electrical works installed.	Mechanical and electrical works installed in accordance with approved plans and specifications.	
22.	Sewerage pumping and lift stations commissioning	Pumping station completed.	Pumping station performs as per approved plans and specifications. All necessary operation, parts manuals handed to infrastructure authority.	
23.	Sewer, sewer rising main and water reticulation testing.	Prior to final practical inspection and includes (but not limited to) gravity sewer, sewer rising mains, manholes and water reticulation	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	
24.	Water reticulation final.	Completion of all water reticulation infrastructure works.	Works in accordance with Design & Construction Specifications/current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	

Hold point	Description	When	Acceptance Criteria	Comments
25.	Sewer infrastructure final.	Final sewer lid close. Completion of all sewer infrastructure works.	Works in accordance with Design & Construction Specs /current standard drawings and approved Subdivision Works Certificate or Section 68 Approvals.	
26.	Final practical inspection. ('On Maintenance')	Subdivision works completed.	No defects or non-compliance found.	Including landscaping.
27.	Off defects liability inspection. ('Off Maintenance')	Expiry of defects liability period.	Satisfactory outcome of inspections detailed in Tweed Shire Development Control Plan *Section A5.7.4* Subdivision Manual.	Including landscaping.

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